

FIRST SCRUTINY

The Restoration Programme

Who is arguing, and what the research found

An issues paper. The starting point of legislative scrutiny, not the end of it.

A draft for the proposers to correct.

Proposer: David Starkey

Scrutiny by Scrutinise · Second draft, revised 14 September 2026 · Volume 3 of 3

Scrutinise is free and non-partisan. It takes a proposal and works out what delivering it would actually require. It is available on identical terms to anyone.

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The Part number is in the banner across the top of every page, with the section name beside it.

What is in this volume

This volume carries the supporting material. It is not argument. It is the evidence the argument in Volumes 1 and 2 rests on, set out at length so that any statement in those volumes can be checked back to its source.

The numbering runs on from Volumes 1 and 2. Volume 1 holds Parts 1 to 5, Volume 2 holds Parts 6 and 7, and this volume holds Parts 8 and 9.

Part 8 • Who is for and against the proposed measures — for each of the twelve measures, the organisations and named individuals who will argue about it, and what they have already said.

- **8.1 • The stakeholder map** — think tanks, campaign groups, professional and legal bodies, unions, regulators, peers and former judges, academics, bloggers, podcasters and committee witnesses, split between those with a published position and those who will certainly respond but have not yet said how.
- **8.2 • The parliamentary record** — the divisions and early day motions the corpus returned, with an account of why that record is thinner than it looks.

Part 9 • The research — every source retrieved and read, measure by measure, under the question it was retrieved to answer.

What David said, and how to search it

There is a fourth file, and it is not printed here because printing it would run to about fifteen hundred pages.

WHAT_DAVID_SAID.md holds 2,764 passages from David's recorded words, across 254 of the 285 recordings held, grouped by measure and in date order, each with a link that starts playing at the second it was said. It was built by searching every recording in the corpus against 102 terms drawn from the twelve measures.

It is a plain text file, and that is deliberate. It can be given to any AI assistant as a document to search, which is the fastest way to answer "where did he say that?" — the file carries the date, the recording title, the timestamp and the passage, so an answer can always be taken back to the recording.

⚠️ A term matching is not agreement, disagreement, or a proposal. These are passages that mention the subject. Read the passage.

⚠️⚠️ Almost none of it has been cross-checked. The corpus was built to hold two independent transcripts of each recording so that quotations could be checked against each other. It holds two for three recordings out of 285. **2,728 of the 2,764 passages — 98.7% — have been read once, by one engine.** Each entry says which it is, in words, so that an absent mark is never read as agreement. Where two transcripts disagree the entry is marked and both are printed; in one recording one engine renders a name as "Israeli" where the other renders it "Disraeli".

Any quotation taken from it should be checked against the recording before it is used in public. The timestamp is given so that it can be.

Measure	Passages	Recordings
M-01 The Human Rights Act and the Convention	593	166
M-02 The Equality Act	121	66
M-03 The Supreme Court	343	126
M-04 The arm's-length body estate	204	105
M-05 Judicial review	224	108
M-06 The permanent civil service	256	108
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M-08 Diversity and inclusion practice	141	73
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M-11 The Sentencing Council	39	29
M-12 The Great Repeal	617	171

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PART 8

WHO IS FOR AND AGAINST THE PROPOSED MEASURES

This appendix answers one question: who will argue about each measure, and what have they already said?

It has two halves, and they are built from different material, so they fail in different ways.

- **8.1 · The stakeholder map** — organisations and named individuals with a public platform, drawn from published sources by a research pass and checked by a second one. This is new in the second draft and replaces the thin parliamentary-only register that stood here before.
- **8.2 · The parliamentary record** — divisions and early day motions retrieved from the corpus. It is thin, and the section says so rather than dressing it up.

The marks, and what they mean here

Every row in 8.1 carries one of three marks. **They are about the evidence, not about the person.**

- **[verified]** — the page was retrieved and the statement read on it.
- **[corroborated, unchecked]** — two or more independent sources report it, but the primary document was not retrieved.
- **[single mention, unchecked]** — one source reports it. A lead to follow, not a citation to rely on.

 **Nothing in this appendix is a finding.** It is a list to work down and confirm. Before any name here is quoted in public, the underlying document should be read.

  *A stance is a stance on this measure, not a summary of anyone's politics. * An organisation can be against repealing the Human Rights Act and for curbing the Sentencing Council. Several here are.

"Likely to engage, position not stated" is not a hedge. It is the more useful column in planning terms: it names the bodies that will certainly respond to a Bill and have not yet said how. Anyone who could not be pinned to a specific dated statement was put there rather than given a stance.

Party affiliations move, and several moved recently

Three of the people named below changed party during the period this draft covers. The date matters, because what someone said is bound to the party they said it in.

Who	Change	Date
Danny Kruger MP	Conservative → Reform UK	15 September 2025
Robert Jenrick MP	Conservative (Shadow Justice Secretary) → Reform UK	15 January 2026
Suella Braverman MP	Conservative → Reform UK	26 January 2026

Source: press reporting, [corroborated, unchecked]. These dates should be confirmed before the appendix is relied on, because they change who is speaking for whom.

Built in September 2026 by a research pass over published sources, then checked by a second pass run against the first. It is not exhaustive and does not pretend to be: it is the set of voices those two passes could find and verify in the time available. The gaps are as informative as the entries — where a measure has few named opponents, that is usually because nobody has yet had to argue about it in public.

M-01 · The Human Rights Act and the European Convention

On the record

Who	What they are	Stance	What they have said, and where
Kemi Badenoch	Leader of the Conservative Party	For	Announced on 4 October 2025 that "the next Conservative Government will leave the European Convention on Human Rights", with full Shadow Cabinet backing. [verified] conservatives.com/news/conservatives-announce-echr-exit-policy
Lord Wolfson of Tredegar KC	Shadow Attorney General since November 2024	For	Conducted the legal review for the Conservative Party on whether its policies could be delivered inside the Convention; the October 2025 announcement followed it. [verified] The review's own title and publication date could not be established.
Damien Shannon, Prosperity Institute	Director of Governance; foreword by Danny Kruger MP	For	"Leaving the European Convention on Human Rights", 30 April 2026, sets out a draft withdrawal Bill and expressly rejects a replacement Bill of Rights. [verified] prosperity.com/media-publications/leaving-the-european-convention-on-human-rights
Lord Sumption	Former Justice of the Supreme Court	For	"Judgment call: the case for leaving the ECHR", The Spectator, 30 September 2023. [corroborated, unchecked]
Baroness Hale	Former President of the Supreme Court	Against	Reported as saying withdrawal would be "a disaster for Europe", on a podcast hosted by Baroness Chakrabarti, October 2025. [single mention, unchecked] — a second pass could not re-confirm this. Check the recording before quoting it.
Professor Mark Elliott	Public law, Cambridge; <i>Public Law for Everyone</i>	Against	"The 'othering' of human rights", 7 November 2025, argues the withdrawal case rests on antipathy to enforceable rights, citing 2024 Strasbourg data. [verified] publiclawforeveryone.com
The Law Society	Professional body for solicitors, England and Wales	Against	On the 2022 Bill of Rights Bill: "We do not believe there is a case for the sweeping reforms proposed." [verified] lawsociety.org.uk/topics/human-rights/human-rights-act-reforms
Committee on the Administration of Justice	Northern Ireland human rights NGO	Against	Explainer, 16 September 2025: withdrawal "would breach the B/GFA, destabilise Northern Ireland's constitutional settlement". [verified] caj.org.uk
Liberty	Civil liberties	Against	"Defend the ECHR" campaign, May 2026;

Who	What they are	Stance	What they have said, and where
	campaign group		convened around 300 organisations for the Convention's 75th anniversary. [verified] libertyhumanrights.org.uk
Joint Committee on Human Rights	Parliamentary committee	Against	Ninth Report 2022–23 on the Bill of Rights Bill, 25 January 2023: no case exists for the legislation; 96% of 41,000 survey responses opposed. [verified] committees.parliament.uk
Welsh and Scottish Governments	Devolved administrations	Against	Joint statement, 2 March 2022, calling reform plans "unwelcome and unnecessary". [verified] gov.wales
Sir Peter Gross	Chair, Independent Human Rights Act Review 2021	Mixed	The review found the Act had worked and proposed technical reform rather than repeal — cited by both sides. [corroborated, unchecked]

Likely to engage, position not stated

Who	What they are	Why they will engage
Bingham Centre for the Rule of Law	Legal research institute	Has monitored and briefed on every HRA reform proposal since 2021
JUSTICE	Law reform charity	Briefs parliamentarians on Convention membership; a certain witness on any repeal Bill
Bar Council	Professional body for barristers	Statutory consultee; opposed weakening the Act in the judicial review debates
Faculty of Advocates; Law Society of Scotland	Scottish legal professional bodies	Convention rights are written into the Scotland Act competence test
Human Rights Consortium (NI)	Northern Ireland civil society coalition	Published on the Convention and the peace settlement
Amnesty International UK	Human rights NGO	Published a devolution-impact briefing on repeal
Baroness Chakrabarti	Labour peer; former Director of Liberty	Runs public events defending the Act; certain to give evidence
Joshua Rozenberg	Legal commentator, formerly BBC	Writes the most-read plain-English explainers on withdrawal mechanics

M-02 · The Equality Act and the public sector equality duty

On the record

Who	What they are	Stance	What they have said, and where
Kemi Badenoch	Leader of the Conservative Party	For	Called on 9 June 2026 for the public sector equality duty to be scrapped, describing it as "subjective with no clear rules" and a "minefield". [corroborated, unchecked]

Who	What they are	Stance	What they have said, and where
Suella Braverman MP	Reform UK, education, skills and equalities spokesperson	For	"We will repeal the Equality Act, because we are going to work to build a country defined by meritocracy not tokenism", February 2026. [verified] personneltoday.com
Equality and Human Rights Commission	Statutory equalities regulator	Against repeal	Oral evidence to the Women and Equalities Committee, 9 June 2026: the Act "provides a good balance between the rights of different groups". [verified] committees.parliament.uk/oralevidence/17691
Institute for Government	Whitehall think tank	Against	"Scrapping the Public Sector Equality Duty won't create the change Badenoch wants", 11 June 2026 — removal "would not automatically deliver the cultural change she wants". [verified] instituteforgovernment.org.uk
RNID	Deaf and hearing-loss charity	Against	"We are concerned that current proposals could weaken the protections put in place for disabled people", June 2026. [single mention, unchecked]
Sense	Disability charity	Against	"The PSED asks decision-makers to consider who could be adversely affected by their choices", June 2026. [single mention, unchecked]
Liz Kendall	Cabinet minister	Against	Said scrapping the duty would "turn the clock back" and limit access to talent, 9 June 2026. [verified] itv.com
Sex Matters	Campaign group on sex and gender law	Mixed — reform, not repeal	"Amending the Equality Act 2010 to protect women's rights", 2024 technical briefing, argues for statutory clarification of the sex-based provisions. [single mention, unchecked]

Likely to engage, position not stated

Who	What they are	Why they will engage
Runnymede Trust	Race equality think tank	Submits written evidence on equalities legislation as a matter of course
Fawcett Society	Women's rights charity	Runs a standing Equality Act reform campaign
Women and Equalities Committee	Commons select committee	Took evidence on the Act the same week the repeal was announced
Disability Rights UK	Disability rights charity	Reports on public sector equality duty litigation; natural ally of RNID and Sense
Trevor Phillips	Broadcaster; first Chair of the EHRC	The most-quoted critic of how the Act has been applied
Law Society; Bar Council	Professional bodies	Repeal reaches legal aid bodies, courts and tribunals

M-03 · The United Kingdom Supreme Court

On the record

Who	What they are	Stance	What they have said, and where
Professor Derrick Wyatt KC	Emeritus Professor of Law, Oxford	For abolition	Policy Exchange, "Reforming the Supreme Court", 2020: abolish the Court and replace it with rotating panels drawn from the Courts of Appeal and the Inner House. [verified] policyexchange.org.uk
Professor Richard Ekins KC (Hon)	Head of the Judicial Power Project, Policy Exchange	For restructuring	Same paper: rename it the "Upper Court of Appeal" to signal an adjudicative rather than a constitutional-guardian role. [verified] policyexchange.org.uk
Nicholas Reed Langen	Legal commentator, UK Constitutional Law Association blog	Against	1 December 2020: an enlarged rotating bench would produce "fifty competing judicial philosophies" and legal instability. [verified] ukconstitutionallaw.org
Baroness Hale	Former President of the Supreme Court	Against	Gave evidence to the Lords Constitution Committee's rule-of-law inquiry, 2 April 2025, defending the present settlement. [verified] parliament.uk
House of Lords Constitution Committee	Parliamentary committee	Scrutiny role	Holds an annual evidence session with the Court's President and Deputy President — the forum any reform would be tested in. [verified] committees.parliament.uk

Likely to engage, position not stated

Who	What they are	Why they will engage
Policy Exchange, Judicial Power Project	Think tank programme	Runs the standing symposium where the reform case is made
Lord Reed	President of the Supreme Court	Gives annual evidence on the Court's constitutional role
Robert Buckland KC	Former Lord Chancellor	Long record on judicial power and the Lord Chancellor's duty to defend the judiciary
Law Society of Scotland; Faculty of Advocates	Scottish professional bodies	Scottish civil appeals go to this Court; abolition reaches Scots law directly
JUSTICE	Law reform charity	Standing participant in constitutional reform scrutiny
Professor Mark Elliott	Public law, Cambridge	The most widely read commentator on this question

⚠️ **This is the thinnest map of the twelve, and that is itself a finding.** Abolishing or restructuring the Supreme Court has been argued almost entirely inside one think tank and one academic blog. There is no organised opposition because there has been no proposal concrete enough to oppose.

M-04 · The arm's-length body estate

On the record

Who	What they are	Stance	What they have said, and where
Danny Kruger MP	Reform UK	For	"Fixing the Centre", 24 May 2026, on Reform UK's official site: most quangos "brought back into the Departments, or scrapped". [verified] preparingforgovernment.com/fixing-the-centre
Institute for Government	Whitehall think tank	Mixed	"Out of the Ashes", 2015, opposes a "simplistic cull" and finds that bringing bodies back into departments "would rarely lead to major savings". [verified] instituteforgovernment.org.uk
Re:State (formerly Reform, the think tank)	Centre-right think tank	Mixed	"Quangocracy", February 2025: stricter creation tests and departmental specialist units rather than wholesale abolition. [verified] reform.uk
National Audit Office	Public spending watchdog	Mixed	"Central oversight of arm's-length bodies", 23 June 2021, calls for better central guidance and risk monitoring, not fewer bodies. [verified] nao.org.uk
Civitas	Right-leaning think tank	Mixed	Dr Richard Norrie, "The Failing Quango State", April 2023: reform "will sit somewhere in the middle", through parliamentary scrutiny. [verified] civitas.org.uk
TaxPayers' Alliance	Tax campaign group	For	Long-running abolition campaign; criticised the 2010 cull for targeting small advisory bodies rather than large ones. [verified] taxpayersalliance.com
Institute of Economic Affairs	Free-market think tank	For, and deeper	Richard Wellings, "Bonfire of the quangos is mostly hot air", 2010: reclassification is a rebrand; functions and staff simply transfer. [verified] iea.org.uk
UCL Policy Lab	Academic research centre	Against	Pagel and McKee, 9 October 2025, found these bodies "highly exposed to political influence" and recommend <i>limiting</i> ministerial involvement in appointments. [verified] ucl.ac.uk

Likely to engage, position not stated

Who	What they are	Why they will engage
Public Administration and Constitutional Affairs Committee	Commons select committee	Running a live inquiry into public bodies' creation, governance and accountability
Lord Maude of Horsham	Author of the 2023 civil service governance review	Gave oral evidence to that inquiry, 10 March 2026
Public Chairs' Forum	Represents the chairs of arm's-length bodies	Gave oral evidence, 4 November 2025
Association of Chief	Represents their chief	Gave oral evidence, 4 November 2025

Who	What they are	Why they will engage
Executives	executives	
Committee on Standards in Public Life	Standards watchdog	Public body governance is within its core remit
Onward	Centre-right think tank	Publishes regularly on state capacity and Whitehall reform

M-05 · Judicial review of executive decisions

On the record

Who	What they are	Stance	What they have said, and where
Independent Review of Administrative Law	Government-commissioned panel chaired by Lord Faulks KC	Mixed, and cautious	Report published 16 March 2021 concluded that "on balance little significant advantage would be secured through codification" of the grounds of review, and did not recommend restricting the courts' interpretive role. [verified] The two further phrases often quoted from it could not be confirmed verbatim and are not quoted here.
Professor Richard Ekins KC (Hon), Policy Exchange	Judicial Power Project	For	"How to Reform Judicial Review", 19 July 2021: the government should go further than its own panel recommended. [verified] policyexchange.org.uk
Public Law Project	Legal charity that litigates judicial review	Against	Jo Hickman, 29 April 2021: the reforms "would weaken citizens' ability to get a fair and just outcome" and are "disproportionate and unjustified". [verified] publiclawproject.org.uk
JUSTICE	Law reform charity	Against	April 2021 consultation response: the proposals "go far beyond the scope and findings of the IRAL Report". [verified] justice.org.uk
Bar Council	Professional body for barristers	Against	Amanda Pinto KC, 12 February 2020, called the reform proposals a "red flag", noting applications had fallen 44% between 2015 and 2019. [verified] barcouncil.org.uk
The Law Society	Professional body for solicitors	Mixed	"We do not believe there is a need for fundamental reform", while supporting procedural improvements such as case-management conferences and target timescales. [verified] lawsociety.org.uk

Who	What they are	Stance	What they have said, and where
HM Government	Current administration	For, in the infrastructure context	May 2026: designate "Critical National Importance" energy projects so that judicial review grounds are confined, with fixed challenge windows for other infrastructure. [corroborated, unchecked]
Danny Kruger MP	Reform UK	For	"Fixing the Centre", 24 May 2026, treats the reach of judicial review over ministerial decisions as part of the problem to be fixed. [verified] preparingforgovernment.com

Likely to engage, position not stated

Who	What they are	Why they will engage
Professor Mark Elliott	Public law, Cambridge	Has written the standard commentary on ouster clauses
Tom Hickman KC	Blackstone Chambers and UCL	Leading practitioner-academic on the Judicial Review and Courts Act 2022
Administrative Law Bar Association	Specialist bar association	Submits formal responses to every judicial review consultation
Bingham Centre for the Rule of Law	Research institute	Publishes rule-of-law analyses of Bills of this kind
Liberty	Civil liberties organisation	Litigates judicial review and briefs Parliament on it
Leigh Day; other claimant public law firms	Solicitors	Directly affected by any change to standing, permission or remedies
Constitution Unit, UCL	Constitutional research centre	Standing interest in judicial-executive relations

M-06 · The permanent, appointed civil service

On the record

Who	What they are	Stance	What they have said, and where
Danny Kruger MP	Reform UK	For	"Fixing the Centre", 24 May 2026: give Secretaries of State the power to appoint and dismiss their Permanent Secretary, which requires replacing the Constitutional Reform and Governance Act 2010. [verified] preparingforgovernment.com
Lord Maude of Horsham	Former Cabinet Office minister	Mixed	His Independent Review of Governance and Accountability in the Civil Service recommended a greater ministerial role in some senior appointments while rejecting a US-style replacement of officials. [corroborated, unchecked]

Who	What they are	Stance	What they have said, and where
			The publication date and wording should be confirmed against the review itself.
Institute for Government	Whitehall think tank	Against	Responding to the Maude review, November 2023: expanded removal powers are "ripe for abuse". Separately, Hannah White, "Civil service politicisation is the wrong answer to the wrong question", 3 May 2023. [verified] instituteforgovernment.org.uk
FDA	Union for senior civil servants	Against	Dave Penman warned of "American-style politicisation of the civil service", 29 October 2025. [verified] civilserviceworld.com
Prospect	Civil service union	Against	Mike Clancy: the incoming Cabinet Secretary must "reverse the increasing politicisation of civil servants", 30 September 2024. [verified] prospect.org.uk
PCS	Civil service union	Against	Fran Heathcote, 29 October 2025: "Reducing staffing in the civil service is a sure-fire way to reduce efficiency." [verified] civilserviceworld.com
House of Lords Constitution Committee	Parliamentary committee	Against	Impartiality is of "key constitutional importance"; political-alignment criteria would undermine officials' ability to speak truth to power. [verified] lordslibrary.parliament.uk
Lord Butler of Brockwell	Former Cabinet Secretary	Against	Describes impartiality as "essential" to the British political system. [verified] lordslibrary.parliament.uk
Lord Ricketts	Former Permanent Secretary, Foreign Office	Against	Ideologically aligned officials would lose the "necessary challenge function". [verified] lordslibrary.parliament.uk
Jonathan Slater	Former Permanent Secretary, Education	Mixed, leaning for	Argues civil service "emotional detachment" harms policy effectiveness. [verified] lordslibrary.parliament.uk
Dr Liam Fox MP	Former Defence Secretary	For	Ministers should bring in more sector experts each government, citing the Canadian, Australian and German models. [verified] lordslibrary.parliament.uk
Professor Christian Schuster	UCL Policy Lab	Against	Political appointment risks lower competence and reward for loyalty. [verified] lordslibrary.parliament.uk

Likely to engage, position not stated

Who	What they are	Why they will engage
Civil Service Commission	Statutory body created by the Act being repealed	Its existence is the direct object of the measure
Baroness Stuart of Edgbaston	First Civil Service Commissioner	Statutory guardian of merit-based, impartial recruitment
Cabinet Secretary and Head	Head of the institution	Runs the system the measure would replace

Who	What they are	Why they will engage
of the Civil Service		
Committee on Standards in Public Life	Standards watchdog	Impartiality and appointments are within its core remit
Lord Sedwill	Former Cabinet Secretary	His tenure is the case study both sides cite
Professor Patrick Diamond	Queen Mary, University of London	Has published on reforming ministerial responsibility for officials

⚠️⚠️ Note what this map shows and Part 6.3 of Volume 2 says independently: every named opponent is defending the 1854 Northcote-Trevelyan settlement, not the 2010 Act. Repealing the Act without addressing the convention engages all of this opposition and changes little.

M-07 · The independence of the Bank of England

On the record

Who	What they are	Stance	What they have said, and where
Andrew Bailey	Governor of the Bank of England	Mixed	Argued that independence is well defined for monetary policy but "incomplete" for financial stability, Columbia University, 14 April 2026. [verified] bankofengland.co.uk
Robert Jenrick MP	Reform UK Treasury spokesman	Against curtailment	"Under Reform, the Bank of England will remain independent" but must "perform better", City speech, 19 February 2026. [verified] globalbankingandfinance.com
Richard Tice MP	Deputy Leader, Reform UK	For curtailment	Proposed that the Treasury appoint one or two government representatives to the Monetary Policy Committee, November 2025. [verified] cityam.com
Nigel Farage MP	Leader, Reform UK	For curtailment	Suggested replacing the Governor and pressed for the Bank to be more open to a strategic bitcoin reserve, November 2025. [verified] cityam.com
Richard Murphy	Economist, Tax Research UK	For curtailment	"It is time to bring interest rate policy back to the Treasury where it belongs", 23 April 2026. [verified] taxresearch.org.uk
Positive Money	Campaign group on central bank accountability	Mixed	Rejects a ban on quantitative easing as unworkable but backs a "long-overdue review" of monetary policy accountability, January 2025. [verified] positivemoney.org
House of Lords Economic Affairs Committee	Parliamentary committee	Against curtailment	"Making an independent Bank of England work better", 27 November 2023: preserve operational independence, prune the remit, review every five years. [verified] lordslibrary.parliament.uk
Julian Jessop	Economics Fellow, Institute of Economic	Against curtailment	Told the Treasury Committee on 17 March 2026 that rate-setting disciplines

Who	What they are	Stance	What they have said, and where
	Affairs		government: "if the Government do something stupid, they get punished through higher interest rates". [verified] committees.parliament.uk
Professor Ben Clift	Political economy, Warwick	Against curtailment	Same session: "The independence of the Bank of England is also a very important constraint that I would definitely protect." [verified] committees.parliament.uk
Dr Gerard Lyons	Economist	Against curtailment	Criticism of the Bank's competence should not be read as a case against its independence; reform the forecasting, not the autonomy. [verified] capx.co
Lord King of Lothbury	Former Governor of the Bank of England	Mixed	Warns the Bank's mandate has grown too broad through annual Treasury remit letters, May 2025. [verified] centralbanking.com
John Nugée	Former Chief Manager of Reserves, Bank of England	For reassessment	"It is now time to reexamine the arguments for the Bank of England's independence", OMFIF, 12 February 2025. [verified] omfif.org

Likely to engage, position not stated

Who	What they are	Why they will engage
HM Treasury and the Chancellor	Government department	Sets the remit annually and holds the reserve powers this measure would use
Treasury Select Committee	Commons select committee	The Bank's statutory scrutineer
Institute for Fiscal Studies	Economic research institute	The most-cited independent commentator on Bank policy
National Institute of Economic and Social Research	Economic research institute	Has published specifically on quantitative easing and independence
Resolution Foundation	Living standards think tank	Gave evidence in the March 2026 framework session
Professor Charles Goodhart	LSE; former MPC member	The leading academic authority on central bank independence
Centre for Policy Studies	Centre-right think tank	Publishes on monetary credibility

! This is the only measure of the twelve where the party most associated with the programme is publicly split. Reform UK's Treasury spokesman defends the Bank's independence; its deputy leader proposes Treasury appointees on the rate-setting committee. That is a disagreement about the measure itself, not about how to deliver it.

M-08 · Diversity and inclusion practice in the civil service

On the record

Who	What they are	Stance	What they have said, and where
Esther McVey	Then Cabinet Office minister	For	Announced the end of dedicated civil service EDI posts and of external EDI spending without ministerial approval, 13 May 2024: "we need to stop the inappropriate backdoor politicisation of the civil service". [verified] cityam.com
Kemi Badenoch	Leader of the Conservative Party	For	Pledged on 9 June 2026 to scrap the public sector equality duty for teachers, nurses and police. [verified] itv.com
Alex Morton, Institute of Economic Affairs	Free-market think tank	For	"EDI Nation", October 2025: end EDI within the state sector in favour of meritocracy, abolish EDI mandates in procurement, reform or abolish the duty. [verified] iea.org.uk
TaxPayers' Alliance	Campaign group	For	Joanna Marchong called EDI teams "a disaster" and urged the crackdown be extended across government, May 2024. [verified] taxpayersalliance.com
Free Speech Union	Campaign group	For	Backed the 2024 announcement, citing its own report on the cost of diversity training. [verified] freespeechunion.org
Suella Braverman MP	Reform UK	For, and further	Would repeal the Equality Act itself rather than only the practice built on it, February 2026. [verified] personneltoday.com
FDA	Union for senior civil servants	Against	Lucille Thirlby: EDI staffing is a small fraction of the overall pay bill, May 2025. [verified] bylinetimes.com
Institute for Government	Whitehall think tank	Against	Jack Worlidge: savings from scrapping EDI roles "would not be significant", May 2025. [verified] instituteforgovernment.org.uk
Best for Britain	Campaign group	Cautionary	Naomi Smith: "When it comes to EDI, they may need to be careful what they wish for" — removing staff may increase exposure to discrimination claims. [verified] bylinetimes.com
Liz Kendall	Cabinet minister	Against	Abolishing the duty would "turn the clock back" and narrow access to talent, 9 June 2026. [verified] itv.com

Likely to engage, position not stated

Who	What they are	Why they will engage
Civil Service Commission	Statutory recruitment regulator	Owns the Recruitment Principles this measure would rewrite
PCS	Civil service union	Represents the staff affected; has opposed civil service cuts generally
Stonewall	LGBTQ+ charity	Ran the Diversity Champions scheme departments have

Who	What they are	Why they will engage
		been leaving
Runnymede Trust	Race equality think tank	Publishes on the government's equalities agenda
Business in the Community	Employer diversity network	Advises the employers that procurement-linked rules would reach
Don't Divide Us	Campaign group	Campaigns against institutional EDI approaches
Policy Exchange	Think tank	Long record of Whitehall reform work

M-09 · Gender self-identification

⚠️ ⚠️ The law on this moved before the measure did. On **16 April 2025** the Supreme Court held unanimously, in *For Women Scotland Ltd v The Scottish Ministers* [2025] UKSC 16, that "sex", "man" and "woman" in the Equality Act 2010 refer to **biological sex**, and that "a person with a GRC in the female gender does not come within the definition of a 'woman' under the EA 2010". Trans people remain protected through the separate characteristic of gender reassignment. [verified] [supremecourt.uk](https://supremecourt.uk/press-summary) press summary, UKSC 2024/0042.

What follows from that, for this measure: the part of the objection that concerned the meaning of sex in equality law has been answered by the courts, not by Parliament. What survives is the Gender Recognition Act 2004 itself and the implementation of the ruling. **The measure should be re-stated against the law as it now is, or it will be answered on the floor of the House with a judgment rather than an argument.**

On the record

Who	What they are	Stance	What they have said, and where
Sex Matters	Campaign group on sex-based rights	For	The judgment "brings clarity to the law", 21 April 2025. [verified] sex-matters.org
Maya Forstater; Dr Helen Joyce	Sex Matters	For	Joyce said she felt "vindicated and amazed" by the ruling, 16 April 2025. [verified] spectator.com
Professor Kathleen Stock	Writer, UnHerd	For	"Self-ID is now dead as a political project", 17 April 2025. [verified] unherd.com
LGB Alliance	Campaign group	For	Kate Barker called the ruling a "watershed" for single-sex associations, 16 April 2025. [verified] lgballiance.org.uk
Equality and Human Rights Commission	Statutory regulator	Implementing the ruling	Baroness Falkner, then Chair, welcomed it on 16 April 2025 as resolving "significant problems"; her successor Dr Mary-Ann Stephenson told the Women and Equalities Committee on 9 June 2026 that single-sex services must operate "on the basis of biological sex". [verified] equalityhumanrights.com ; committees.parliament.uk
Bridget Phillipson MP	Minister for Women and Equalities	Implementing the ruling; no	"This government has always supported the protection of single-sex spaces based on

Who	What they are	Stance	What they have said, and where
		GRA change proposed	biological sex", written statement, 14 April 2026. [verified] questions-statements.parliament.uk
Shirley-Anne Somerville MSP	Scottish Government	Accepts the ruling; will not revive reform	"The Scottish Government does, of course, accept the judgment", 22 April 2025; the Gender Recognition Reform Bill will not return. [verified] gov.scot
Stonewall	LGBTQ+ charity	Against	Simon Blake: "Stonewall shares the deep concern at the widespread implications", 16 April 2025. [verified] stonewall.org.uk
TransActual	Trans rights charity	Against	Helen Belcher: "Trans communities are devastated by today's ruling", 16 April 2025. [verified] transactual.org.uk
Jolyon Maugham KC	Director, Good Law Project	Against	Criticised the Court for excluding trans interveners, 16 April 2025. [verified] goodlawproject.org
Robin Moira White	Discrimination barrister	Against	Doubts the ruling "will survive a trip to" Strasbourg; warned of an "unholy rush to exclude trans people from facilities", May 2025. [corroborated, unchecked]
Dr Michael Foran	Public law, Glasgow	For, on the law	Argues the ruling does not breach human rights law and that trans people "are fully protected... on the basis of the characteristic of gender reassignment", 15 May 2025. [verified] ukconstitutionallaw.org
Trades Union Congress	Union confederation	Against	Congress motion said the ruling "goes against both recent and past ECHR judgements" and called the interim guidance "flawed and inconsistent". [corroborated, unchecked]
Women's Policy Centre	Policy group	For, and further	Argues repealing the Gender Recognition Act "will automatically clarify that 'sex' in law means only biological sex", February 2025. [verified] womenpolicycentre.com

Likely to engage, position not stated

Who	What they are	Why they will engage
Fair Play For Women	Campaign group on sex-based rights	Long-standing litigant on single-sex spaces
Mermaids; Gendered Intelligence	Trans support charities	Directly affected by implementation of the ruling
Naomi Cunningham	Barrister, Outer Temple Chambers	Counsel in the leading sex-based-rights employment cases
Scottish Parliament Equalities Committee	Holyrood committee	Scrutinises Scottish implementation
Joint Committee on Human Rights	Parliamentary committee	Will scrutinise any legislative follow-up

M-10 · Publicly funded charities campaigning on government policy

On the record

Who	What they are	Stance	What they have said, and where
Christopher Snowden, Institute of Economic Affairs	Free-market think tank	For	<i>Sock Puppets: How the Government Lobbies Itself and Why</i> , 11 June 2012, argues state funding "weakens the independence of charities" and calls for a ban on taxpayer-funded advocacy. [verified] iea.org.uk
Cabinet Office	Government department	Introduced, then withdrew, a restriction	An "anti-advocacy clause" was inserted into grant agreements in 2016 and replaced later that year with grant standards limited to paid political activity. [corroborated, unchecked] Dates should be confirmed before the precedent is relied on.
Sir Stuart Etherington, NCVO	Then Chief Executive, charity umbrella body	Against	Called the anti-advocacy clause counter-productive, NCVO blog, February 2016. [verified] blogs.ncvo.org.uk
Asheem Singh, ACEVO	Then interim Chief Executive, charity leaders' body	Against	Called the reversal "a victory for common sense and free speech". [corroborated, unchecked]
Bond	Network of over 400 development NGOs	Against	Proposes removing "restrictions on organisations that receive government funding from speaking out", February 2026. [verified] civilsociety.co.uk
Orlando Fraser KC	Then Chair, Charity Commission	Mixed	Campaigning is lawful "in furtherance of your services" but must be "measured, respectful"; charities should "avoid being distracted by the culture wars", April 2025. [verified] civilsociety.co.uk
TaxPayers' Alliance	Campaign group	For	Publishes an annual report series on taxpayer-funded lobbying and political campaigning. [corroborated, unchecked]

Likely to engage, position not stated

Who	What they are	Why they will engage
NCVO; ACEVO	Charity umbrella bodies	Led the 2016 fight; this is the same issue returning
Charity Commission	Regulator	Would have to police any new restriction
Directory of Social Change	Sector policy body	Tracks exactly this kind of regulatory change
Sheila McKechnie Foundation	Campaigner support charity	Its entire purpose is supporting charity campaigning

Who	What they are	Why they will engage
Oxfam GB; Barnardo's; other large grant-funded charities	Major charities	Directly exposed to any advocacy restriction
Culture, Media and Sport Committee	Commons select committee	Holds the charities policy remit

⚠ One source dropped from this map. A June 2026 think tank publication proposing a default prohibition on public grants to campaigning charities could not be verified: the article could not be retrieved and the named authors could not be confirmed as real people. It is left out rather than qualified. **If a real paper of that kind exists it would be the strongest single source for this measure and is worth finding.**

M-11 · The Sentencing Council

On the record

Who	What they are	Stance	What they have said, and where
Robert Jenrick MP	Then Shadow Justice Secretary; Reform UK from January 2026	For abolition	Announced at Conservative Party conference on 6 October 2025 that a Conservative government would abolish the Sentencing Council and return sentencing policy to ministers. [verified] itv.com
David Spencer, Policy Exchange	Head of Crime and Justice	For curtailment	"Two-Tier Justice", 31 March 2025: abolish the new Imposition guideline by Act of Parliament and require parliamentary confirmation of future guidelines. [verified] policyexchange.org.uk/publication/two-tier-justice
Dr Jake Scott	Writer, CapX	For abolition	Argues the Council is an inappropriate delegation of democratic authority, 3 April 2025. [verified] capx.co
Shabana Mahmood MP	Lord Chancellor to September 2025	For curtailment	Demanded the Council overturn its March 2025 Imposition guideline; the Sentencing Guidelines (Pre-sentence Reports) Act 2025 received Royal Assent on 19 June 2025 and bars personal characteristics from pre-sentence report guidance. [verified] legislation.gov.uk
Lord Justice William Davis	Then Chairman of the Sentencing Council	Against curtailment	Letter to the Lord Chancellor, 10 March 2025, defending the guideline's evidential basis and the Council's independence. [verified] sentencingcouncil.org.uk
Magistrates' Association	Representative body for magistrates	Mixed	Tom Franklin backed the use of pre-sentence reports and flagged "widespread concern about disparities in sentencing outcomes", 6 March 2025. [verified] magistrates-association.org.uk
Kirsty Brimelow KC	Vice Chair, Bar Council	Against	The proposed legislation "appears to be striding in the wrong direction"; rejected the "two-tier sentencing" framing, 16 April 2025.

Who	What they are	Stance	What they have said, and where
			[verified] barcouncil.org.uk
The Secret Barrister	Anonymous legal commentator	Against curtailment	Accused the proposals of resting on misrepresentation of what the guideline said, 2 April 2025. [verified] thesecretbarrister.com
Matthew Gill, Institute for Government	Whitehall think tank	Against curtailment	Urged the Lord Chancellor to reverse the "democratic lock" requiring ministerial sign-off on guidelines, 11 September 2025. [verified] instituteforgovernment.org.uk
The Law Society	Professional body for solicitors	Mixed	Argues guidelines have driven sentence inflation and proposes an across-the-board cut in sentence length rather than dismantling the Council. [verified] lawsociety.org.uk

⚠ Parliament has already acted twice on this measure. The Sentencing Guidelines (Pre-sentence Reports) Act 2025 (Royal Assent 19 June 2025) and the "democratic lock" in the Sentencing Act 2026 together mean the ground has moved since the programme was written. **Abolition is now a third step after two that have already been taken**, and the measure should say which of them it treats as sufficient.

Likely to engage, position not stated

Who	What they are	Why they will engage
Howard League for Penal Reform	Penal reform charity	Engaged throughout the Independent Sentencing Review
Prison Reform Trust	Penal reform charity	Gave evidence to the Review and on the Bill
Criminal Bar Association	Practitioners' body	Direct stakeholder in guideline-making
Lady Chief Justice	Head of the judiciary	Gives annual evidence on judicial independence
Sentencing Academy	Specialist research body	Produced dedicated briefings on the 2025 Bill
Ministry of Justice	Government department	Holds the policy and the statutory levers

M-12 · The Great Repeal as a single instrument

⚠ ⚠ No organisation has taken a position on this measure, because no organisation has been shown it. What follows is therefore different in kind from the eleven maps above: it is the set of bodies whose published work on *omnibus constitutional legislation and retrospective effect* determines how this measure would be received. **They are the audience, not yet the opposition.**

On the record — on the technique, not on this proposal

Who	What they are	Stance on the technique	What they have said, and where
Dr Ronan Cormacain	Consultant legislative counsel	Against legislating a fact	On the Safety of Rwanda Bill, 11 December 2023: "Legislation is not meant to set out facts, it is meant to set out law... Parliament makes law, courts

Who	What they are	Stance on the technique	What they have said, and where
			determine facts." [verified] ukconstitutionallaw.org
House of Lords Constitution Committee	Parliamentary committee	Against, as applied to that Bill	Found the deeming clause "could be interpreted as a breach of the separation of powers" and that ousting judicial review "reduces access to justice", February 2024. [verified] publications.parliament.uk
Professor Yossi Nehushtan and Faye Thomas	Legal academics, Keele	Against retrospective rule-making	Retrospective rules "fail to guide people's behaviour" and undermine the rule of law, 27 May 2026. [verified] ukconstitutionallaw.org
Joel Blackwell, Hansard Society	Parliamentary scrutiny think tank	Sceptical of omnibus constitutional Bills	Warned the 2016 Great Repeal Bill risked "government by ministerial diktat" through skeleton-Bill Henry VIII powers, 20 October 2016. [verified] hansardsociety.org.uk
Richard Tice MP	Deputy Leader, Reform UK	For the form	Announced a Reform UK "Great Repeal Bill" on 24 February 2026 — directed at employment and rental law, not at these twelve measures. [corroborated, unchecked]
Alasdair McDiarmid, Community	Trade union	Against that Bill	Called it a "bonfire of rights", February 2026. [verified] community-tu.org

Likely to engage, position not stated

Who	What they are	Why they will engage
Hansard Society	Authority on delegated legislation and scrutiny quality	Wrote the standard critique of the last Bill of this shape
Delegated Powers and Regulatory Reform Committee	Lords committee	Reports on Henry VIII powers in every Bill
Bingham Centre for the Rule of Law	Runs rule-of-law monitoring of legislation	Institutional mandate to assess Bills of this kind
Public Law Project	Legal charity	Intervenes on ouster clauses and deeming provisions
Professor Mark Elliott; Professor Alison Young	Constitutional scholars, Cambridge	Wrote the standard commentary on the EU (Withdrawal) Act and the Retained EU Law Act
Constitution Unit, UCL	Constitutional research centre	Its core subject
Professor Vernon Bogdanor	Constitutional historian, KCL	The most-quoted commentator on constitutional change

The three precedents any drafter will be pointed at: the European Union (Withdrawal) Act 2018 and the Retained EU Law (Revocation and Reform) Act 2023 as omnibus instruments, and the Safety of Rwanda (Asylum and Immigration) Act 2024 as the modern example of legislating a fact. Volume 2 Part 7.9 works the measure itself; this is who will be reading it.

What the corpus returned when each measure was matched against parliamentary business. It is included because the method is more instructive than the result.

⚠️ Read this before the tables

Two of the twelve measures returned a real division. Eight returned a single early day motion. Two returned nothing at all.

⚠️ **The eight single names are a gap in the corpus, not a fact about the measures.** The record holds 60,995 early day motions and, for each, only the member who tabled it — against the 2,125,547 signatories Parliament publishes. An early day motion target can therefore only ever return one name.

⚠️ **And several of the eight are the wrong subject.** The match from a broad proposal to specific parliamentary business is a phrase match. On this run the arm's-length body estate matched a motion about advertising standards on the words "*advertising standards*"; the civil service measure and the diversity measure both matched the same motion — about **Civil Service pensions** — on the words "*civil service*"; and charity campaigning matched a motion about publicly funded buildings on "*publicly funded*".

Conclusion: this cannot be published as a per-measure register of supporters and opponents, and it is not offered as one. 8.1 above is where that question is answered. What follows is useful for the two division-backed measures, as a list to work down and confirm.

The two divisions, in short

Key	Division	House	Date	Result
ECHR-TMR	European Convention on Human Rights (withdrawal): Ten Minute Rule Motion	Commons	29 October 2025	Ayes 96, Noes 154
PSR-BILL	Sentencing Guidelines (Pre-sentence Reports) Bill	Lords	4 June 2025	Division 3317

Records: votes.parliament.uk/Votes/Commons/Division/2159 and [/Votes/Lords/Division/3317](https://votes.parliament.uk/Votes/Lords/Division/3317).

⚠️ **The name lists below are partial and alphabetical.** 254 members have a record against ECHR-TMR and 189 against PSR-BILL; the run returned the first 40 of each in alphabetical order. **The party split shown is therefore the split of an alphabetical sample, not of the vote.** For ECHR-TMR the actual result is in the table above; do not compute one from the names.

M-01 · The Human Rights Act — ECHR-TMR

40 of the full list, alphabetically. ⚠️ *Each name needs confirming against the division record before use.*

Voted for**** — 9 of the 40 listed

- *Conservative* (7) — Alan Mak; Alex Burghart; Alison Griffiths; Andrew Bowie MP; Andrew Griffith MP; Andrew Rosindell; Aphra Brandreth
- *Independent* (2) — Mr Rupert Lowe; Patrick Spencer

Voted against**** — 31 of the 40 listed

- *Labour* (12) — Abtisam Mohamed; Afzal Khan; Alex Mayer; Alex Sobel; Alison Hume; Amanda Hack; Andrew Cooper; Andy Slaughter; Anneliese Midgley; Apsana Begum; Bambos Charalambous; Bell Ribeiro-Addy
- *Independent* (10) — Brian Leishman; Chris Hinchliff; Iqbal Mohamed MP; Jeremy Corbyn MP; Mr Adnan Hussain; Ms Diane Abbott; Ms Rachael Maskell; Neil Duncan-Jordan MP; Shockat Adam; Zarah Sultana
- *Liberal Democrat* (6) — Adam Dance; Alex Brewer; Alison Bennett; Andrew George; Anna Sabine; Ben Maguire

- *Plaid Cymru* (2) — Ann Davies; Ben Lake MP
- *Green Party* (1) — Adrian Ramsay

M-11 · The Sentencing Council — PSR-BILL

40 of the full list, alphabetically. ⚠ Each name needs confirming against the division record before use.

Voted for**** — 15 of the 40 listed

- *Liberal Democrat* (8) — Baroness Bakewell Of Hardington Mandeville; Baroness Benjamin; Baroness Bonham-Carter of Yarnbury; Baroness Bowles of Berkhamsted; Baroness Brinton; Baroness Doocey; Baroness Garden of Frognal; Baroness Grender
- *Crossbench* (5) — Baroness Hollins; Lord Carter of Haslemere; Lord Meston; Lord Skidelsky; The Baroness O'Loan DBE MRJA
- *Green Party* (1) — Baroness Bennett of Manor Castle
- *Non-affiliated* (1) — Lord Paddick

Voted against**** — 25 of the 40 listed

- *Labour* (17) — Barbara Keeley; Baroness Alexander of Clevedon; Baroness Anderson of Stoke-on-Trent; Baroness Andrews; Baroness Armstrong of Hill Top; Baroness Blackstone; Baroness Blake of Leeds; Baroness Boustead; Baroness Caine of Kentish Town; Baroness Carberry of Muswell Hill; Baroness Donaghy; Baroness Drake; Baroness Elliott of Whitburn Bay; Baroness Gale; Baroness Golding; Baroness Goudie; Baroness Gray of Tottenham
- *Crossbench* (7) — Baroness Falkner of Margravine; Lord Carlile of Berriew; Lord Hampton; Lord Hardie; Lord Hogan-Howe; Lord Sentamu; Lord Young of Old Windsor
- *Non-affiliated* (1) — Lord Brennan

The eight measures that returned one early day motion

⚠ Every row here is a single member who tabled a motion. It is not a supporter, and where the "matched on" column looks wrong, it is wrong. Read the fourth column before the first.

Measure	Who tabled it	The motion, and its date	Matched on
M-02 Equality Act	Andrew Rosindell	Consequences of the Equality Act 2010 (2025-07-22)	"equality act 2010"
M-03 Supreme Court	Mr Gregory Campbell	Supreme Court judgment on religious education in Northern Ireland (2025-11-24)	"supreme court"
M-04 Arm's-length bodies	Sir Gary Streeter	ADVERTISING STANDARDS AUTHORITY AND RELIGIOUS LIBERTY (2012-06-13)	⚠ "advertising standards"
M-05 Judicial review	Liz Saville Roberts	Judicial review on miscarriages of justice between 1982 and 2016 (2023-05-02)	"judicial review"
M-06 Civil service	Freddie van Mierlo	Civil Service pensions (2026-06-01)	⚠ "civil service"
M-07 Bank of England	Mrs Teresa Gorman	Independence of the Bank of England (1989-12-05)	"independence of the bank"
M-08 Diversity practice	Freddie van Mierlo	Civil Service pensions (2026-06-01)	⚠ "civil service"
M-10 Charity campaigning	Andrew Rosindell	Maintaining institutional neutrality of publicly funded buildings and spaces (2025-06-12)	⚠ "publicly funded"

M-09 (gender self-identification) and M-12 (the Great Repeal) resolved to no parliamentary target at all. For M-09 that is a retrieval failure rather than an absence — the subject has been before both Parliaments repeatedly. For M-12 it is correct: there is no parliamentary business corresponding to an omnibus Bill that has not been introduced.

 **Nothing in 8.2 is a finding.** Every row is a lead requiring confirmation against the linked record.

PART 9

THE RESEARCH

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The panel's vocabulary

Every heading the panel can draw, in the order it draws them. A heading with nothing under it is shown with the reason it is empty, because "we looked and found nothing" and "we never asked" are different facts.

#	Heading	What it is looking for
1	How hard will this be to achieve?	what stands in the way of this actually happening — the barriers, how likely it is to succeed, and what is most likely to go wrong
2	Cost and duration	what implementing this would cost, over what period, what it would save or return, and the assumptions each figure rests on — a purely financial view, which leaves out the human costs and benefits entirely
3	What the law says now	the Acts, instruments and existing powers that govern this today
4	What else refers to this law	other provisions in the statute book that point at the enactment this proposal would change, grouped by what each kind of reference does and what it would need
5	How the courts have read it	judgments construing the provisions this proposal turns on
6	What was tried before — and what happened	comparable measures actually tried, what they were predicted to do, and what a review found
7	Where this mechanism works elsewhere	the same problem solved in another sector, industry or country
8	Who has argued about this	committees, inquiries and debates that have already examined this problem
9	Key people and groups likely to support or oppose	how members have actually voted, what they have declared and which committees they sit on — the record, not a forecast
10	The numbers	whether the problem is measured anywhere, by whom, and at what scale
11	What's devolved	whether this is reserved or devolved, and what follows for the vehicle
12	Key sources	the two or three things worth reading before anything else, and why each one

M-01 — Human Rights Act 1998 and the European Convention on Human Rights

136 entries across **9 of 13 headings**. ⚠️ **6 entries resolve to no heading** and are listed at the end — a gap in the library, not sources to drop.

How hard will this be to achieve?

This module can be run when the strategic kernels have been properly reviewed.

Cost and duration

The module calculating the costs and benefits of proposed measures is under development. It will aim to contribute to a better balance between those who benefit from legislation and those who pay for it, both taxpayers and those who pay the price of bureaucratic inefficiency and the regulatory burden.

What the law says now

1. [Declaration of Incompatibility: Limited Power](#) — Court of Session: 2009csoh91 s m as guardian of the child j m v advocate general for scotland acting on behalf of the uk government (2009-06-25, 17 years old ☺)
2. [Declaration of Incompatibility: Scope](#) — Human Rights Act 1998, s.4 (1998)
3. [Declaration of Incompatibility: Application to Legislation](#) — Northern Ireland Human Rights Commission's Application and JR295's Application and In the the matter of The Illegal Migration Act 2023 (2024-05-13. ☺)
4. [Declaration of Incompatibility: Effect on Parliament](#) — Criminal Justice and Court Services Bill — HUMAN RIGHTS (JOINT COMMITTEE) (2000-11-30, 25 years old ☺)
5. [Declaration of Incompatibility: Historical Usage](#) — JUSTICE — Human Rights (2011-03-17)
6. [European Convention on Human Rights \(ECHR\): Incorporation into UK Law](#) — Human Rights Act 1998, sch.1 Pt.I Ch.1 para.1 (1998)
7. [European Convention on Human Rights \(ECHR\): Specific Rights](#) — Human Rights Act 1998, sch.1 Pt.I Ch.1 para.1 (1998, 28 years old ☺)
8. [European Convention on Human Rights \(ECHR\): Relevance in UK Casework](#) — Considering human rights claims: caseworker guidance (2009-10-27, 16 years old ☺)
9. [European Court of Human Rights \(ECtHR\): Success of HRA](#) — Legislative Scrutiny: Bill of Rights Bill — BOR0015 (2022-09-23)
10. [Good Friday Agreement: ECHR Requirement](#) — JUSTICE — British Bill of Rights (2016-04-26, 10 years old ☺)
11. [Human Rights Act 1998: Convention Rights](#) — Human Rights Act 1998, s.1 (1998)
12. [Human Rights Act 1998: Parliamentary Sovereignty](#) — Human Rights Act (2002-10-28)
13. [Human Rights Act 1998: Judicial Review](#) — Court of Session: 2009csoh91 s m as guardian of the child j m v advocate general for scotland acting on behalf of the uk government (2009-06-25)
14. [Parliamentary Sovereignty: Preserved by HRA](#) — Criminal Justice and Court Services Bill — HUMAN RIGHTS (JOINT COMMITTEE) (2000-11-30)
15. [Parliamentary Sovereignty: Declaration of Incompatibility](#) — Terrorist Offenders (Restriction of Early Release) Bill — Clause 1 - Eligibility for release on licence of terrorist prisoners: England and Wales (2020-02-12, 6 years old ☺)
16. Terms of art the record confirms (*undated — no source record*)
17. [Human Rights Act 1998 incorporates ECHR into domestic law](#) — Human Rights Act 1998, s.3 (1998)
This section of the Human Rights Act 1998 outlines the interpretive duty of courts to read legislation compatibly with Convention rights, which is a core mechanism the proposal seeks to remove.
18. [Courts must 'take into account' ECtHR judgments](#) — Human Rights Act 1998, s.3 (1998, 28 years old ☺)
This section of the Human Rights Act 1998 outlines the interpretive duty of courts to read legislation compatibly with Convention rights, which is a core mechanism the proposal seeks to remove.
19. [Interpretive duty under HRA Section 3](#) — Human Rights Act 1998, s.3 (1998, 28 years old ☺)
This section of the Human Rights Act 1998 outlines the interpretive duty of courts to read legislation compatibly with Convention rights, which is a core mechanism the proposal seeks to remove.
20. [Declarations of incompatibility \(Dols\) do not invalidate legislation](#) — Human Rights Act 1998, s.4 (1998, 28 years old ☺)

This section of the Human Rights Act 1998 outlines the power of courts to make a declaration of incompatibility, which is a key mechanism the proposal seeks to circumvent by repealing the Act.

21. [Ministerial power to take remedial action after DoI](#) — Human Rights Act 1998, s.10 (1998)

This section of the Human Rights Act 1998 outlines the power to take remedial action following a declaration of incompatibility, a mechanism the proposal seeks to eliminate.

22. [Legislative and Regulatory Reform Act 2006 cannot amend HRA](#) — Legislative and Regulatory Reform Act 2006, s.8 (2006)

This section of the Legislative and Regulatory Reform Act 2006 explicitly states that an order under that Part cannot amend or repeal the Human Rights Act 1998, indicating that a new primary legislative vehicle would be required for the proposal.

23. [Government commitment not to amend or repeal HRA](#) — PRIME MINISTER — Sex Offenders Register (2011-02-16, 15 years old ⓪)

This debate excerpt directly addresses the tension between the Human Rights Act and parliamentary decision-making, which is the core problem the proposal aims to solve.

24. [Conservative party commitment to change human rights framework](#) — JUSTICE — Topical Questions (2012-12-18, 13 years old ⓪)

This debate excerpt indicates a political commitment to ensuring international human rights frameworks do not 'inappropriately intrude on democratic decisions,' aligning with the proposal's objective.

25. [Parliament has the final decision on some HRA applications](#) — PRIME MINISTER — Sex Offenders Register (2011-02-16, 15 years old ⓪)

This debate excerpt directly addresses the tension between the Human Rights Act and parliamentary decision-making, which is the core problem the proposal aims to solve.

26. [Previous proposals to repeal HRA and remain in ECHR](#) — PRAYERS — Human Rights Act 1998 (Repeal and Substitution) Bill (2013-03-01, 13 years old ⓪)

This debate refers to a 'Human Rights Act 1998 (Repeal and Substitution) Bill,' indicating a past legislative attempt to make significant changes to the UK human rights framework, which is relevant to the current proposal.

27. [Government consultation on HRA reform and Bill of Rights](#) — Justice — Human Rights Act 1998 (Amendment) (2021-06-29, 5 years old ⓪)

This debate mentions the independent Human Rights Act review, which examined the Act's operation and potential changes, providing context for previous government considerations related to the proposal.

28. [Human Rights Act 1998 incorporates ECHR into domestic law](#) — Human Rights Act 1998, s.3 (1998)

This section of the Human Rights Act 1998 establishes the interpretive duty for UK courts to read legislation compatibly with Convention rights, which the proposal seeks to remove.

29. [Courts must 'take into account' ECtHR judgments](#) — Human Rights Act 1998, s.2 (1998, 28 years old ⓪)

This section of the Human Rights Act 1998 mandates courts to 'take into account' judgments of the European Court of Human Rights, which is a key provision the proposal seeks to remove to end the UK's submission to the Strasbourg court.

30. [Interpretive duty under HRA Section 3](#) — Human Rights Act 1998, s.3 (1998, 28 years old ⓪)

This section of the Human Rights Act 1998 establishes the interpretive duty for UK courts to read legislation compatibly with Convention rights, which the proposal seeks to remove.

31. [Declarations of incompatibility \(Dols\) under HRA Section 4](#) — Human Rights Act 1998, s.4 (1998, 28 years old )

This section of the Human Rights Act 1998 establishes the power of courts to make a declaration of incompatibility, which is a key mechanism the proposal seeks to eliminate to restore parliamentary supremacy.

32. [Unlawful acts by public authorities under HRA Section 6](#) — Human Rights Act 1998, s.6 (1998, 28 years old )

This section of the Human Rights Act 1998 makes it unlawful for a public authority to act incompatibly with a Convention right, which is a core provision the proposal seeks to repeal to remove domestic enforceability.

33. [Victims and Prisoners Act 2024 disapplies HRA Section 3 in specific contexts](#) — Victims and Prisoners Act 2024, s.69 (2024)

This recent amendment to the Human Rights Act 1998 demonstrates how specific provisions of the HRA can be disapplied for certain categories of prisoners, indicating a legislative mechanism for limiting its scope, which is relevant to the proposal's aim of repeal.

34. [HRA Section 7 allows proceedings for unlawful acts](#) — P v P (Transgender Applicant for Decree of Nullity: Human Rights) (2024-05-21. )

This case law refers to Section 7(1) HRA 1998, which defines who can bring proceedings against a public authority for incompatibility with a Convention right, directly relevant to the enforceability of rights the proposal seeks to remove.

35. [HRA Section 15 defines 'designated reservation'](#) — Human Rights Act 1998, s.15 (1998, 28 years old )

This section of the Human Rights Act 1998 defines 'designated reservation' in relation to the Convention, which is relevant to the UK's international obligations and the process of denunciation under Article 58.

36. [HRA Section 21 defines 'amend' and 'the Convention'](#) — Human Rights Act 1998, s.21 (1998)

This section of the Human Rights Act 1998 defines 'amend' to include 'repeal', which is directly relevant to the proposer's aim of repealing the Act.

37. [Constitutional Reform Act 2005 amended HRA Section 4 and 5](#) — Constitutional Reform Act 2005, sch.9 para.66 (2005)

This amendment to the Human Rights Act 1998, specifically Section 4 (declaration of incompatibility) and Section 5 (right of Crown to intervene), shows how the HRA has been modified, which is relevant to understanding the existing legislative framework that the proposal seeks to repeal.

38. [Extradition Act 2003 references HRA for human rights compatibility](#) — Extradition Act 2003, s.87 (2003)

This section of the Extradition Act 2003 requires a judge to decide whether extradition is compatible with Convention rights, demonstrating how the HRA is embedded in other legislation and would require consequential amendments upon repeal.

39. [Immigration Act 2014 applies HRA Section 6 to Article 8 considerations](#) — Immigration Act 2014, s.19 (2014)

This section of the Immigration Act 2014 inserts a new Part 5A concerning Article 8 of the ECHR, demonstrating how specific Convention rights are integrated into domestic legislation and would require review upon repeal of the HRA and denunciation of the ECHR.

40. [Equality Act 2006 promotes HRA compliance](#) — Equality Act 2006, s.9 (2006)

This section of the Equality Act 2006 encourages public authorities to comply with Section 6 of the Human Rights Act 1998, demonstrating how other legislation relies on the HRA and would require consequential amendments upon repeal.

41. [Scotland Act 1998 protects HRA from Scottish Parliament modification](#) — Human Rights Act — [Mr Clive Betts in the Chair] (2015-06-30)

This debate highlights the concern of the Scottish Parliament regarding the repeal of the Human Rights Act without reference to them, indicating a constitutional implication for devolved administrations that the proposal would need to address.

42. [Northern Ireland Act 1998 references HRA for human rights protection](#) — Northern Ireland Act 1998, s.71 (1998)

This section of the Northern Ireland Act 1998 refers to Section 7 and Section 6(2) of the Human Rights Act 1998, indicating how the HRA is integrated into devolved legislation and would require consequential amendments upon repeal.

43. [Government previously committed not to amend or repeal HRA](#) — JUSTICE — European Convention on Human Rights (2019-03-12)

This debate includes a government statement that they are 'not considering amending or repealing' the Human Rights Act 1998, which highlights a political barrier to the proposed change.

44. [Future Conservative Government intends to withdraw from ECHR and repeal HRA](#) — Council of Europe and the European Convention on Human Rights (2025-11-05. Ø)

This debate directly addresses the core problem identified by the proposer: the perceived constraint on government's ability to control borders, protect veterans, and uphold Parliament's decisions due to the ECHR.

45. [Parliament has final decision on human rights issues](#) — PRIME MINISTER — Sex Offenders Register (2011-02-16, 15 years old Ø)

This debate discusses Parliament having the final decision on the application of the Human Rights Act and the ECHR, which directly relates to the proposer's concern about parliamentary supremacy.

46. [HRA functioning as intended, no compelling case for repeal](#) — Human Rights Legislation Reform — [Yvonne Fovargue in the Chair] (2022-10-24. Ø)

This debate reflects the view that the Human Rights Act is functioning as intended, which represents an opposing viewpoint to the proposal and highlights the political challenge.

47. [Proscribed Organisations Appeal Commission is appropriate tribunal for HRA Section 7 proceedings](#) — The Proscribed Organisations Appeal Commission (Human Rights Act Proceedings) Rules 2001, art.2 (undated)

This statutory instrument designates the Proscribed Organisations Appeal Commission as the appropriate tribunal for Section 7 HRA proceedings, showing how other legal frameworks are integrated with the HRA.

48. [The Human Rights Act 1998 \(Amendment\) Order 2004 amended HRA Section 1\(1\)\(c\) and 21\(1\)](#) — The Human Rights Act 1998 (Amendment) Order 2004, art.2 (2004)

This statutory instrument amends Section 1(1)(c) and Section 21(1) of the Human Rights Act 1998, demonstrating how the Act's definitions and scope can be altered, which is relevant to the proposal's aim of repeal.

49. [The Human Rights Act 1998 \(Amendment\) Order 2005 reflects derogations](#) — Explanatory Memorandum to The Human Rights Act 1998 (Amendment) Order 2005 (undated)

This explanatory memorandum clarifies the Secretary of State's duty under Sections 14(5) and 16(7) of the HRA to amend the Act to reflect derogations and withdrawals, which is relevant to the procedural aspects of denouncing the ECHR.

50. [Falkland Islands Constitution Order 2008 requires courts to consider ECtHR judgments](#) — The Falkland Islands Constitution Order 2008, para.19 (2008)

This statutory instrument for the Falkland Islands Constitution Order 2008 includes a provision for courts to take into account ECHR judgments, demonstrating how the ECHR's influence extends beyond the UK mainland and would be affected by denunciation.

What else refers to this law

1. [41 instruments are recorded as made under ukpga/1998/42 — the strongest kind of reference here](#) — ssi/2000/301 (undated — no source record)

41 instruments are recorded as made under ukpga/1998/42. For 6 of them the words we can quote do not name it. ssi/2000/301: "Scottish Ministers, in exercise of the powers conferred on them by sections 7 and 9 of the Human Rights Act 1998".

2. [346 references — each mentions the target without acting on it. As a kind: needs no action.](#) — anaw/2016/1 schedule-10-paragraph-2 (undated — no source record)

346 references in 295 provisions that mentions the target without acting on it: needs no action. anaw/2016/1 schedule-10-paragraph-2: "available to it, must (amongst other things) have regard to the circumstances set out in paragraphs 4 to 13 to the extent that the court considers them relevant".

3. [259 references — each borrows a definition from the target. As a kind: would need a substitute reference.](#) — anaw/2016/1 section-252 (undated — no source record)

259 references in 236 provisions that borrows a definition from the target: would need a substitute reference. anaw/2016/1 section-252: "cyflogaeth") means a contract of service or apprenticeship, whether express or implied and (if it is express) whether oral or in writing; "Convention rights" ("h".

4. [176 references — each exercises or relies on a power in the target. As a kind: would need a substitute reference.](#) — asp/2001/13 section-8A (undated — no source record)

176 references in 139 provisions that exercises or relies on a power in the target: would need a substitute reference. asp/2001/13 section-8A: "' human rights claim " means a claim that to remove the claimant from, or to require the claimant to leave, the United Kingdom would be unlawful under section 6".

5. [68 references — each amends or repeals part of the target. As a kind: would go with the target.](#) — nisi/2005/255 article-18 (undated — no source record)

68 references in 54 provisions that amends or repeals part of the target: would go with the target. nisi/2005/255 article-18: "paragraph (6) insert—6AParagraph (6) does not have effect to authorise the Authority to make an order as mentioned in sub-paragraph (a) or (b) of that paragraph".

6. [23 references — each brings the target into force, or is named after it. As a kind: needs no action.](#) — ssi/2000/301 article-1 (undated — no source record)

23 references in 20 provisions that brings the target into force, or is named after it: needs no action. ssi/2000/301 article-1: "These Rules may be cited as the Human Rights Act 1998".

7. [20 references — each disapplies, qualifies or overrides the target. As a kind: would need a substitute reference.](#) — ukpga/1983/20 section-142B (undated — no source record)

20 references in 18 provisions that disapplies, qualifies or overrides the target: would need a substitute reference. ukpga/1983/20 section-142B: "that the powers of a public benefit corporation may be delegated to a committee of directors or to an executive director) shall have effect subject to this sect".

8. What this reference search could not see — 2 layers are not searched, and every count here is what we found in the layers we have — Citation graph coverage, generated 2026-09-09 (undated — no source record)

This covers caselaw, statutory instruments (the regulations made under Acts), Acts of Parliament and other instruments. We hold amends, repeals, commences or modifies, from TNA's own effects data — but not in this search, so they are not joined into any number here. We do not hold this at all yet: a treaty article bearing on a domestic provision. There will be further references we cannot see. A repeal or an amendment is not a

citation and is not returned by this query. A change may be prevented by an international obligation this graph cannot see. 25.4% of the references we hold sit in a title, long title, preamble or explanatory note rather than inside a provision — real references, but not provisions that would break. 7.4% point at an instrument we hold no text for, so we can count them and cannot show you what they say. 77 of the Acts referred to here are named by an identifier that fits more than one Act, because two parliamentary sessions can fall inside one calendar year. We refused to guess between them, so those are recorded as refusals — a refusal, not an absence, and not evidence that nothing refers to them. 36.1% of the OLD preamble parser's section-level made-under references were wrong — the effects table still holds those, while the enabling rows quoted here came from the fixed parser (measured 12.2 days ago). 41.3% of the instruments sampled had their scheduled text reach our corpus as well —  a scheduled agreement that was not ingested presents as a SHORT DOCUMENT, not as an error (measured 12.2 days ago). 97,095 act names found in running text resolved to no instrument we hold a title for — short forms that name only a year, and Acts the corpus does not hold. Counted, never dropped (measured 13.6 days ago). Treat any number here as what we found in the layers we have searched, not as a total.

How the courts have read it

1. [Section 3 HRA requires courts to interpret legislation compatibly with Convention rights](#) — Human Rights Act 1998, s.3 (1998)

This is the statutory provision for the interpretive duty of UK courts to read legislation compatibly with Convention rights, which the proposal aims to repeal.

2. [Section 4 HRA allows declarations of incompatibility](#) — Human Rights Act 1998, s.4 (1998, 28 years old )

This is the statutory provision for declarations of incompatibility, a key mechanism the proposal argues is insufficient to restore parliamentary supremacy.

3. [Declarations of incompatibility do not invalidate legislation](#) — Human Rights Act 1998, s.3 (1998, 28 years old )

This is the statutory provision for the interpretive duty of UK courts to read legislation compatibly with Convention rights, which the proposal aims to repeal.

4. Courts treat Section 4 declarations as a last resort — Report: Ninth Report - Legislative Scrutiny: Bill of Rights Bill — Human Rights (Joint Committee) (2023-01-25. )

This committee report discusses the lack of a domestic legal requirement to resolve declarations of incompatibility, highlighting the discretionary nature of Parliament's response to Section 4.

5. Ministerial discretion on remedial action after DoI — Report: Ninth Report - Legislative Scrutiny: Bill of Rights Bill — Human Rights (Joint Committee) (2023-01-25. )

This committee report discusses the lack of a domestic legal requirement to resolve declarations of incompatibility, highlighting the discretionary nature of Parliament's response to Section 4.

6. [Courts must 'take into account' ECtHR judgments](#) — Human Rights Act 1998, s.2 (1998, 28 years old )

This is the statutory provision requiring courts to 'take into account' ECtHR judgments, which the proposal seeks to remove as a source of judicial influence.

7. [Section 3 HRA is the 'linch-pin' of the Act](#) — Wilkinson v Kitzinger & Ors (2006-07-31)

This case identifies Ghaidan v Godin-Mendoza as the 'leading case' on the relationship between Section 3 and Section 4, and quotes Lord Steyn describing Section 3(1) as the 'linch-pin' of the HRA, which significantly widens the interpretive duty and is central to the proposal's concerns.

8. [Section 3 HRA allows 'reading in' and 'reading down'](#) Vol_1_(Jan_1909)_to_2004/S5LV0584P0.zip) — Lords: Human Rights Bill [H.L.] (1998-01-19, 28 years old )

This debate discusses courts 'reading in and reading down' legislation to comply with human rights, directly referencing the interpretive methods under Section 3.

9. Section 3 HRA does not undermine parliamentary sovereignty — Report: Ninth Report - Legislative Scrutiny: Bill of Rights Bill — Human Rights (Joint Committee) (2023-01-25. Ø)

This committee report argues that Section 3 HRA does not undermine parliamentary sovereignty and should not be repealed, directly opposing the proposal's rationale.

10. [Section 3 HRA can be disapplied by primary legislation](#) — Victims and Prisoners Act 2024, s.69 (2024)

This legislation explicitly disapplies Section 3 of the Human Rights Act 1998 for life prisoners, representing a direct legislative attempt to narrow the interpretive duty of courts in a specific area, which is highly relevant to the proposal's aim.

11. [Disapplication of Section 3 HRA implies potential human rights breach](#) — Victims and Prisoners Bill - Report (4th Day) (Continued) — Amendment 150 (2024-05-21)

This debate discusses the disapplication of Section 3, implying a legislative attempt to narrow its interpretive scope, which is directly relevant to the proposal's aim.

12. [Section 6 HRA makes public authority acts incompatible with Convention rights unlawful](#) — Human Rights Act 1998, s.6 (1998, 28 years old Ø)

This is the statutory provision making it unlawful for public authorities to act incompatibly with Convention rights, which the proposal seeks to remove.

13. [Section 7 HRA allows individuals to bring proceedings](#) — YA(F) and A Local Authority & Ors (2010-09-02, 16 years old Ø)

This case construes Section 6(1) and 7(1) of the HRA regarding unlawful acts by public authorities and the ability to bring proceedings, clarifying the scope of judicial intervention.

14. [The 'take into account' duty under Section 2 has been extended to 'follow'](#) — Immigration Bill — New Clause 11 — Supplementary provision (2014-01-30, 12 years old Ø)

This debate clarifies the distinction between Section 3 (interpretive duty) and Section 2 (taking into account ECtHR judgments), which are both central to the proposal.

15. [Ghaidan v Godin-Mendoza \[2004\] 2 AC 557: Section 3 HRA allows broad interpretation](#) — Wilkinson v Kitzinger & Ors (2006-07-31)

This case identifies Ghaidan v Godin-Mendoza as the 'leading case' on the relationship between Section 3 and Section 4, and quotes Lord Steyn describing Section 3(1) as the 'linch-pin' of the HRA, which significantly widens the interpretive duty and is central to the proposal's concerns.

16. [R v Bourne \[1938\] 3 All ER 615: Pre-HRA interpretive precedent](#) — The Northern Ireland Human Rights Commission's Application (2015-12-16)

This case construes Section 3(1) of the HRA, stating that 'only in the last resort should a court conclude that a compatible construction is impossible,' which widens the interpretive duty and is central to the proposal's concern about judicial activism.

17. [McR for Judicial Review \[2002\] NIQB 58: Declaration of incompatibility issued](#) — In the Matter of an Application by McR for Judicial Review (2002-01-15)

This case makes a declaration of incompatibility, demonstrating the application of Section 4 of the HRA.

18. [The Northern Ireland Human Rights Commission and JR 295's Applications \[2024\] NIKB 44: Disapplication of HRA sections](#) — The Northern Ireland Human Rights Commission and JR 295's Applications and In the matter of the Illegal Migration Act 2023 (2024-05-31)

This case upholds judicial review claims relying on the Human Rights Act 1998, demonstrating its continued enforceability and the judicial role in interpreting its provisions.

What was tried before — and what happened

 Questions filed here that did **not** run on this draft: Whether this has been tried before

1. [HRA aimed to enable domestic claims](#) (2021-03-26)

This oral evidence discusses the aim of the Human Rights Act to allow individuals to bring claims in domestic courts without recourse to Strasbourg, directly addressing the original purpose of the HRA.

2. [HRA intended to ensure compliance with ECHR](#) — ADVOCATE-GENERAL — Human Rights (2003-03-11)

This debate excerpt from 2003 states that the government introduced the Human Rights Act 1998 because they 'always give serious thought to human rights issues,' providing insight into the original motivation.

3. [HRA aimed for domestic interpretation of Convention rights](#) — Orders of the Day — Human Rights Bill [Lords] (1998-02-16)

This debate from 1998 during the HRA's passage discusses concerns about privacy laws and the binding nature of European Court of Human Rights decisions, directly addressing the issue of judicial authority.

4. [Declarations of incompatibility expected to be rare](#) — The Northern Ireland Human Rights Commission's Application (2015-12-16, 10 years old)

This judgment notes that during the HRA's passage, promoters envisaged declarations of incompatibility would be rare, which bears on the original intent regarding judicial power versus parliamentary sovereignty.

5. [Declarations of incompatibility prompt legal change](#) — CASE OF BURDEN AND BURDEN v. THE UNITED KINGDOM (2006-12-12, 19 years old)

This case refers to the Lord Chancellor's explanation during the passage of the Human Rights Bill regarding avenues for addressing incompatibility, which is crucial for understanding the original intent behind the HRA's mechanisms.

6. [HRA Section 3 intended to ensure compatibility](#) — HOBBS v. THE UNITED KINGDOM (2002-06-18, 24 years old)

This case refers to Section 3(1) of the HRA, which provides for legislation to be read compatibly with Convention rights, illustrating the deliberate mechanism for interpretation within the Act.

7. [HRA Section 4 does not invalidate incompatible laws](#) — Hai Zhang and SSHD, MOJ & DOJ E&W (2024-05-10.)

This judgment reiterates that a declaration of incompatibility does not affect the validity or enforcement of the provision, confirming the deliberate design of Section 4 to preserve parliamentary sovereignty.

8. [Parliamentary sovereignty maintained through Section 4](#) — Minton Morrill Solicitors, R (On the Application Of) v The Lord Chancellor (2017-03-24, 9 years old)

This case law clarifies that domestic courts must apply domestic legislation even if incompatible with Convention obligations if it cannot be 'read down' under section 3, highlighting the deliberate limitation on judicial power to override primary legislation.

9. [Legislature and courts share role in assessing compatibility](#) — Conway, R (On the Application Of) v The Secretary of State for Justice (Rev 1) (2017-04-12)

This case discusses the 'margin of appreciation' under the HRA, indicating a deliberate design to allow both the legislature and courts a role in assessing law compatibility at the domestic level.

10. [HRA was a Labour party initiative](#) — Resource Extraction (Transparency and Reporting) — Protection of Freedoms Bill (2011-03-01)

This debate excerpt from 2011 highlights that the Labour party introduced the Human Rights Act 1998, providing context on the political origins and intentions behind its enactment.

11. [HRA does not give courts final word on policy](#) — Hai Zhang and SSHD, MOJ & DOJ E&W (2024-05-10. ©)

This judgment reiterates that a declaration of incompatibility does not affect the validity or enforcement of the provision, confirming the deliberate design of Section 4 to preserve parliamentary sovereignty.

12. [HRA intended to preserve parliamentary sovereignty](#) — CASE OF BURDEN AND BURDEN v. THE UNITED KINGDOM (2006-12-12, 19 years old ©)

This case refers to the Lord Chancellor's explanation during the passage of the Human Rights Bill regarding avenues for addressing incompatibility, which is crucial for understanding the original intent behind the HRA's mechanisms.

Where this mechanism works elsewhere

Nothing under this heading. We looked for the same problem solved in another sector, industry or country, and found nothing. That is a gap in what we could retrieve, not a statement about what exists.

Questions that ran: What other sectors built for the same problem

Who has argued about this

1. [Government has considered withdrawal from ECHR](#) — EUROPEAN CONVENTION ON HUMAN RIGHTS: UK MEMBERSHIP (2016-04-26)

This debate discusses the possibility of UK withdrawal from the ECHR if a satisfactory settlement cannot be achieved, directly bearing on the proposal's objective.

2. [Government previously ruled out ECHR withdrawal while in EU](#) — JUSTICE — British Bill of Rights (2016-04-26)

This debate discusses the government's position on the European Convention on Human Rights, including not ruling out withdrawal forever, which directly relates to the proposal's aim of denunciation.

3. [Government commitment to ECHR and HRA has varied](#) — EUROPEAN UNION (WITHDRAWAL) BILL — Charter of Fundamental Rights – Government Report (2017-11-21)

This debate includes a government statement that there are 'no plans to withdraw from the ECHR, or to revise or repeal the Human Rights Act', which directly contradicts the proposal's aim and indicates political obstacles.

4. [Conservative party manifesto position on HRA and ECHR](#) — Human Rights in the UK — [Mike Gapes in the Chair] (2019-02-13)

This debate quotes a previous statement by Theresa May advocating leaving the ECHR and its jurisdiction, directly supporting the rationale for the proposal and indicating a past political stance.

5. [Previous attempts at HRA reform or repeal](#) — Victims and Prisoners Act 2024, s.69 (2024)

This section of the Victims and Prisoners Act 2024 explicitly disapplies Section 3 of the Human Rights Act 1998 in specific contexts, demonstrating a legislative move towards limiting the HRA's domestic application, which is a partial, incremental change related to the proposal's problem.

6. [Independent Review of the Human Rights Act](#) — European Convention on Human Rights: 75th Anniversary - Motion to Take Note (2025-03-20)

This debate mentions Sir Peter Gross's independent review of the Human Rights Act, which recommended a programme of civic and constitutional education on human rights, indicating a formal examination of the HRA and potential ways forward.

7. [Consultation on HRA Reform: A Modern Bill of Rights](#) — Consultation — Human Rights Act Reform: A Modern Bill of Rights (ministry-of-justice) (2022-04-20)

This consultation document outlines the government's proposals for Human Rights Act reform and a modern Bill of Rights, which represents a direct examination of alternatives to the current framework and was a precursor to the shelved Bill of Rights Bill 2022 mentioned by the proposer.

8. [Concerns about HRA repeal and the Good Friday Agreement](#) — PETITION - WELLINGTON RAILWAY STATION — European Convention on Human Rights (2016-05-09, 10 years old)

This debate acknowledges the interrelationship of the ECHR with the Belfast Agreement and states that the reform agenda is 'not about eroding people's rights', which highlights a key concern and potential obstacle to the proposal.

9. [Arguments for retaining the HRA](#) — Twenty years of the Human Rights Act inquiry — HRA0036 (2018-10-24, 7 years old)

This written evidence to the 'Twenty years of the Human Rights Act' inquiry describes how the HRA underpins work to shift organisational cultures to be rights-respecting, providing evidence of the HRA's impact that the proposal seeks to reverse.

10. [Perception of the HRA's impact](#) — Enforcing Human Rights — AET0017 (2018-02-21, 8 years old)

This written evidence to the 'Enforcing Human Rights' inquiry champions the HRA and argues for its retention, presenting an argument against the proposal's objective.

11. [Parliamentary debate on legal supremacy of UK Supreme Court](#) — Human Rights Legislation Reform — [Yvonne Fovargue in the Chair] (2022-10-24)

This debate discusses the legal supremacy of the UK Supreme Court over ECHR rulings and the ditching of the Bill of Rights Bill, directly addressing the core problem of judicial authority and previous attempts at reform.

12. [Scottish Parliament concerns over HRA repeal](#) — Scottish Parliament: Scottish Human Rights Commission and Equality and Human Rights Commission (2019-05-16)

This Scottish Parliament debate discusses the possibility of weakening accountability for human rights through changes to the 1998 Act and the lack of assurances against its repeal or reform, directly addressing concerns related to the proposal.

13. [Government commitment not to amend or repeal HRA](#) — JUSTICE — European Convention on Human Rights (2019-03-12)

This debate includes a government statement that they are 'not considering amending or repealing' the Human Rights Act, which directly contradicts the proposal's aim and indicates political obstacles.

Key people and groups likely to support or oppose

1. [Brian Leishman — recorded acts bearing on “European Convention on Human Rights \(withdrawal\): Ten Minute Rule Motion”](#) — Position graph, method 3c.7bac2c10d652, computed 2026-09-04 (2025-10-29)

Matched to this proposal on the phrase “european convention on human”. Most recent recorded act: 2025-10-29, against “European Convention on Human Rights (withdrawal): Ten Minute Rule Motion”. 1 recorded act in total, listed in full in the long report.

2. [Chris Hinchliff — recorded acts bearing on “European Convention on Human Rights \(withdrawal\): Ten Minute Rule Motion”](#) — Position graph, method 3c.7bac2c10d652, computed 2026-09-04 (2025-10-29)

Matched to this proposal on the phrase “european convention on human”. Most recent recorded act: 2025-10-29, against “European Convention on Human Rights (withdrawal): Ten Minute Rule Motion”. 1 recorded act in total, listed in full in the long report.

3. [Iqbal Mohamed MP — recorded acts bearing on “European Convention on Human Rights \(withdrawal\): Ten Minute Rule Motion”](#) — Position graph, method 3c.7bac2c10d652, computed 2026-09-04 (2025-10-29)

Matched to this proposal on the phrase “european convention on human”. Most recent recorded act: 2025-10-29, against “European Convention on Human Rights (withdrawal): Ten Minute Rule Motion”. 1 recorded act in total, listed in full in the long report.

4. [Jeremy Corbyn MP — recorded acts bearing on “European Convention on Human Rights \(withdrawal\): Ten Minute Rule Motion”](#) — Position graph, method 3c.7bac2c10d652, computed 2026-09-04 (2025-10-29)

Matched to this proposal on the phrase “european convention on human”. Most recent recorded act: 2025-10-29, against “European Convention on Human Rights (withdrawal): Ten Minute Rule Motion”. 1 recorded act in total, listed in full in the long report.

5. [Mr Adnan Hussain — recorded acts bearing on “European Convention on Human Rights \(withdrawal\): Ten Minute Rule Motion”](#) — Position graph, method 3c.7bac2c10d652, computed 2026-09-04 (2025-10-29)

Matched to this proposal on the phrase “european convention on human”. Most recent recorded act: 2025-10-29, against “European Convention on Human Rights (withdrawal): Ten Minute Rule Motion”. 1 recorded act in total, listed in full in the long report.

6. What this section does not cover — our record of recorded divisions of the House of Commons begins 2016-03-09, and 2 signal types have no source data — Position graph coverage, generated 2026-09-04 (*undated — no source record*)

Our record of recorded divisions of the House of Commons begins 2016-03-09; 2 signal types (seats held on select and public bill committees; amendments a member put their name to) have no source data at all; and the stance estimates have never been scored against a verified answer key. The full statement is in the long report.

The numbers

1. [HRA enables declarations of incompatibility](#) — Human Rights Act 1998, s.4 (1998)

This section of the Human Rights Act 1998 grants domestic courts the power to issue 'declarations of incompatibility', which is a core mechanism the proposal seeks to eliminate.

2. [HRA requires courts to 'take into account' ECtHR judgments](#) — Human Rights Act 1998, s.4 (1998, 28 years old ☺)

This section of the Human Rights Act 1998 grants domestic courts the power to issue 'declarations of incompatibility', which is a core mechanism the proposal seeks to eliminate.

3. [HRA incorporates ECHR into domestic law](#) — Human Rights Act 1998, s.4 (1998)

This section of the Human Rights Act 1998 grants domestic courts the power to issue 'declarations of incompatibility', which is a core mechanism the proposal seeks to eliminate.

4. [Government has previously stated commitment to remain party to ECHR](#) — Ministry of Justice — Deportation: Human Rights (2025-10-21. ☺)

This debate includes a statement that the Human Rights Act 'will remain part of our law', directly contradicting the proposal's aim of repeal and denunciation and indicating political opposition.

5. [Victims and Prisoners Act 2024 disapplies HRA Section 3 in specific contexts](#) — Victims and Prisoners Act 2024, s.70 (2024)

This section of the Victims and Prisoners Act 2024 disapplies Section 3 of the Human Rights Act 1998 in specific contexts, demonstrating a recent legislative move to limit the HRA's domestic application, which aligns with the proposal's diagnosis of judicial overreach.

6. Bill of Rights Bill 2022 aimed to replace HRA but was shelved — Report: Ninth Report - Legislative Scrutiny: Bill of Rights Bill — Human Rights (Joint Committee) (2023-01-25)

This report is a legislative scrutiny of the Bill of Rights Bill, which aimed to replace the HRA, providing a detailed analysis of a significant past attempt at reform that was ultimately shelved.

7. [Repeal of HRA and withdrawal from ECHR is a stated aim for a future Conservative Government](#) — Council of Europe and the European Convention on Human Rights (2025-11-05. Ø)

This debate highlights concerns that the ECHR significantly constrains the government's ability to control borders, protect veterans, and uphold Parliament's decisions, directly supporting the proposal's diagnosis of judicial overreach.

8. [Concerns about weakening human rights protections internationally](#) — Human Rights Legislation Reform — [Yvonne Fovargue in the Chair] (2022-10-24. Ø)

This debate highlights the 'overwhelming lack of support for these radical reforms' and concerns about 'international implications of repealing the Human Rights Act', directly contradicting the feasibility of the proposal and identifying key obstacles.

9. [Debate on HRA reform/repeal is ongoing](#) — PENSIONS — Human Rights (2007-02-19, 19 years old Ø)

This debate explicitly calls for the repeal of the Human Rights Act and withdrawal from the ECHR, directly aligning with the proposal's objective.

10. [Court of Session made Section 4 declaration of incompatibility](#) — Court of Session: 2009csoh91 s m as guardian of the child j m v advocate general for scotland acting on behalf of the uk government (2009-06-25)

This case law demonstrates the practical application of Section 4 of the Human Rights Act 1998, where a declaration of incompatibility was sought, illustrating the judicial power the proposal aims to remove.

11. [HRA Section 3 requires compatible interpretation](#) — The Northern Ireland Human Rights Commission's Application (2015-12-16)

This case law discusses the interpretative duty under Section 3(1) of the HRA, illustrating how courts give meaning to statutory provisions to ensure compatibility with Convention rights, which is a key mechanism the proposal seeks to eliminate.

12. [Government consultation on HRA reform](#) — Consultation — Human Rights Act Reform: A Modern Bill of Rights (ministry-of-justice) (2022-04-20)

This consultation document directly addresses the reform of the Human Rights Act, including the possibility of replacing it with a Bill of Rights, which is a previously considered alternative to the proposal's outright repeal and denunciation.

13. [Repeal of HRA has been proposed in Parliament](#) — PENSIONS — Human Rights (2007-02-19)

This debate explicitly calls for the repeal of the Human Rights Act and withdrawal from the ECHR, directly aligning with the proposal's objective.

14. [HRA is an important part of constitutional arrangements](#) — Ministry of Justice — Deportation: Human Rights (2025-10-21. Ø)

This debate includes a statement that the Human Rights Act 'will remain part of our law', directly contradicting the proposal's aim of repeal and denunciation and indicating political opposition.

15. [Government reviewing Article 8 and Article 3 application in immigration/extradition](#) — Ministry of Justice — Deportation: Human Rights (2025-10-21. Ø)

This debate includes a statement that the Human Rights Act 'will remain part of our law', directly contradicting the proposal's aim of repeal and denunciation and indicating political opposition.

16. [Legislative and Regulatory Reform Act 2006 prevents amendment/repeal of HRA](#) — Legislative and Regulatory Reform Act 2006, s.8 (2006)

This section of the Legislative and Regulatory Reform Act 2006 explicitly prevents orders from amending or repealing the Human Rights Act 1998, highlighting a legislative barrier to the proposal's objective.

17. [Remedial Order 2020 amended HRA Section 9](#) — The Human Rights Act 1998 (Remedial) Order 2020, art.2 (2020)

This statutory instrument amends Section 9 of the Human Rights Act 1998 regarding judicial acts, demonstrating past legislative adjustments to the HRA framework, which the proposal seeks to entirely dismantle.

What's devolved

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

Questions that did **not** run on this draft: Whether this is Westminster's to change

Key sources

This module can be run when the strategic kernels have been properly reviewed.

M-02 — Equality Act 2010

110 entries across **9 of 13 headings**.  **8 entries resolve to no heading** and are listed at the end — a gap in the library, not sources to drop.

How hard will this be to achieve?

This module can be run when the strategic kernels have been properly reviewed.

Cost and duration

The module calculating the costs and benefits of proposed measures is under development. It will aim to contribute to a better balance between those who benefit from legislation and those who pay for it, both taxpayers and those who pay the price of bureaucratic inefficiency and the regulatory burden.

What the law says now

1. [Public Sector Equality Duty \(PSED\) is a statutory mandate](#) — Equality Act 2010, s.149 (2010)

This is the core statutory provision that the proposal seeks to repeal, defining the Public Sector Equality Duty.

2. [Repeal of Section 1 of Equality Act 2010 requires primary legislation](#) — WOMEN AND EQUALITIES — Equality: Public Bodies (2010-11-29)

Ministerial statement indicating the government was 'exploring opportunities to repeal' Section 1 of the Equality Act 2010, which would require primary legislation, showing a historical precedent for considering repeal of equality duties.

3. [No delegated power to repeal Section 149](#) — WOMEN AND EQUALITIES — Equality: Public Bodies (2010-11-29)

Ministerial statement indicating the government was 'exploring opportunities to repeal' Section 1 of the Equality Act 2010, which would require primary legislation, showing a historical precedent for considering repeal of equality duties.

4. [Power to impose specific duties, not repeal general duty](#) — Equality Act 2010, s.155 (2010)

Confers power on a Minister of the Crown to specify matters for public authorities to consider under regulations related to specific equality duties, which could be used to amend or replace aspects of the PSED if not repealed.

5. [Public Sector Equality Duty \(PSED\) established by Equality Act 2010](#) — Equality Act 2010, s.149 (2010)

This is the core statutory provision that the proposal seeks to repeal, defining the Public Sector Equality Duty.

6. [PSED applies to public authorities and those exercising public functions](#) — Report: Report - The Equality Act 2010: the impact on disabled people — Equality Act 2010 and Disability Committee — Engagement with disability organisations was reported to have been good 128 (2016-03-24)

This committee report provides a summary of the General Duty under Section 149 of the Equality Act, outlining its three aims, which are the core obligations the proposal seeks to remove.

7. [Specific duties support the general PSED](#) — Report: 10th Report - Enforcing the Equality Act: the law and the role of the Equality and Human Rights Commission — Women and Equalities Committee (2019-07-30)

This committee report defines the PSED, stating that the general equality duty is set out in section 149 of the Equality Act 2010, confirming the central provision for repeal.

8. PSED is a cross-cutting duty — Government Response: Government response to The Equality Act 2010: the impact on disabled people Follow-up report — Public Sector Equality Duty — Liaison Committee (Lords) (2021-11-29)

This government response states that the PSED is a cross-cutting duty in the Equality Act, applicable to all public settings, implying that any change to Section 149 would require opening up the Act and considering broad impacts.

9. [Judicial review ensures PSED compliance](#) — National Council for Civil Liberties v Equality and Human Rights Commission (2025-06-26. 0)

This case law discusses the judicial interpretation of the 'due regard' duty, emphasizing that it must be exercised in substance and with rigour, which is central to the proposal's argument about judicial oversight and its impact.

10. [PSED is a duty of process, not outcome](#) — R (on the application of Marouf) v Secretary of State for the Home Department (2023-06-28. 0)

This case law discusses the duty to acquire relevant material and rigorous consideration of the PSED, reinforcing the judicial expectation of substantive engagement with the duty, which is central to the proposal's critique.

11. [Schedule 18 contains exceptions to Section 149](#) — Equality Act 2010, s.149 (2010)

This is the core statutory provision that the proposal seeks to repeal, defining the Public Sector Equality Duty.

12. [Ministerial power to amend Schedule 18 exceptions](#) — Equality Act 2010, sch.18 para.5 (2010)

This provision in Schedule 18 of the Equality Act 2010 allows a Minister to amend the Schedule to add, vary, or omit exceptions to Section 149, directly relevant to the proposal's aim to repeal Schedule 18 alongside Section 149.

13. PSED replaced previous equality duties — Report: 2nd Report - The Equality Act 2010: the impact on disabled people Follow-up report — Liaison Committee (Lords) (2021-09-09)

This committee report confirms that the PSED was introduced by section 149 of the Equality Act 2010 and came into force on 5 April 2011, replacing previous duties, providing foundational information for the repeal.

14. [PSED does not extend to Northern Ireland](#) — The Children's Law Centre's Application (2024-01-31)

This case law from Northern Ireland discusses the Section 75 duty of the 1998 Act, which is the nearest analogue to the PSED in Northern Ireland, providing comparative context for the duty's operation and judicial review.

15. [Consequential amendment to School Standards and Framework Act 1998](#) — The Equality Act 2010 (Public Authorities and Consequential and Supplementary Amendments) Order 2011, art.5 (2011)

This statutory instrument makes a consequential amendment to the School Standards and Framework Act 1998, referencing Section 149 of the Equality Act 2010, indicating a provision that would need to be reviewed for consequential amendment upon repeal.

16. [Judicial Review as enforcement of PSED](#) — Government's proposed judicial review reform and access to justice implications — JRR0008 (2013-12-04)

17. [PSED enforceability through Judicial Review](#) — Report: 13th Report - The implications for access to justice of the Government's proposals to reform judicial review — Human Rights (Joint Committee) — HL Paper 174 HC 868 (2014-04-30, 12 years old ☐)

18. [Judicial Review in NI equality schemes](#) — In the matter of an application by Peter Neill for Judicial Review (2006-03-08)

19. [Judicial Review and EHRC enforcement](#) — ehrc tailored review — vol 1 (undated)

20. [Belfast/Good Friday Agreement and NI equality duty](#) — Report: 1st Report - Implementation of the Armed Forces Covenant in Northern Ireland (Report, together with formal minutes, oral and written evidence) — Northern Ireland Affairs Committee — Implementation of the Armed Forces Covenant in Northern Ireland 49 (2013-07-17)

21. [Belfast/Good Friday Agreement as safeguard](#) — Report: 2nd Report - Draft Northern Ireland (Miscellaneous Provisions) Bill — Northern Ireland Affairs Committee — An air transport strategy for Northern Ireland 51 (2013-03-25)

22. [Due regard in PSED](#) — Impact Assessment to The Universal Credit (Benefit Cap Earnings Exception) Amendment Regulations 2017 (2017-02-20)

23. [Due regard as a procedural duty](#) — Ministry of Housing, Communities and Local Government — Ministry of Housing, Communities and Local Government: Equality (2026-08-03. ☐)

24. [Due regard and duty of inquiry](#) — Rights Community Action Ltd, R (on the application of) v Secretary of State for Levelling Up (2024-07-02. ☐)

25. [Due regard requires rigour and open mind](#) — National Council for Civil Liberties v Equality and Human Rights Commission (2025-06-26. ☐)

26. [Equality Act 2006 establishes EHRC enforcement powers](#) — Equality Act 2006, s.31 (2006)

27. [Equality Act 2006 enforcement powers for EHRC](#) — Equality Act 2006, s.32 (2006)

28. [Equality Act 2010 introduced PSED](#) — CULTURE MEDIA AND SPORT — Public Sector Equality Duty Review (2013-09-06)

29. [Equality Act 2010 and socio-economic inequalities](#) — Equality Act 2010, s.1 (2010)

30. [Equality Act 2010 and specific duties regulations](#) — WOMEN AND EQUALITIES — Equality (2011-07-12)

31. [Equality Act 2010 and public sector equality duty guidance](#) (undated)

32. [Equality Act 2010, s.149 defines PSED](#) — Equality Act 2010, s.149 (2010)

33. [Equality Act 2010, s.149 applies to public functions](#) — Anisa Begum (R on the application of) v London Borough Of Tower Hamlets (2024-09-04)

34. [Equality Act 2010, s.149 and specific duties](#) — NatCen qualitative research to inform the Public Sector Equality Duty review (2013-10-10)
35. [Equality and Human Rights Commission \(EHRC\) monitors PSED](#) — NatCen qualitative research to inform the Public Sector Equality Duty review (2013-10-10, 12 years old ☺)
36. [EHRC enforces Equality Act 2010](#) — ehrc tailored review — vol 1 (undated)
37. [EHRC provides PSED guidance](#) — Equality Act 2010 (2011-01-12, 15 years old ☺)
38. [EHRC updates PSED and data protection guidance](#) — Equality and Human Rights Commission: annual report and accounts 2024 to 2025 (2025-07-22. ☺)
39. [EHRC and interpretation of sex and gender in Equality Act 2010](#) — The Equality and Human Rights Commission (2026-01-21)
40. Terms of art the record confirms (undated — no source record)

What else refers to this law

1. [74 instruments are recorded as made under ukpga/2010/15 — the strongest kind of reference here](#) — ssi/2020/403 (undated — no source record)

74 instruments are recorded as made under ukpga/2010/15. ssi/2020/403: “[preamble-recital] Scottish Ministers make the following Regulations in exercise of the powers conferred by sections 2(4)(a), 153(3) and 207(4) of the Equality ”.

2. [760 references — each mentions the target without acting on it. As a kind: needs no action.](#) — anaw/2013/1 schedule-3-paragraph-12 (undated — no source record)

760 references in 621 provisions that mentions the target without acting on it: needs no action. anaw/2013/1 schedule-3-paragraph-12: “sending of the published proposals to the Welsh Ministers is to be treated as an application by the proposer for a transitional exemption order under the Equal”.

3. [259 references — each amends or repeals part of the target. As a kind: would go with the target.](#) — anaw/2014/7 schedule-3-paragraph-30 (undated — no source record)

259 references in 173 provisions that amends or repeals part of the target: would go with the target. anaw/2014/7 schedule-3-paragraph-30: “section 29(3) (decision whether a person is fit and proper to manage a site), for paragraph (b) substitute—bpractised unlawful discrimination or harassment on t”.

4. [232 references — each borrows a definition from the target. As a kind: would need a substitute reference.](#) — anaw/2013/1 schedule-3-paragraph-12 (undated — no source record)

232 references in 215 provisions that borrows a definition from the target: would need a substitute reference. anaw/2013/1 schedule-3-paragraph-12: “in relation to a transitional exemption order, includes vary or revoke; “transitional exemption order” (“gorchymyn esemptio trosiannol”) has the same meaning as ”.

5. [207 references — each brings the target into force, or is named after it. As a kind: would go with the target.](#) — ssi/2010/315 regulation-1 (undated — no source record)

207 references in 117 provisions that brings the target into force, or is named after it: would go with the target. ssi/2010/315 regulation-1: “Citation and commencement 1 These Regulations may be cited as the Equality Act 2010”.

6. [89 references — each exercises or relies on a power in the target. As a kind: would need a substitute reference.](#) — anaw/2013/6 section-29 (undated — no source record)

89 references in 74 provisions that exercises or relies on a power in the target: would need a substitute reference. anaw/2013/6 section-29: “bpractised unlawful discrimination or harassment on the grounds of any characteristic which is a protected characteristic under section 4 of the Equality Act 20”.

7. [5 references — each disapplies, qualifies or overrides the target. As a kind: would need a substitute reference.](#) — ssi/2018/101 regulation-2 (undated — no source record)

5 references in 4 provisions that disapplies, qualifies or overrides the target: would need a substitute reference. ssi/2018/101 regulation-2: “EXPLANATORY NOTE (This note is not part of the Regulations) These Regulations set out a list of public authorities in Scotland that will be subject to the publi”.

8. What this reference search could not see — 2 layers are not searched, and every count here is what we found in the layers we have — Citation graph coverage, generated 2026-09-09 (undated — no source record)

This covers caselaw, statutory instruments (the regulations made under Acts), Acts of Parliament and other instruments. We hold amends, repeals, commences or modifies, from TNA’s own effects data — but not in this search, so they are not joined into any number here. We do not hold this at all yet: a treaty article bearing on a domestic provision. There will be further references we cannot see. A repeal or an amendment is not a citation and is not returned by this query. A change may be prevented by an international obligation this graph cannot see. 25.4% of the references we hold sit in a title, long title, preamble or explanatory note rather than inside a provision — real references, but not provisions that would break. 7.4% point at an instrument we hold no text for, so we can count them and cannot show you what they say. 77 of the Acts referred to here are named by an identifier that fits more than one Act, because two parliamentary sessions can fall inside one calendar year. We refused to guess between them, so those are recorded as refusals — a refusal, not an absence, and not evidence that nothing refers to them. 36.1% of the OLD preamble parser’s section-level made-under references were wrong — the effects table still holds those, while the enabling rows quoted here came from the fixed parser (measured 12.2 days ago). 41.3% of the instruments sampled had their scheduled text reach our corpus as well —  a scheduled agreement that was not ingested presents as a SHORT DOCUMENT, not as an error (measured 12.2 days ago). 97,095 act names found in running text resolved to no instrument we hold a title for — short forms that name only a year, and Acts the corpus does not hold. Counted, never dropped (measured 13.6 days ago). Treat any number here as what we found in the layers we have searched, not as a total.

How the courts have read it

1. [PSED requires thorough and rigorous consideration, not just 'ticking boxes'](#) — Court of Session: court of session ab for judicial review 20 september 2022 (2022-09-20.)

This case construes the PSED, stating that the duty must be exercised 'in substance with rigour and an open mind' and 'is not a question of ticking boxes,' which widens the duty beyond mere formality and supports the proposal's argument about judicial oversight.

2. [PSED is a continuing duty throughout policy development and execution](#) — Court of Session: court of session ab for judicial review 20 september 2022 (2022-09-20)

This case construes the PSED, stating that the duty must be exercised 'in substance with rigour and an open mind' and 'is not a question of ticking boxes,' which widens the duty beyond mere formality and supports the proposal's argument about judicial oversight.

3. [Courts do not determine the weight given to the PSED, only that it was rigorously considered](#) — Williams & Anor, R (on the application of) v Surrey County Council (2012-04-03, 14 years old)

This case construes the 'due regard' duty, stating that the court determines if there has been 'rigorous consideration' and a 'proper appreciation of the potential impact,' which widens the judicial role in assessing compliance and is directly relevant to the proposal's concern about courts, not ministers, determining compliance.

4. [PSED requires consideration of eliminating discrimination, advancing equality, and fostering good relations](#) — Police Superintendents' Association, R (on the application of) v The Police Remuneration Review Body & Anor (2023-07-19)

This case directly applies and quotes Section 149 of the Equality Act 2010, affirming the PSED's imposition on public authorities and its relevance in judicial review challenges, which is central to the proposal's focus on the statutory nature and judicial enforcement of the duty.

5. [PSED requires consideration before and at the time of policy consideration](#) — Taylor v Slough Borough Council (2020-12-21, 5 years old )

This case reviews previous judicial constructions of 'due regard,' affirming that decision-makers must be aware of the duty and that it requires more than 'ticking boxes,' which reinforces the substantive nature of the duty and the judicial role in its enforcement, aligning with the proposal's concerns.

6. [Parliament intended equality considerations to be central to policy formulation](#) — London Borough of Hackney v Haque (2017-01-17, 9 years old )

This case construes the PSED, stating Parliament's intention for equality considerations to be 'at the centre of formulation of policy,' which widens the duty's substantive impact and supports the proposal's argument about the duty's influence on policy formulation.

7. [The PSED is a duty of substance, not merely form](#) — London Borough of Hackney v Haque (2017-01-17, 9 years old )

This case construes the PSED, stating Parliament's intention for equality considerations to be 'at the centre of formulation of policy,' which widens the duty's substantive impact and supports the proposal's argument about the duty's influence on policy formulation.

8. [The nature of the 'due regard' duty is shaped by the function being exercised](#) — Sofia Sheakh (R on the application of) v London Borough of Lambeth Council (2022-04-05. )

This case construes the 'due regard' duty, stating that its nature is 'shaped by the function being exercised' and that an authority must produce an equality impact assessment if a specific cut is identified, which widens the duty's application and supports the proposal's premise about the duty's broad and anticipatory nature.

9. [PSED does not impose a duty to achieve results, but to have 'due regard' to the need to achieve goals](#) — Court of Session: 2015csoh117 honour watt for judicial review of a decision of lothian health board to withdraw the provision of homeopathic services (2015-08-28, 11 years old )

This case construes the 'due regard' duty in an analogous provision (Race Relations Act 1975 s.71(1)), stating it is not merely a formal requirement, which widens the scope of the duty and supports the proposal's premise that courts determine compliance.

10. [For Women Scotland Ltd v The Scottish Ministers confirmed PSED requires impact assessment](#) — The Children's Law Centre's Application (2025-12-23)

This case affirms that the PSED in Section 149 requires an impact assessment to be performed, citing a UKSC case, which widens the practical requirements of the duty and directly supports the proposal's argument about the duty's process-oriented nature and judicial enforcement.

What was tried before — and what happened

 Questions filed here that did **not** run on this draft: Whether this has been tried before

1. PSED replaced previous equality duties — Report: 2nd Report - The Equality Act 2010: the impact on disabled people Follow-up report — Liaison Committee (Lords) (2021-09-09)

This committee report states that the PSED replaced existing duties in respect of race, disability, and gender, indicating that the PSED was enacted to consolidate and strengthen previous, more fragmented equality duties, thus addressing what the current provision was enacted to fix.

2. [Aim to address bureaucracy of previous duties](#) — CULTURE MEDIA AND SPORT — Public Sector Equality Duty Review (2013-09-06, 13 years old )

This ministerial statement announces the outcome of a review of the PSED, which could indicate whether the duty was operating as intended or if concerns about its implementation (such as the 'compliance-focused approach') were already identified and addressed, providing insight into the original intent versus actual impact.

3. [PSED intended to place equality at policy centre](#) — London Borough of Hackney v Haque (2017-01-17, 9 years old )

This case law explicitly states that 'it seems to have been the intention of Parliament that these considerations of equality of opportunity... are now to be placed at the centre of formulation of policy by all public authorities'. This directly addresses the deliberate intent behind the PSED's proactive nature and its central role in policy formulation.

4. PSED requires proactive steps — Report: 2nd Report - The Equality Act 2010: the impact on disabled people Follow-up report — Liaison Committee (Lords) (2021-09-09, 5 years old )

This committee report states that the PSED replaced existing duties in respect of race, disability, and gender, indicating that the PSED was enacted to consolidate and strengthen previous, more fragmented equality duties, thus addressing what the current provision was enacted to fix.

5. PSED is not a duty to achieve a result — Report: Third Report - The Macpherson Report: Twenty-two years on — Home Affairs Committee (2021-07-30)

This committee report clarifies that the PSED 'is not a duty to achieve a result' but requires public authorities to 'consider appropriately what action should be taken'. This directly addresses whether the 'due regard' aspect was a deliberate choice for a process-oriented duty rather than an outcome-based one.

6. [PSED includes a duty of inquiry](#) — Taylor v Slough Borough Council (2020-12-21, 5 years old )

This case law discusses the argument that the PSED involves a 'duty of inquiry' and the concern that it could allow 'unelected judges to review on substantive merits grounds almost all aspects of public decision making'. This directly addresses the proposer's concern about judicial oversight and whether this was a deliberate choice or an interpretation that emerged through case law.

7. [Government review in 2013 found PSED operating as intended](#) — Ministerial Written Statement: Public Sector Equality Duty Review (2013-10-10)

This government response to the PSED review states that the review did not consider repeal and concluded the duty was operating as intended, but acknowledged a need for clearer guidance. This directly addresses whether the current operation of the PSED, including its broadness, was a deliberate choice or an unintended consequence, and indicates a past government stance on its utility.

8. [Concerns about clarity of PSED application](#) — Equality Bill — Committee (6th Day) (2010-02-09, 16 years old )

This debate record from the House of Lords Committee stage of the Equality Bill (which became the Equality Act 2010) may contain discussions about the intent behind the public sector equality duty, including its scope and the definition of 'public authority', which could shed light on whether the broadness of the duty was a deliberate choice.

Where this mechanism works elsewhere

Nothing under this heading. We looked for the same problem solved in another sector, industry or country, and found nothing. That is a gap in what we could retrieve, not a statement about what exists.

Questions that ran: What other sectors built for the same problem

Who has argued about this

1. [PSED came into force in 2011 to address bureaucracy](#) — CULTURE MEDIA AND SPORT — Public Sector Equality Duty Review (2013-09-06)

This ministerial statement announces the outcome of a government review of the PSED, concluding it was operating as intended but needing clearer guidance, directly addressing the problem of PSED's effectiveness and implementation.

2. [PSED review in 2013 found it operating as intended but needed clearer guidance](#) — Review of the Public Sector Equality Duty by the Independent Steering Group (2013-10-10)

This document, part of the 2013 PSED review, reports public bodies' need for clearer, more tailored guidance, indicating a problem with the duty's practical application and understanding.

3. [Government committed to full PSED evaluation in 2016, but no record found](#) — Ministerial Written Statement: Public Sector Equality Duty Review (2013-10-10)

This ministerial statement confirms the 2013 PSED review did not consider repeal but concluded the duty was operating as intended, while recommending a full evaluation in 2016, providing a direct government stance on the PSED's operation and future review.

4. [PSED criticised for limited impact and 'due regard' being insufficient](#) — Report: 10th Report - Enforcing the Equality Act: the law and the role of the Equality and Human Rights Commission — Women and Equalities Committee (2019-07-30, 7 years old ☺)

This committee report notes criticisms of the PSED for its limited impact and the perceived insufficiency of the 'due regard' duty, directly supporting the proposal's argument about the duty's ineffectiveness.

5. [Judicial review of PSED focuses on process, not outcome](#) — R (on the application of Marouf) v Secretary of State for the Home Department (2023-06-28. ☺)

This case law outlines the requirements for rigorous consideration of the PSED, including a duty to acquire relevant material and potentially consult with appropriate groups, which informs the judicial interpretation of 'due regard'.

6. [PSED enables 'pre-emptive overreach' and 'box-ticking' due to broad framing](#) — Equality Act 2010: Impact on British Society — [Dr Rosena Allin-Khan in the Chair] (2025-09-10)

This debate highlights a Policy Exchange report finding public institutions spending heavily on EDI roles and compliance, directly supporting the proposal's claim that PSED leads to a compliance-focused approach over service delivery.

7. [PSED can lead to duty of inquiry if relevant material is unavailable](#) — Taylor v Slough Borough Council (2020-12-21, 5 years old ☺)

This case law includes a submission arguing that judicial interpretation of PSED could allow 'unelected judges to review on substantive merits grounds almost all aspects of public decision making', directly supporting the proposer's concern about judicial overreach.

8. [Government noted but did not commit to adding 'proportionate steps' subsection to PSED](#) — Special Report: 2nd Special Report – Equalities analysis and the 2015 Spending Review and Autumn Statement: Government Response to the Committee's Fourth Report — Women and Equalities Committee — 1 Government Response to the Committee's Fourth Report (2017-01-30)

This committee report highlights a 'concerning lack of transparency' in equalities analysis and recommends independent evaluation of the Treasury's PSED compliance, directly addressing issues of accountability and effectiveness.

9. [Concerns raised about PSED application in commissioning gender-neutral services](#) — Report: 10th Report - Enforcing the Equality Act: the law and the role of the Equality and Human Rights Commission — Women and Equalities Committee (2019-07-30, 7 years old )

This committee report identifies public authority commissioners commissioning gender-neutral services in breach of PSED, indicating a problem with the duty's enforcement and effectiveness in practice.

10. [Government was 'exploring opportunities to repeal' Section 1 of the Equality Act 2010 in 2010](#) — WOMEN AND EQUALITIES — Equality: Public Bodies (2010-11-29)

This debate records a ministerial statement that the government was 'exploring opportunities to repeal' section 1 of the Equality Act 2010, indicating a historical consideration of repeal, relevant to the current proposal.

11. [EHRC's powers and funding for promoting 'good relations' and guidance on PSED were curtailed](#) — Enforcing the Equality Act: the law and the role of the EHRC inquiry — EEA0045 (2018-12-03)

This written evidence notes that the EHRC's powers and funding were curtailed after the 2011 Public Bodies Act, which could impact the enforcement and effectiveness of the PSED.

Key people and groups likely to support or oppose

1. [Andrew Rosindell — recorded acts bearing on “Consequences of the Equality Act 2010”](#) — Position graph, method 3c.7bac2c10d652, computed 2026-09-04 (2025-07-22)

Matched to this proposal on the phrase “equality act 2010”. Most recent recorded act: 2025-07-22, for “Consequences of the Equality Act 2010”. 1 recorded act in total, listed in full in the long report.

2. What this section does not cover — our record of recorded divisions of the House of Commons begins 2016-03-09, and 2 signal types have no source data — Position graph coverage, generated 2026-09-04 (undated — no source record)

Our record of recorded divisions of the House of Commons begins 2016-03-09; 2 signal types (seats held on select and public bill committees; amendments a member put their name to) have no source data at all; and the stance estimates have never been scored against a verified answer key. The full statement is in the long report.

The numbers

1. [PSED requires proactive consideration of equality issues](#) — Equality Act 2010, s.149 (2010)

This is the core statutory provision for the Public Sector Equality Duty that the proposal seeks to repeal, directly defining the 'broad, anticipatory 'due regard' obligation'.

2. [Judicial review ensures PSED compliance](#) — National Council for Civil Liberties v Equality and Human Rights Commission (2025-06-26. )

This case law affirms that the PSED requires 'substance, with rigour and with an open mind' and that 'general regard' is not enough, supporting the proposal's claim about judicial interpretation driving a compliance-focused approach.

3. [PSED intended to place equality at policy centre](#) — London Borough of Hackney v Haque (2017-01-17, 9 years old )

This case law states that 'it seems to have been the intention of Parliament that these considerations of equality of opportunity... are now to be placed at the centre of formulation of policy,' which contradicts the proposal's claim that the current situation was not chosen by elected officials.

4. [Government review in 2013 found PSED operating as intended](#) — Ministerial Written Statement: Public Sector Equality Duty Review (2013-10-10)

This source states that a 2013 review of the PSED did not consider its repeal but agreed a full evaluation should be undertaken in 2016, providing context for previous government engagement with the duty and its perceived effectiveness.

5. [PSED is a duty of process, not outcome](#) — R (on the application of Marouf) v Secretary of State for the Home Department (2023-06-28. Ø)

This case law states that if relevant material is unavailable, there is a duty to acquire it, and that 'rigorous consideration of the duty' is required, supporting the proposal's claim about judicial interpretation driving a compliance-focused approach.

6. [Equality Impact Assessments are not a legal requirement for PSED compliance](#) — Women and Equalities — Equality: Impact Assessments (2026-06-30. Ø)

This source indicates ongoing government work focused on making Equality Impact Assessments more targeted and effective, which suggests a recognition of issues with the current process-oriented approach, aligning with the proposal's diagnosis.

7. [PSED aims to mainstream equality into policies](#) — Large print version (2022-12-21. Ø)

This source states the government's belief that the PSED is aligned with a rights-based approach because it sets a legal duty to consider the impact of policies, which is a causal claim about the duty's intended positive effect, contrasting with the proposal's negative diagnosis.

8. [PSED applies to Great Britain, not Northern Ireland](#) — The independent Steering Group's report of the Public Sector Equality Duty (PSED) review and government response (2013-10-10)

This source details the launch and purpose of the 2012 PSED review, stating it was to 'examine whether the PSED is operating as intended,' which directly addresses the effectiveness of the duty and its perceived problems.

9. [PSED implementation had one-off transitional cost, net benefit thereafter](#) — Equality Act 2010 (2011-07-11)

This source estimates the one-off transitional costs of implementing the new equality duty, providing a quantitative measure related to the burden of compliance, which is relevant to the proposal's diagnosis of the PSED's impact.

10. [Public bodies reported need for clearer, tailored PSED guidance](#) — Review of the Public Sector Equality Duty by the Independent Steering Group (2013-10-10)

This source highlights public bodies' reported need for clearer, more tailored guidance on PSED compliance, which supports the proposal's underlying concern about the open-ended nature of 'due regard' leading to confusion and a compliance focus.

11. [Government committed to strengthening equality impact assessments](#) — Women and Equalities — Public Sector: Equality (2024-09-17. Ø)

This source discusses the potential impact of strengthening equality impact assessments on compliance costs for public bodies, which directly relates to the proposal's concern about the PSED leading to a focus on compliance over service delivery.

12. [Judicial functions are exempt from PSED](#) — Equality Act 2010, sch.18 para.3 (2010)

This primary legislation outlines exceptions to section 149, specifically that it does not apply to judicial functions, which is relevant to understanding the scope of the PSED.

13. [Government has published advice and guidance for PSED compliance](#) — Women and Equalities — Equality Act 2010: Public Bodies (2023-07-12. Ø)

This source mentions the publication of advice and guidance to help public bodies comply with the Equality Act, and the EHRC's technical guidance on the PSED, which is relevant to the proposal's diagnosis of a compliance-focused approach.

14. [No central collection of equality impact assessment numbers](#) — Women and Equalities — Government Departments: Equality (2024-01-12. )

This source states that the number of equality impact assessments completed by each department is not collected centrally, which contradicts the idea of a quantifiable, centrally monitored 'box-ticking' exercise, suggesting the problem's scale might not be as uniformly measured as implied.

15. [PSED intended to reduce bureaucracy of previous duties](#) — CULTURE MEDIA AND SPORT — Public Sector Equality Duty Review (2013-09-06, 13 years old )

This ministerial statement announces the outcome of the 2012 PSED review, indicating government engagement with the duty's operation and effectiveness.

16. [PSED is aligned with a rights-based approach](#) — Large print version (2022-12-21. )

This source states the government's belief that the PSED is aligned with a rights-based approach because it sets a legal duty to consider the impact of policies, which is a causal claim about the duty's intended positive effect, contrasting with the proposal's negative diagnosis.

17. [PSED can lead to increased user satisfaction and efficiency](#) — Medicines and Healthcare products Regulatory Agency's Public Sector Equality Duty report 2026 (2026-06-04. )

This source states that 'decisions taken without considering their impact on different groups can result in greater inequality and poor outcomes,' which is a measured causal claim about the purpose of the PSED, but does not quantify the scale of the problem as described by the proposer.

What's devolved

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

Questions that did **not** run on this draft: Whether this is Westminster's to change

Key sources

This module can be run when the strategic kernels have been properly reviewed.

M-03 — The United Kingdom Supreme Court

138 entries across 9 of 13 headings.  8 entries resolve to no heading and are listed at the end — a gap in the library, not sources to drop.

How hard will this be to achieve?

This module can be run when the strategic kernels have been properly reviewed.

Cost and duration

The module calculating the costs and benefits of proposed measures is under development. It will aim to contribute to a better balance between those who benefit from legislation and those who pay for it, both taxpayers and those who pay the price of bureaucratic inefficiency and the regulatory burden.

What the law says now

1. [Existing mechanisms for post-legislative scrutiny](#) — Report: First Report - Annual Report for 2005-06 — Liaison Committee (Commons) — 3 July 2006 Defence (2007-04-17, 19 years old )

Emphasizes the importance of a flexible approach to post-legislative review and notes that some scrutiny is already conducted, providing context for the proposed new committee.

2. [Recommendations for a dedicated scrutiny committee](#) — Report: First Report - Annual Report for 2005-06 — Liaison Committee (Commons) — 3 July 2006 Defence (2007-04-17, 19 years old ☺)

Emphasizes the importance of a flexible approach to post-legislative review and notes that some scrutiny is already conducted, providing context for the proposed new committee.

3. [Call for comprehensive scrutiny of constitutional legislation](#) — Report: 15th Report - The Process of Constitutional Change — Constitution Committee — HOUSE OF LORDS — ¶103 (2011-07-18, 15 years old ☺)

Discusses the recommendation for a House of Lords Post-legislative Scrutiny Committee to review Acts of Parliament, which is directly relevant to the proposal's aim of establishing a joint committee for post-legislative review of constitutional legislation.

4. [House of Lords interest in post-legislative scrutiny](#) — Review of investigative and scrutiny committees inquiry — RIS0023 (2018-05-01, 8 years old ☺)

Discusses the appointment of a Post-Legislative Scrutiny Committee by the House of Lords due to the House of Commons' lack of interest in a joint committee, which is a direct precedent for a similar scrutiny mechanism.

5. [Challenges in appointing joint committees](#) — Report: First Report - The work of committees in 2007-08 — Liaison Committee (Commons) (2009-03-11, 17 years old ☺)

Identifies issues with the timing and appointment of joint committees for pre-legislative scrutiny, which is relevant to the practicalities of establishing the proposed joint committee.

6. [Parliamentary scrutiny of constitutional bills](#) — Report: 1st Report - Ensuring standards in the quality of legislation - Volume II (Additional Written evidence) — Political and Constitutional Reform Committee (2013-05-20, 13 years old ☺)

Advocates for more extensive use of post-legislative scrutiny to assess how legislation has bedded down and to learn lessons, directly supporting the proposal's objective.

7. [No explicit power to compel Supreme Court testimony](#) — Report: 15th Report - The Process of Constitutional Change — Constitution Committee — HOUSE OF LORDS — ¶103 (2011-07-18, 15 years old ☺)

Discusses the recommendation for a House of Lords Post-legislative Scrutiny Committee to review Acts of Parliament, which is directly relevant to the proposal's aim of establishing a joint committee for post-legislative review of constitutional legislation.

8. [Constitutional Reform Act 2005 established the Supreme Court](#) — Constitutional Reform Act 2005, s.40 (2005)

This section of the Constitutional Reform Act 2005 defines the jurisdiction of the Supreme Court, which is central to the proposal's aim of reasserting parliamentary intent regarding the Court's role. Any amendment to the Court's powers would likely involve modifying this section.

9. [Supreme Court is a superior court of record](#) — Constitutional Reform Act 2005, s.40 (2005)

This section of the Constitutional Reform Act 2005 defines the jurisdiction of the Supreme Court, which is central to the proposal's aim of reasserting parliamentary intent regarding the Court's role. Any amendment to the Court's powers would likely involve modifying this section.

10. [Appellate jurisdiction of the Supreme Court](#) — Constitutional Reform Act 2005, s.40 (2005)

This section of the Constitutional Reform Act 2005 defines the jurisdiction of the Supreme Court, which is central to the proposal's aim of reasserting parliamentary intent regarding the Court's role. Any amendment to the Court's powers would likely involve modifying this section.

11. [Supreme Court's power to determine questions for justice](#) — Constitutional Reform Act 2005, s.40 (2005, 21 years old Ø)

This section of the Constitutional Reform Act 2005 defines the jurisdiction of the Supreme Court, which is central to the proposal's aim of reasserting parliamentary intent regarding the Court's role. Any amendment to the Court's powers would likely involve modifying this section.

12. [Amendments to Supreme Court Act 1981](#) — Constitutional Reform Act 2005, sch.1 para.11 (2005)

This provision of the Constitutional Reform Act 2005 amends the Supreme Court Act 1981, indicating an interlocking statutory framework that would need to be considered for any amendment to the Supreme Court's jurisdiction or powers.

13. [Amendments to Administration of Justice Act 1969](#) — Constitutional Reform Act 2005, sch.9 para.20 (2005)

This provision of the Constitutional Reform Act 2005 amends the Administration of Justice Act 1969, renaming Part 2 to 'Appeal from High Court to Supreme Court' and replacing 'House of Lords' with 'Supreme Court.' This is a direct example of the definitional and consequential changes that would need to be reversed if appellate jurisdiction were returned to the Lords.

14. [Amendments to Supreme Court Act 1981 regarding judicial business and appeals](#) — Constitutional Reform Act 2005, sch.9 para.36 (2005)

This provision of the Constitutional Reform Act 2005 amends the Supreme Court Act 1981, replacing 'House of Lords' with 'Supreme Court' in sections related to judicial business and appeals. This is a direct example of the definitional and consequential changes that would need to be reversed if appellate jurisdiction were returned to the Lords.

15. [Amendments to Transport Act 1985](#) — Constitutional Reform Act 2005, sch.9 para.42 (2005)

This provision of the Constitutional Reform Act 2005 amends the Transport Act 1985, replacing 'House of Lords' with 'Supreme Court' for appeals. This is a direct example of the definitional and consequential changes that would need to be reversed if appellate jurisdiction were returned to the Lords.

16. [Amendments to devolution issues proceedings](#) — Constitutional Reform Act 2005, sch.9 para.116 (2005)

This provision of the Constitutional Reform Act 2005 amends Schedule 10, replacing 'House of Lords' with 'Supreme Court' for devolution issues. This is a direct example of the definitional and consequential changes that would need to be reversed if appellate jurisdiction were returned to the Lords.

17. [Modification of references to Supreme Court in Administration of Justice Act 1960](#) — The Criminal Justice and Immigration Act 2008 (Transitory Provisions) Order 2008, art.4 (2008)

This statutory instrument shows how references to the Supreme Court were modified from the House of Lords during the transition, highlighting the definitional and consequential amendments that would be necessary if the proposal to return appellate jurisdiction to the Lords were enacted.

18. [Renaming of Part 3 of Criminal Justice Act 2003 Order](#) — The Constitutional Reform Act 2005 (Consequential Amendments) Order 2011, art.5 (2011)

This statutory instrument makes consequential amendments due to the Constitutional Reform Act 2005, illustrating the type of interlocking provisions and necessary adjustments that would be required if the Act were to be repealed or significantly amended.

19. [Repeal of section 40\(3\) of Constitutional Reform Act 2005](#) — The Courts Reform (Scotland) Act 2014 (Consequential Provisions and Modifications) Order 2015, para.13 (2015)

This statutory instrument repeals subsection (3) of section 40 of the Constitutional Reform Act 2005, which defines the jurisdiction of the Supreme Court. This demonstrates that the CRA 2005 is subject to amendment and highlights a specific provision related to the Court's jurisdiction that could be further modified.

20. [Omission of paragraphs from Schedule 9 of Constitutional Reform Act 2005](#) (2026)

This future legislative provision indicates amendments to Schedule 9 of the Constitutional Reform Act 2005, which deals with the jurisdiction of the Supreme Court, showing that this Act is subject to ongoing amendment and is a key piece of legislation for the proposal.

21. [Further omission of paragraphs from Schedule 9 of Constitutional Reform Act 2005](#) (2026)

This future legislative provision indicates further amendments to Schedule 9 of the Constitutional Reform Act 2005, which deals with the jurisdiction of the Supreme Court, reinforcing its status as a core piece of legislation for the proposal.

22. [Judicial interpretation seeks Parliament's meaning](#) — For Women Scotland Ltd v The Scottish Ministers (2025-04-16. Ø)

This Supreme Court case discusses the approach to statutory interpretation, stating that courts are 'seeking the meaning of the words which Parliament used,' which is directly relevant to the proposal's aim of assessing judicial interpretation against original parliamentary intent.

23. [Parliamentary intent as sole object in statutory interpretation](#) — Buddington, R (on the application of) v Secretary of State for the Home Department (2005-10-14, 20 years old Ø)

This case law discusses the principles for construing delegated legislation and Acts of Parliament, stating that 'The Courts task within the permissible bounds of interpretation is to give effect to the intention of Parliament,' which is central to the proposal's aim of assessing judicial interpretation against original parliamentary intent.

24. [Courts decide questions of law, not select committees](#) — Erskine May: The courts and parliamentary privilege: The twenty-first century (undated, Ø)

This Erskine May entry discusses the relationship between courts and Parliament, specifically noting that 'courts and Parliament were both astute to recognise their respective roles,' which is directly relevant to the proposal's aim of clarifying the Supreme Court's role vis-à-vis Parliament.

25. [Parliamentary scrutiny of constitutional legislation](#) — Report: 15th Report - The Process of Constitutional Change — Constitution Committee — HOUSE OF LORDS — ¶103 (2011-07-18, 15 years old Ø)

This report discusses post-legislative scrutiny, which is the core mechanism proposed for reviewing the Supreme Court's interpretation of constitutional statutes. It indicates existing parliamentary consideration of such mechanisms.

26. [Joint Select Committees for constitutional reform](#) — Report: The Committee's Future Work Practices — Human Rights (Joint Committee) — 44 Twenty-third Report of Session 2005-06 (2010-08-06, 16 years old Ø)

This report mentions the Joint Committee on Human Rights' scrutiny role and the in-depth inquiries by Lords EU Scrutiny Committees, providing examples of existing joint committee structures and their scrutiny practices that could inform the proposed 'Constitutional Scrutiny Bill'.

27. [Government response to Judicial Review Reform consultation](#) — Consultation — Judicial Review Reform (ministry-of-justice) (2021-04-30, 5 years old Ø)

This government response to a consultation on Judicial Review Reform indicates recent legislative activity and policy considerations related to the scope of judicial power, which is relevant to the proposal's aim of reining in the Supreme Court's interpretative role.

28. [Debate on Supreme Court's role in instructing Parliament](#) — Right to Die - Question (2016-07-14, 10 years old Ø)

This debate highlights differing views on the Supreme Court's role in instructing Parliament, directly addressing the proposal's concern about the Court's self-conception and its relationship with the legislature.

29. [Parliamentary intention vs. Ministerial intention](#) — Erskine May: The courts and parliamentary privilege: The twenty-first century (*undated*, 0)

This Erskine May entry discusses the relationship between courts and Parliament, specifically noting that 'courts and Parliament were both astute to recognise their respective roles,' which is directly relevant to the proposal's aim of clarifying the Supreme Court's role vis-à-vis Parliament.

30. [Constitutional Reform Bill introduced in House of Lords](#) — CONSTITUTIONAL AFFAIRS — Administration of Justice (2004-09-07, 22 years old 0)

This written answer confirms that the Constitutional Reform Bill aimed to reform the office of the Lord Chancellor and establish a Supreme Court, providing direct evidence of the legislative intent behind the 2005 Act.

31. [Opposition to Supreme Court plans](#) — CONSTITUTIONAL AFFAIRS — Supreme Court (2004-10-21, 21 years old 0)

This written answer provides insight into the opposition from members of the judiciary to the plans for a Supreme Court, offering historical context to the institutional identity and reception of the Court's creation.

32. [Lord Chancellor's role and Supreme Court establishment](#) — CONSTITUTIONAL AFFAIRS — Lord Chancellor (2004-03-16, 22 years old 0)

This written answer confirms the government's intention to abolish the Office of Lord Chancellor and introduce legislation, providing direct evidence of the legislative intent behind the Constitutional Reform Act 2005 and its broader constitutional reforms.

33. [Consultation on Supreme Court and Judicial Appointments Commission](#) — CONSTITUTIONAL AFFAIRS — Constitutional Reform (2003-06-19)

This ministerial statement from 2003 announces the creation of a new Supreme Court to replace the Appellate Committee of the House of Lords, providing direct evidence of the legislative intent and the specific change the proposal seeks to reverse.

34. [Parliamentary scrutiny of constitutional legislation in other countries](#) — Report: 14th Report - Constitutional role of the judiciary if there were a codified constitution — Political and Constitutional Reform Committee — Constitutional role of the judiciary 21 (2014-05-14, 12 years old 0)

This report discusses the constitutional role of the judiciary and parliamentary scrutiny of legislation, directly addressing the proposal's concerns about judicial review powers and the need for robust parliamentary oversight.

35. [Importance of post-legislative scrutiny](#) — Report: 15th Report - The Process of Constitutional Change — Constitution Committee — HOUSE OF LORDS — ¶198 (2011-07-18, 15 years old 0)

This report discusses post-legislative scrutiny in relation to fundamental constitutional issues, directly supporting the proposal's focus on mandatory, quinquennial post-legislative review of constitutional legislation.

36. [Law Commission recommendation for joint parliamentary committee on post-legislative scrutiny](#) — Report: First Report - Annual Report for 2005-06 — Liaison Committee (Commons) — 3 July 2006 Defence (2007-04-17, 19 years old 0)

This report discusses the importance of a flexible approach to post-legislative review and recommends reviewing a few pieces of legislation a year, which is relevant to the design and scope of the proposed 'Constitutional Scrutiny Bill' committee.

37. [Government position on post-legislative scrutiny](#) — Report: 6th Report - Review of House of Lords Investigative and Scrutiny Committees: towards a new thematic committee structure — Liaison Committee (Lords) (2019-07-17)

This report discusses the Law Commission's inquiry into post-legislative scrutiny and its recommendation for a 'new joint Parliament committee,' which is directly relevant to the proposal's call for a 'Constitutional Scrutiny Bill' establishing such a committee.

38. [No recommendation for a new joint constitutional legislation standards scrutiny committee](#) — Report: 1st Report - Ensuring standards in the quality of legislation - Volume I — Political and Constitutional Reform Committee — 136 Ev w17 137 Ev w17 (2013-05-20, 13 years old [O](#))

This report discusses the creation of a new joint constitutional legislation standards scrutiny committee, which is directly relevant to the proposal's call for a 'Constitutional Scrutiny Bill' establishing a joint committee for post-legislative review.

39. [Expansion of courts' role and parliamentary privilege](#) — Erskine May: The courts and parliamentary privilege (undated, [O](#))

This Erskine May entry discusses the development of judicial attitudes to parliamentary privilege against a background of evolving jurisdiction between Parliament and the courts, providing historical context for the proposal's concerns about the Supreme Court's self-conception.

40. [Need for comprehensive review of parliamentary privilege](#) — Erskine May: The privilege of Parliament: Modern application of privilege law (undated, [O](#))

This Erskine May entry discusses the Justice Committee's warning against 'piecemeal reform' and the need for a 'proper constitutional settlement,' which is relevant to the proposal's aim of a comprehensive review of constitutional legislation.

41. [Judicial review of statutory powers and duties](#) — Exolum Pipeline System Ltd, R (on the application of) v Crown Court at Great Grimsby (2023-11-10. [O](#))

This case law discusses the Crown Court as a superior court of record but of limited jurisdiction, which is relevant to understanding the legal status and powers of courts, including the Supreme Court, within the UK's constitutional framework.

42. [Exclusion of supervisory jurisdiction](#) — Court of Session: court of session petition of sooy against the secretary of state for the home department 14 december 2023 (2023-12-14. [O](#))

This case law discusses the Supreme Court's interpretation of statutory provisions regarding the exclusion of judicial review, directly bearing on the proposal's concern about judicial interpretation departing from parliamentary intent.

43. [Court of Session's supervisory jurisdiction](#) — Court of Session: 2025csih4 reclaiming motion in petition for judicial review by ragbir singh and others (2025-01-24. [O](#))

This case law discusses the principle that if Parliament wishes to exclude or restrict judicial review, it should legislate expressly, which is relevant to the proposal's aim of clarifying parliamentary intent regarding the Supreme Court's interpretative role.

44. [Interpretation vs. amendment of an Act of Parliament](#) — Court of Session: 2013csoh172 kenneth dutch ap vthe parole board for scotlandplusthe scottish ministers (2013-11-07, 12 years old [O](#))

This case law discusses the boundary between judicial interpretation and amendment of an Act of Parliament, directly addressing the proposal's concern about judicial interpretation departing significantly from parliamentary intent.

45. [Appellate Committee of the House of Lords replaced by Supreme Court](#) — Constitutional Reform (2003-07-14)

46. [Appellate Committee's role in constitutional fundamentals](#) — Court of Session: court of session petition of sooy against the secretary of state for the home department 14 december 2023 (2023-12-14. [O](#))

47. [Appellate Jurisdiction Act 1876 established Lords of Appeal](#) — The Proceeds of Crime Act (Appeals under Part 4) Order 2003, art.12 (*undated*)
48. [Appellate Jurisdiction Act 1876 ceased to have effect](#) — Constitutional Reform Act 2005, sch.17 para.9 (2005)
49. [Constitutional Reform Act 2005 established Supreme Court and Judicial Appointments Commission](#) — Ministry of Justice — Constitutional Reform Act 2005 (2023-12-08)
50. [Constitutional Reform Act 2005 underpins constitutional matters](#) — Ministry of Justice — Constitutional Reform Act 2005 (2023-12-08)
51. [Constitutional Reform Act 2005 aimed for separation of powers](#) — CONSTITUTIONAL AFFAIRS — Crown Prerogative (2003-10-28)
52. [Lord Chancellor's role in Constitutional Reform Act 2005 implementation](#) — Constitutional Reform Act 2005, s.148 (2005)
53. [Lord Chancellor's responsibilities shared by Constitutional Reform Act 2005](#) — Ministry of Justice — Constitutional Reform Act 2005 (2023-12-08)
54. [Lord Chancellor directs Judicial Appointments Commission accounts](#) — Judicial Appointments Commission annual report and accounts 2007/08 - Full Text (2008-07-10)
55. [Lords of Appeal in Ordinary became Supreme Court judges](#) — Constitutional Reform Act 2005, s.24 (2005)
56. [Lords of Appeal in Ordinary would not sit and vote in House](#) — Constitutional Reform (2003-07-14, 23 years old Ø)
57. [Parliamentary Sovereignty is a common law construct](#) — Court of Session: court of session petition of sooy against the secretary of state for the home department 14 december 2023 (2023-12-14. Ø)
58. [Parliamentary Sovereignty may have limits in exceptional circumstances](#) — Court of Session: court of session petition of sooy against the secretary of state for the home department 14 december 2023 (2023-12-14. Ø)
59. [Parliamentary Sovereignty is Queen in Parliament](#) — Carter's (Christopher Charles) Application (For Leave) (2011-02-14, 15 years old Ø)
60. [R \(Miller\) v The Prime Minister \[2019\] UKSC 41 highlighted Parliamentary accountability](#) — Peebles (Clifford) Application for Judicial Review (Leave stage) (2025-02-07)
61. [Separation of Powers was primary justification for Supreme Court](#) — PRIME MINISTER — Clause 35 — Judicial appointments etc (2009-11-04, 16 years old Ø)
62. [Separation of Powers means ministers cannot override judicial decisions](#) — Evans, R (on the application of) v HM Attorney General & Anor (2013-07-09, 13 years old Ø)
63. [Separation of Powers reflected in HRA 1998 declaration of incompatibility](#) — AD and Lelia Joanne Armstrong and Department for Communities and Department for Work and Pensions (2025-02-21)
64. Terms of art the record confirms (*undated — no source record*)

What else refers to this law

1. [120 instruments are recorded as made under ukpga/2005/4 — the strongest kind of reference here](#) — ukxi/2014/1919 (*undated — no source record*)

120 instruments are recorded as made under ukpga/2005/4. For 60 of them the words we can quote do not name it. ukxi/2014/1919: "Lord Chief Justice, in exercise of powers conferred under sections 115, 116, 117, 120 and 121 of the Constitutional Reform Act 2005".

2. [335 references — each mentions the target without acting on it. As a kind: needs no action.](#) — anaw/2018/2 schedule-1-paragraph-10 (undated — no source record)

335 references in 282 provisions that mentions the target without acting on it: needs no action. anaw/2018/2 schedule-1-paragraph-10: “Act 2005 (c. 4)10In paragraph 4 of Schedule 7 to the Constitutional Reform Act 2005”.

3. [307 references — each borrows a definition from the target. As a kind: would need a substitute reference.](#) — anaw/2014/4 section-125D (undated — no source record)

307 references in 292 provisions that borrows a definition from the target: would need a substitute reference. anaw/2014/4 section-125D: “Lord Chief Justice may nominate a judicial office holder (as defined in section 109(4) of the Constitutional Reform Act 2005”.

4. [71 references — each brings the target into force, or is named after it. As a kind: needs no action.](#) — ukpga/2007/27 schedule-13-paragraph-3 (undated — no source record)

71 references in 46 provisions that brings the target into force, or is named after it: needs no action. ukpga/2007/27 schedule-13-paragraph-3: “3In the application of section 23(2) or 24(5) before the commencement of paragraph 1(1) of Part 1 of Schedule 11 to the Constitutional Reform Act 2005”.

5. [67 references — each amends or repeals part of the target. As a kind: would go with the target.](#) — nisir/2006/115 schedule-paragraph-5 (undated — no source record)

67 references in 56 provisions that amends or repeals part of the target: would go with the target. nisir/2006/115 schedule-paragraph-5: “the Order) Article 2 of this Order introduces the Schedule which makes amendments to certain functions of the Lord Chancellor which are contained in secondary I”.

6. [51 references — each exercises or relies on a power in the target. As a kind: would need a substitute reference.](#) — nisir/2009/424 article-2 (undated — no source record)

51 references in 35 provisions that exercises or relies on a power in the target: would need a substitute reference. nisir/2009/424 article-2: “Fees Order (Northern Ireland) 1996 has been renamed the Court of Judicature Fees Order (Northern Ireland) 1996 as a consequence of the renaming of the Supreme C”.

7. [9 references — each disappplies, qualifies or overrides the target. As a kind: would need a substitute reference.](#) — ukpga/1975/26 section-1 (undated — no source record)

9 references in 8 provisions that disappplies, qualifies or overrides the target: would need a substitute reference. ukpga/1975/26 section-1: “section does not apply to the functions of the Lord Chancellor that are within Schedule 7 to the Constitutional Reform Act 2005”.

8. What this reference search could not see — 2 layers are not searched, and every count here is what we found in the layers we have — Citation graph coverage, generated 2026-09-09 (undated — no source record)

This covers caselaw, statutory instruments (the regulations made under Acts), Acts of Parliament and other instruments. We hold amends, repeals, commences or modifies, from TNA’s own effects data — but not in this search, so they are not joined into any number here. We do not hold this at all yet: a treaty article bearing on a domestic provision. There will be further references we cannot see. A repeal or an amendment is not a citation and is not returned by this query. A change may be prevented by an international obligation this graph cannot see. 25.4% of the references we hold sit in a title, long title, preamble or explanatory note rather than inside a provision — real references, but not provisions that would break. 7.4% point at an instrument we hold no text for, so we can count them and cannot show you what they say. 77 of the Acts referred to here are named by an identifier that fits more than one Act, because two parliamentary sessions can fall inside one calendar year. We refused to guess between them, so those are recorded as refusals — a refusal, not an absence, and not evidence that nothing refers to them. 36.1% of the OLD preamble parser’s section-level made-under references were wrong — the effects table still holds those, while the enabling rows quoted here came from the fixed parser (measured 12.2 days ago). 41.3% of the instruments sampled had

their scheduled text reach our corpus as well —  a scheduled agreement that was not ingested presents as a SHORT DOCUMENT, not as an error (measured 12.2 days ago). 97,095 act names found in running text resolved to no instrument we hold a title for — short forms that name only a year, and Acts the corpus does not hold. Counted, never dropped (measured 13.6 days ago). Treat any number here as what we found in the layers we have searched, not as a total.

How the courts have read it

1. [Courts seek Parliament's purpose in statutory interpretation](#) — Buddington, R (on the application of) v Secretary of State for the Home Department (2005-10-14, 20 years old )

This case discusses the court's task in statutory interpretation as giving effect to Parliament's purpose within permissible bounds. This is directly relevant to the proposal's concern about judicial interpretation departing from parliamentary intent.

2. [Statutory interpretation focuses on the meaning of words in context](#) — Court of Session: court of session elaine crozier or veale and others against scottish power uk plc 27 july 2023 (2023-07-27. )

This case cites Lord Hodge DPSC on statutory interpretation, stating courts are 'seeking the meaning of the words which Parliament used.' This directly addresses the interpretative methodologies of the judiciary, which the proposal aims to scrutinize against original parliamentary intent.

3. [Courts can correct obvious drafting errors in statutes](#) — The Pollen Estate Trustee Company Ltd & Anor v Revenue And Customs (2013-06-26, 13 years old )

This case clarifies the court's interpretative function, stating it is not confined to resolving ambiguities and can correct obvious drafting errors by adding, omitting, or substituting words in plain cases. This directly bears on how courts construe statutes and whether their interpretation might be seen as departing from original intent.

4. [Judicial caution in altering statutory language](#) — The Pollen Estate Trustee Company Ltd & Anor v Revenue And Customs (2013-06-26, 13 years old )

This case clarifies the court's interpretative function, stating it is not confined to resolving ambiguities and can correct obvious drafting errors by adding, omitting, or substituting words in plain cases. This directly bears on how courts construe statutes and whether their interpretation might be seen as departing from original intent.

5. [Reasonableness of consequences in statutory interpretation](#) — Buddington, R (on the application of) v Secretary of State for the Home Department (2005-10-14, 20 years old )

This case discusses the principles of statutory interpretation, noting that courts consider the historical context and reasonableness of consequences when construing statutory provisions. This is relevant to the proposal's aim of assessing judicial interpretation against original parliamentary intent.

6. [Purposive construction in statutory interpretation](#) — Bilta (UK) Ltd (in liquidation) and others v Tradition Financial Services Ltd (2025-05-07. )

This Supreme Court case describes the interpretative principles as giving a statutory provision a purposive construction to determine its intended application. This directly addresses the interpretative methodologies of the judiciary, which the proposal aims to scrutinize.

What was tried before — and what happened

 Questions filed here that did **not** run on this draft: Whether this has been tried before

1. [Constitutional Reform Act 2005 objectives](#) — Constitutional Reform Act 2005:Post-Legislative Scrutiny (2010-03-25)

This document is a Written Ministerial Statement laying before the House the Government's memorandum on post-legislative scrutiny of the Constitutional Reform Act 2005, directly addressing the Act's implementation and potential for review.

2. [Creation of the Supreme Court](#) — Constitutional Reform Bill [HL] (2004-03-08, 22 years old ☺)

This debate records the Queen's consent for the Constitutional Reform Bill, indicating the formal process of its enactment and the high-level consideration given to the proposed changes, which would include the creation of the Supreme Court.

3. [Supreme Court jurisdiction](#) — Ministry of Justice — Constitutional Reform Act 2005 (2023-12-08)

This written answer directly addresses a question about repealing the Constitutional Reform Act 2005 and re-establishing the Appellate Committee of the House of Lords, providing the current government's stance on the original intent and ongoing relevance of the Act's provisions.

4. [Government's initial view on abolition](#) — Orders of the Day — Constitutional Reform Bill [Lords] (2005-01-17, 21 years old ☺)

This debate excerpt from the Constitutional Reform Bill [Lords] discusses the process of constitutional reform and the perceived lack of proper consultation and deliberation, which is relevant to understanding the context and potential deliberate choices behind the Act's provisions.

5. [Intention to weaken or politicise judiciary](#) — Orders of the Day — Constitutional Reform Bill [Lords] (2005-01-17, 21 years old ☺)

This debate excerpt from the Constitutional Reform Bill [Lords] discusses the process of constitutional reform and the perceived lack of proper consultation and deliberation, which is relevant to understanding the context and potential deliberate choices behind the Act's provisions.

6. [Constitutional vandalism](#) — Orders of the Day — Constitutional Reform Bill [Lords] — [3rd Allotted Day] — New Clause 9 — Disqualification from holding further ministerial office (2005-03-01, 21 years old ☺)

This debate excerpt expresses concerns that the Constitutional Reform Bill would damage the country's 'delicate constitutional balance', indicating that the implications of the Bill, including the creation of the Supreme Court, were debated and that some aspects were deliberate choices despite opposition.

7. [Long-term impact of reforms](#) — JUSTICE — Constitutional Reform Act 2005 (Post-legislative Scrutiny) (2010-03-25)

This is a Ministerial Statement announcing the laying of the Government's memorandum for post-legislative scrutiny of the Constitutional Reform Act 2005, indicating an early parliamentary review of the Act's effects.

Where this mechanism works elsewhere

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

Questions that did **not** run on this draft: What other sectors built for the same problem

Who has argued about this

1. [Government interest in reviewing the Constitutional Reform Act 2005](#) — Justice — Supreme Court Reform (2021-05-18)

A minister acknowledges the legitimacy of reviewing the Constitutional Reform Act 2005 to see if it can be improved and updated, directly addressing the proposal's aim.

2. [Government considering the relationship between Government, Parliament, and the courts](#) — Justice — Government and Parliament: Relationship with Courts (2020-12-08)

A minister states the government is looking at the broader aspects of the constitution, including the relationship between government, Parliament, and the courts, indicating an ongoing examination of the problem area.

3. [Debate on the Supreme Court's evolving role and public perception](#) — Supreme Court and Judicial Reforms (2004-02-12)

A debate participant raises concerns about public perception and understanding of the Supreme Court's role, particularly how judges of such issues technically sit in the legislature, which directly relates to the proposal's concern about the court's self-conception and institutional identity.

4. [Concerns about Law Lords' dual role as legislators and adjudicators](#) — Supreme Court and Judicial Reforms (2004-02-12)

A debate participant highlights disagreement among Law Lords about creating a new Supreme Court outside the House of Lords, touching on the institutional identity aspect of the proposal.

5. [Supreme Court's power to determine its own scope](#) — Supreme Court and Judicial Reforms (2004-02-12)

A debate participant discusses the Supreme Court's potential to determine its own powers and references the US Supreme Court's claim to judicial review, directly addressing the proposal's concern about judicial self-conception and interpretative role.

6. [Judiciary's role in scrutinizing Parliament's powers](#) — Supreme Court and Judicial Reforms (2004-02-12)

A debate participant discusses the shift from parliamentary supremacy to a role of scrutiny by the judiciary, directly addressing the proposal's concern about judicial overreach and its impact on parliamentary sovereignty.

7. [Constitutional Reform Act 2005 as statutory basis for broad constitutional matters](#) — Ministry of Justice — Constitutional Reform Act 2005 (2023-12-08)

A parliamentary question directly asks the Secretary of State for Justice if he will repeal the Constitutional Reform Act 2005 and re-establish the Appellate Committee of the House of Lords, which is the core of the proposal, and the answer indicates the government's current stance.

8. [Impact of Human Rights Act and Constitutional Reform Act on judiciary](#) — Constitution: Executive, Judiciary and Parliament (Constitution Committee Report) (2008-11-18)

A debate participant discusses how the judiciary has adapted to the Human Rights Act and the Constitutional Reform Act, and the courts' responsibility for interpreting legislation, which directly relates to the proposal's concern about judicial interpretation and self-conception.

9. [Parliamentary scrutiny of constitutional architecture](#) — Constitutional Reform Bill [HL] (2004-10-11)

A debate participant discusses the constitutional architecture and the Supreme Court's role in relation to Parliament and the executive, directly addressing the proposal's concerns about the court's constitutional position.

10. [Support for the principle of a Supreme Court with a broad role](#) — Constitutional Reform Bill [HL] (2004-03-08)

A debate participant supports the principle of a Supreme Court but emphasizes it should not be modelled on other Supreme Courts and should have a broad role, reflecting the ongoing discussion about its intended scope and identity.

11. [Government approach to post-legislative scrutiny](#) — Report: First Report - The work of committees in 2007-08 — Liaison Committee (Commons) (2009-03-11)

Discusses the government's approach to post-legislative scrutiny, which is the core mechanism proposed to address judicial overreach.

12. [Benefits of post-legislative scrutiny identified by Constitution Committee](#) — Report: 15th Report - The Process of Constitutional Change — Constitution Committee — HOUSE OF LORDS — ¶198 (2011-07-18)

Reaffirms the importance of post-legislative scrutiny and refers to a previous report on Parliament and the Legislative Process, indicating a history of examining scrutiny mechanisms.

13. [Existing examples of post-legislative scrutiny inquiries](#) — Report: 1st Report - Legacy Report — Liaison Committee (Commons) — 22 Legacy Report — ¶168 (2015-03-24)

Mentions committees undertaking major post-legislative scrutiny inquiries, demonstrating that such mechanisms exist and have been used for other Acts.

14. [Recommendation against a new joint constitutional legislation scrutiny committee](#) — Report: 1st Report - Ensuring standards in the quality of legislation - Volume I — Political and Constitutional Reform Committee — 136 Ev w17 137 Ev w17 (2013-05-20)

A committee report explicitly recommends *against* the creation of a new joint constitutional legislation standards scrutiny committee, directly contradicting a key element of the proposal.

15. [Initiative for post-legislative scrutiny rests with Commons select committee](#) — Report: Inquiries Act 2005: post-legislative scrutiny - Report — Inquiries Act 2005 Committee — 8 THE INQUIRIES ACT 2005: POST-LEGISLATIVE SCRUTINY (2014-03-11, 12 years old ☺)

Discusses the process of post-legislative scrutiny, including the role of Commons Committees in deciding whether to conduct specific inquiries into Acts, which is directly relevant to the proposed scrutiny mechanism.

Key people and groups likely to support or oppose

1. [Mr Gregory Campbell — recorded acts bearing on “Supreme Court judgment on religious education in Northern Ireland”](#) — Position graph, method 3c.7bac2c10d652, computed 2026-09-04 (2025-11-24)

Matched to this proposal on the phrase “supreme court”. Most recent recorded act: 2025-11-24, for “Supreme Court judgment on religious education in Northern Ireland”. 1 recorded act in total, listed in full in the long report.

2. What this section does not cover — our record of recorded divisions of the House of Commons begins 2016-03-09, and 2 signal types have no source data — Position graph coverage, generated 2026-09-04 (undated — no source record)

Our record of recorded divisions of the House of Commons begins 2016-03-09; 2 signal types (seats held on select and public bill committees; amendments a member put their name to) have no source data at all; and the stance estimates have never been scored against a verified answer key. The full statement is in the long report.

The numbers

1. [Expansion of judicial review without parliamentary authority](#) — Judicial Review and Courts Bill - Second Reading (2022-02-07. ☺)

This debate mentions the 'steady increase in the readiness of the courts to intervene' since 1980, which supports the proposal's diagnosis of an expansive judicial role.

2. [Increased judicial intervention noted since 1980](#) — Judicial Review and Courts Bill - Second Reading (2022-02-07)

This debate mentions the 'steady increase in the readiness of the courts to intervene' since 1980, which supports the proposal's diagnosis of an expansive judicial role.

3. [Judicial review as part of constitutional fabric](#) — ATTORNEY-GENERAL — Judicial Review (Ministerial Decisions) (2011-01-18, 15 years old ☺)

This debate highlights concerns that 'the last word on what Parliament has decided will not be determined here, but by the judges', directly supporting the proposal's diagnosis of judicial overreach.

4. [Concerns over Supreme Court statements on parliamentary sovereignty](#) — FIXED-TERM PARLIAMENTS BILL (PROGRAMME) (NO. 2) — Clause 2 — Early parliamentary general elections (2010-11-24, 15 years old ⓪)

This debate mentions 'statements are being made by members of the Supreme Court that are causing great concern' and an inquiry into 'parliamentary sovereignty', directly supporting the proposal's diagnosis of an evolving judicial self-conception.

5. [Parliamentary committee opinions irrelevant to courts](#) — Erskine May: The courts and parliamentary privilege: The twenty-first century (undated, ⓪)

This source discusses the relationship between courts and Parliament, noting that 'the courts and Parliament were both astute to recognise their respective roles', which is relevant to the proposal's diagnosis of the Supreme Court exceeding its intended role.

6. [Expansion of courts' role into broader public life](#) — Erskine May: The courts and parliamentary privilege (undated, ⓪)

This source provides historical context for the 'development of judicial attitudes to parliamentary privilege' and the relationship between Parliament and the courts, which is relevant to the proposal's diagnosis of an evolving judicial self-conception.

7. [Differing judicial views on parliamentary sovereignty](#) — Public Libraries and Museums Act 1964 (Amendment) — Clause 2 — Early parliamentary general elections (2010-12-01, 15 years old ⓪)

This debate calls for a 'privilege Act to delineate clearly the immunities of Parliament in relation to the functioning of the courts', indicating a perceived tension between the branches, which supports the proposal's diagnosis.

8. [Supreme Court intended to clarify legislature-judiciary relationship](#) — Judicial Appointments/Supreme Court (2004-05-27, 22 years old ⓪)

This debate from 2004 explicitly states that 'the creation of a United Kingdom supreme court is a necessary step to clarify the relationship between the legislature and the judica', which directly relates to the proposal's root cause regarding the 2005 Act.

9. [Judicial review as legal armoury since WWII](#) — ATTORNEY-GENERAL — Judicial Review (Ministerial Decisions) (2011-01-18, 15 years old ⓪)

This debate discusses the concept of 'parliamentary sovereignty' and the increasing role of 'Judicial review', which is relevant to the proposal's diagnosis of judicial overreach.

10. [Supreme Court assumes existing appellate and devolution jurisdiction](#) — CONSTITUTIONAL AFFAIRS — Supreme Court (2004-04-19, 22 years old ⓪)

This parliamentary answer from 2004 states that 'The UK Supreme Court will assume the current jurisdiction of the Appellate Committee of the House of Lords', which contradicts the proposal's implied claim that the Supreme Court gained new formal powers.

11. [Debate on Supreme Court instructing Parliament](#) — Right to Die - Question (2016-07-14, 10 years old ⓪)

This debate discusses whether it is 'appropriate for the Supreme Court to instruct Parliament to do anything' and that 'Parliament is much better equipped to decide these issues', directly supporting the proposal's diagnosis of judicial overreach.

12. [Parliamentary sovereignty as a 'distinctively English principle'](#) — Court of Session: 2025csih4 reclaiming motion in petition for judicial review by ragbir singh and others (2025-01-24. ⓪)

This case law refers to Dicey's theories of Parliamentary sovereignty and the Lord President's famous reference to 'unlimited Parliamentary sovereignty as a distinctively Engl', which provides historical context for the proposal's concern about parliamentary sovereignty.

13. [Judicial activism in modern times acknowledged by government](#) — ARTICLE 50 (2016-11-07, 9 years old ☺)

This debate acknowledges 'a degree of judicial activism in modern times', which supports the proposal's diagnosis of an expansive judicial role.

14. [Judges' role in interpreting written law](#) — Raynolds' (Caolan) Application for Judicial Review (2025-02-27. ☺)

This case law quotes Lord Diplock on the 'constitutional function performed by courts of justice as interpreters of the written law', which is relevant to the proposal's concern about judicial interpretation against original parliamentary intent.

15. [Parliamentary intent is an objective concept](#) — Valesca Valentina Yvette Louwman v The Commissioners for HMRC (2025-03-07. ☺)

This case law emphasizes that 'the intention of Parliament is an objective concept' and that citizens 'should be able to rely upon what they read in an Act of Parliament', reinforcing the proposal's focus on parliamentary intent.

16. [Citizens rely on clear parliamentary enactments](#) — Bronagh Bowden as Personal Representative of Liam Holden (deceased) and Department of Justice (2024-09-17. ☺)

This case law reiterates that the 'words which Parliament has chosen to enact as an expression of the purpose of the legislation' are the 'primary source by which meaning is ascertained', directly supporting the proposal's emphasis on original parliamentary intent.

17. [Pre-enactment scrutiny by parliamentary institutions](#) — The constitutional role of the judiciary if there were a codified constitution — CRJ0009 (2013-11-21, 12 years old ☺)

This written evidence discusses the possibility of a 'new joint committee on constitutional scrutiny', directly supporting the proposal's suggested solution.

18. [Risk of pre-enactment judicial review overshadowing debate](#) — The constitutional role of the judiciary if there were a codified constitution — CRJ0005 (2013-11-07, 12 years old ☺)

This written evidence discusses 'Pre-enactment scrutiny in the courts' and how it might affect parliamentary debate, which is relevant to the proposal's focus on parliamentary scrutiny of judicial interpretation.

19. [No recommendation for new joint constitutional legislation scrutiny committee](#) — Report: 1st Report - Ensuring standards in the quality of legislation - Volume I — Political and Constitutional Reform Committee — 136 Ev w17 137 Ev w17 (2013-05-20, 13 years old ☺)

This committee report explicitly states, 'We do not recommend the creation of a new joint constitutional legislation standards scrutiny committee', which directly contradicts the proposal's suggested solution of establishing a joint committee for constitutional scrutiny.

20. [Comprehensive post-legislative scrutiny for constitutional legislation recommended](#) — Report: 15th Report - The Process of Constitutional Change — Constitution Committee — HOUSE OF LORDS — ¶103 (2011-07-18, 15 years old ☺)

This committee report discusses the recommendation for a 'Post-legislative Scrutiny Committee to manage the process of reviewing up to four selected Acts of Parliament each year', which is directly relevant to the proposal's suggested solution of a joint committee for post-legislative scrutiny.

21. [Little evidence of judicial overreach in UK](#) — Public Libraries and Museums Act 1964 (Amendment) — Clause 2 — Early parliamentary general elections (2010-12-01, 15 years old ☺)

This debate directly addresses 'judicial activism' and whether judges are 'overreaching', which is central to the proposal's diagnosis of the Supreme Court's self-conception.

22. [Fears over judicial activism misplaced in domestic law](#) — Public Libraries and Museums Act 1964 (Amendment) — Clause 2 — Early parliamentary general elections (2010-12-01, 15 years old )

This debate expresses fears over 'judicial activism' and questions whether the 'independent Supreme Court... might not always exercise the restraint and care that has been shown by the present generation of judge', directly supporting the proposal's diagnosis.

What's devolved

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

Questions that did **not** run on this draft: Whether this is Westminster's to change

Key sources

This module can be run when the strategic kernels have been properly reviewed.

M-04 — The arm's-length body estate

105 entries across **8 of 13 headings**.  **7 entries resolve to no heading** and are listed at the end — a gap in the library, not sources to drop.

How hard will this be to achieve?

This module can be run when the strategic kernels have been properly reviewed.

Cost and duration

The module calculating the costs and benefits of proposed measures is under development. It will aim to contribute to a better balance between those who benefit from legislation and those who pay for it, both taxpayers and those who pay the price of bureaucratic inefficiency and the regulatory burden.

What the law says now

1. [Existing power to abolish or merge ALBs](#) — Public Bodies Act 2011, s.1 (2011)

This section confers power on a Minister to abolish bodies or offices specified in Schedule 1 by order, which directly relates to the proposal's aim to abolish or absorb ALBs. It is a key existing power for reform.

2. [Procedure for exercising existing powers](#) — Public Bodies Act 2011, s.11 (2011)

This section outlines the procedure for making orders under sections 1 to 5, requiring consultation and laying a draft order and explanatory document before Parliament. This defines the procedural limits of the existing powers.

3. [Time limit on existing powers](#) — Public Bodies Act 2011, s.12 (2011)

This section imposes a five-year time limit on the entries in Schedules 1 to 5, meaning the powers to abolish or merge ALBs are not perpetual for all listed bodies. This is a critical limit on the existing power.

4. [Existing power to modify or transfer functions](#) — Public Bodies Act 2011, s.5 (2011)

This section confers power on a Minister to modify or transfer functions of bodies or office-holders specified in Schedule 5 by order, which is relevant to the proposal's aim of redefining ministerial oversight and accountability mechanisms.

5. [Ministerial accountability for ALBs](#) — Public Bodies: Governance and Accountability (2025-11-12. )

This debate highlights the government's intention to reform the state, including ALBs, to ensure ministerial accountability for service delivery, directly supporting the proposal's objective.

6. [Fragmented legal landscape for ALBs](#) — Report: 1st Report - Who's accountable? Relationships between Government and arm's-length bodies — Public Administration Committee — Who's accountable? Relationships between Government and arm's-length bodies 1 (2014-11-10, 11 years old ☺)

This report highlights that 'arm's-length Government is confused and opaque' with 'inconsistent organisational forms' and that 'Most public bodies answer to Ministers,' directly supporting the proposal's problem statement.

7. [Public Bodies Act 2011 powers](#) — Public Bodies Act 2011, s.1 (2011)

This section of the Public Bodies Act 2011 provides the mechanism for ministers to abolish or merge ALBs and transfer functions, which is the existing statutory power the proposal acknowledges but seeks to supersede with a more comprehensive framework.

8. [Time-limited powers in Public Bodies Act 2011](#) — Public Bodies Act 2011, s.1 (2011)

This section of the Public Bodies Act 2011 provides the mechanism for ministers to abolish or merge ALBs and transfer functions, which is the existing statutory power the proposal acknowledges but seeks to supersede with a more comprehensive framework.

9. [Conditions for orders under Public Bodies Act 2011](#) — Public Bodies Act 2011, s.8 (2011)

This section of the Public Bodies Act 2011 sets out the conditions for ministerial orders to modify or transfer functions, including 'securing appropriate accountability to Ministers,' which is a key objective of the proposal.

10. [Restrictions on Ministerial powers under Public Bodies Act 2011](#) — Public Bodies Act 2011, s.7 (2011)

This section of the Public Bodies Act 2011 restricts ministerial powers to modify functions if it prevents independent exercise, highlighting a tension between ministerial control and ALB independence that the proposal seeks to rebalance.

11. [Consultation and parliamentary scrutiny for Public Bodies Act 2011 orders](#) — Public Bodies Act 2011, s.1 (2011)

This section of the Public Bodies Act 2011 provides the mechanism for ministers to abolish or merge ALBs and transfer functions, which is the existing statutory power the proposal acknowledges but seeks to supersede with a more comprehensive framework.

12. [Parliamentary committee findings on ALB accountability](#) — Report: 1st Report - Who's accountable? Relationships between Government and arm's-length bodies — Public Administration Committee — Table 2: One possible taxonomy of arm's-length bodies 36 (2014-11-10, 11 years old ☺)

This report highlights that 'Accountability for arm's-length bodies is confused, overlapping and neglected,' directly supporting the proposal's problem statement about a fragmented legal landscape and blurred responsibilities.

13. [Cabinet Office role in ALB oversight](#) — central oversight of arms length bodies (undated, ☺)

This guidance details the roles of the Cabinet Office, HM Treasury, and sponsor departments in overseeing ALBs, providing context on the current central oversight mechanisms that the proposal aims to enhance.

14. [Carltona principle and ministerial accountability](#) — Cabinet Office — Civil Service Reform (2025-04-24. ☺)

This debate highlights the 'fiction that an arm's length body can somehow absolve Ministers' of accountability, directly addressing the core problem the proposal aims to solve by establishing direct accountability.

15. [ALB accountability to sponsoring Minister](#) — Cabinet Office — Arms Length Bodies (2026-03-25. ☺)

This answer clarifies the current accountability mechanism for ALBs, stating they report to their sponsoring Minister and parent department, which is the existing framework the proposal seeks to reform.

16. [Value for money assessment of ALBs](#) — Cabinet Office — Arms Length Bodies: Cost Effectiveness (2026-03-25. Ø)

This answer clarifies that value for money in ALBs is primarily assessed by their sponsoring department, with the Accounting Officer being responsible, which is part of the existing accountability structure the proposal aims to reform.

17. [Framework documents for ALB relationships](#) — central oversight of arms length bodies (undated, Ø)

This guidance details the roles of the Cabinet Office, HM Treasury, and sponsor departments in overseeing ALBs, providing context on the current central oversight mechanisms that the proposal aims to enhance.

18. [Review of ALB landscape](#) — Cabinet Office — Arms Length Bodies (2026-06-24. Ø)

This answer details the establishment of new ALBs, including an Independent Football Regulator, demonstrating the ongoing creation of bodies that would need to be integrated into the proposed unified framework.

19. [Public Office \(Accountability\) Bill](#) — Public Office (Accountability) Bill — 2nd reading (last updated 2026) (2026-07-21. Ø)

This bill explicitly addresses accountability in public office, which directly aligns with the proposal's aim to establish a unified statutory framework for ministerial oversight and direct accountability of ALB decision-makers.

20. [Accounting Officer responsibilities for financial oversight](#) — Treasury — Arms Length Bodies: Whitehall (2025-03-07. Ø)

21. [Accounting Officer system statements](#) — Cabinet Office — Public Bodies: Transparency in Service Delivery (2021-07-08, 5 years old Ø)

22. [Framework Documents as constitutional documents](#) — Treasury — Depositing Framework Documents in the House Libraries (2022-07-04. Ø)

23. [Commissioner for Public Appointments role in regulation](#) — Framework Document setting out our relationship with BEIS (2019-12-19, 6 years old Ø)

24. [Ministerial approval of ALB strategies and appointments](#) — Cabinet Office — Arms Length Bodies (2024-12-04. Ø)

25. [Ministerial responsibility and intervention in agencies](#) — Ministerial Responsibility (1996-02-12, 30 years old Ø)

26. [Ministerial responsibility and accountability to Parliament](#) Vol_1_(Jan_1909)_to_2004/S5LV0538P0.zip) — Lords: Civil Service (Management Functions) Bill [H.L.] (1992-07-07, 34 years old Ø)

27. [Cabinet Office oversight and guidance for ALBs](#) — central oversight of arms length bodies (undated, Ø)

28. [Cabinet Office focus on streamlining and reform](#) — departments oversight of arms length bodies a comparative study (undated)

29. [Cabinet Office review of ALBs and reform](#) — Ministry of Defence — MOD Arm's Length Bodies Reforms (2026-04-23)

30. [The Haldane Principle and research funding](#) — Stem Cell Research — Question (2009-06-22, 17 years old Ø)

31. Terms of art the record confirms (undated — no source record, Ø)

What else refers to this law

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

How the courts have read it

1. [Carltona principle allows ministerial delegation to officials](#) — Austin v Chief Constable of Surrey Police (2010-02-18, 16 years old ☺)

This case discusses the 'Carltona principle' as an exception to the general principle of non-delegation, allowing ministers to delegate functions to officials, which is a core legal concept the proposal seeks to address.

2. [Carltona principle applies to subordinate legislation](#) — In the matter of an application for judicial review by John Vincent McCann, a solicitor and a member of the Solicitor's Criminal Bar Association and In the matter of the payment of fees for a Solicitor's work in criminal matters under the Legal aid, Advice and assistance (NI) Order 1981 (2004-09-09, 22 years old ☺)

This case affirms the application of the 'Carltona principle' to the making of subordinate legislation by a Minister within a Department, which is relevant to the scope of ministerial delegation.

3. [Carltona principle can be displaced by contrary statutory intention](#) — In the matter of an application by Joseph Lockhart for Judicial Review (2007-04-27, 19 years old ☺)

This case discusses the 'Carltona principle' and its susceptibility to judicial review, which is central to the proposal's concern about ministerial accountability for ALB decisions.

4. [Carltona principle reinforced in later cases](#) — Castle v Crown Prosecution Service (2014-01-24, 12 years old ☺)

This case discusses Lord Greene's observations on the 'Carltona principle' and its powerful support in later cases, which is fundamental to the legal framework the proposal seeks to change.

5. [Carltona principle does not mean personal attention to every matter](#) — R v Adams (Northern Ireland) (2020-05-13, 6 years old ☺)

This case discusses the 'Carltona principle' in the context of ministerial duties and powers, affirming that duties and powers given to ministers may be exercised by other responsible officials, which is the core principle the proposal aims to redefine.

6. [Carltona principle applies to Chief Constables' powers](#) — Director of Public Prosecutions v Haw (2007-08-06, 19 years old ☺)

This case discusses the 'Carltona principle' and its application to the powers of a Chief Constable, which is relevant to understanding the scope and limits of ministerial delegation.

7. [Carltona principle distinguished from delegation](#) — R v Adams (Gerard) (2018-02-14, 8 years old ☺)

This case discusses the distinction in delegation powers and the absence of specific delegation provisions, which is relevant to the fragmented legal landscape for ALBs that the proposal seeks to unify.

8. [Carltona principle applies to provisional deportation decisions](#) — McCafferty's application (Terence) for a writ of Habeas Corpus (2009-03-09, 17 years old ☺)

This case notes that Parliament may expressly limit the power to devolve or delegate decisions, which is directly relevant to the proposal's aim of establishing a unified statutory framework for ministerial oversight.

9. [Carltona principle applied to prison rules](#) — McCafferty's (Terence) Application for Writ of Habeas Corpus (2009-12-16, 16 years old ☺)

This case refers to the 'Carltona principle' in the context of a Secretary of State's power, which is relevant to the existing legal understanding of ministerial delegation.

10. [Carltona principle applied to ICO making](#) — Queen v Ivor Malachy Bell (2021-08-25, 5 years old ☺)

This case considers the application of the 'Carltona principle' and reiterates that duties and powers given to Ministers may normally be exercised by other responsible officials, directly addressing the legal principle the proposal seeks to amend.

11. [Carltona principle allows devolution of responsibility, not full delegation of powers](#) — Noon, River Manager, Conservators of the River Cam v Matthews & Ors (2014-12-19, 11 years old )

This case discusses the limits of delegation, where a body accepted it could not delegate its powers as a whole, which is relevant to the proposal's aim of establishing direct accountability for ALB decision-makers.

12. [Carltona principle challenged in specific contexts](#) — Mr R Wagener v The Right Honourable M Gove MP: 2407553/2021 - Reserved Judgment (2024-02-26. )

This case explicitly references the 'Carltona principle' as the basis for officials acting on behalf of a Minister without formal delegation, which is precisely the legal mechanism the proposal aims to reform.

13. [Carltona principle: Ministers delegate to officials, remain accountable](#) — Austin v Chief Constable of Surrey Police (2010-02-18)

This case discusses the 'Carltona principle' as an exception to the general principle of non-delegation, allowing ministers to delegate functions to officials, which is a core legal concept the proposal seeks to address.

14. [Carltona principle: Displacement by statutory intent](#) — In the matter of an application by Joseph Lockhart for Judicial Review (2007-04-27)

This case discusses the 'Carltona principle' and its susceptibility to judicial review, which is central to the proposal's concern about ministerial accountability for ALB decisions.

15. [Carltona principle: Not applicable to departments acting without Ministers](#) — Summary of judgment - Court of Appeal concludes that Department did not have power to act in absence of Minister (2018-07-06)

This judgment outlines established constitutional principles regarding the exercise of statutory, prerogative, and executive powers by politically accountable ministers, which directly bears on the proposal's aim to redefine ministerial responsibility.

16. [Carltona principle: Not confined to strictly judicial acts](#) — In the matter of an application by John Adair for Judicial Review (2003-02-18, 23 years old )

This case discusses the validity of delegating a Minister's power of decision, particularly if it is considered a judicial power, which directly relates to the legal framework of accountability for ALB decisions.

What was tried before — and what happened

 Questions filed here that did **not** run on this draft: Whether this has been tried before

1. [Public Bodies Act 2011 aimed to reduce number and cost of quangos](#) — Public Bodies Bill [HL] — Committee (6th Day) (2011-01-11)

This debate references documents that describe different kinds of ALBs and how they might be reformed, which could shed light on the original intent behind their structure and accountability.

2. [Public Bodies Act 2011 provides powers for ministerial changes to statutory bodies](#) — Business of the House — Public Bodies Reform (2010-10-14)

This debate discusses the government's commitment to introduce a public bodies Bill to give Ministers power to make changes, providing direct insight into the legislative intent behind the Public Bodies Act 2011.

3. [Public Bodies Act 2011 enables abolition or merger of ALBs](#) — Public Bodies Act 2011, s.7 (2011)

This section of the Public Bodies Act 2011 explicitly restricts ministerial powers to modify or transfer functions if it would prevent them from being exercised 'independently of Ministers.' This is a direct indication that the independence of certain ALB functions was a deliberate choice, which the proposal seeks to challenge.

4. [Act allows modification or transfer of functions](#) — Explanatory Notes to Public Bodies Act 2011 (*undated*)

These explanatory notes for the Public Bodies Act 2011 clarify the power to modify or transfer functions of bodies listed in Schedule 5, which helps understand the original legislative intent regarding flexibility versus a unified framework.

5. [Act deliberately restricts ministerial powers for independent functions](#) — Public Bodies Act 2011, s.7 (2011)

This section of the Public Bodies Act 2011 explicitly restricts ministerial powers to modify or transfer functions if it would prevent them from being exercised 'independently of Ministers.' This is a direct indication that the independence of certain ALB functions was a deliberate choice, which the proposal seeks to challenge.

6. [Ministerial accountability for ALBs is a long-standing debate](#) — Cabinet Office — Civil Service Reform (2025-04-24. ☺)

This debate explicitly discusses the 'fiction that an arm's length body can somehow absolve Ministers' and the long-standing issue of headcount reduction through quangos, indicating a historical awareness of the accountability gap.

7. [Historical concern about unaccountable arm's-length agencies](#) — PRAYERS — Citizens Charter (1991-11-15)

This debate from 1991 directly questions whether the government intends to put more services out to 'arm's-length agencies which are not effectively accountable to Ministers, and certainly not accountable to Members of the House,' showing that the concern about accountability for ALBs is a long-standing, deliberate feature of their design.

8. [Accountability for ALBs described as 'confused, overlapping and neglected'](#) — Report: 1st Report - Who's accountable? Relationships between Government and arm's-length bodies — Public Administration Committee (2014-11-10, 11 years old ☺)

This committee report directly addresses the issue of accountability for arm's-length bodies, stating it remains 'confused, overlapping and neglected,' which is the core problem the proposal seeks to fix. It may contain insights into the historical reasons for this confusion.

9. [Ministers are publicly accountable for ALBs despite arm's-length status](#) — Accountability of quangos and public bodies inquiry — QPD0013 (2014-04-29, 12 years old ☺)

This written evidence for an inquiry into 'Accountability of quangos and public bodies' states that 'ministers are accountable for' public bodies 'in the eyes of the public and Parliament,' but questions departments' capacity for effective oversight, directly addressing the tension between ministerial responsibility and actual accountability for ALB outcomes.

10. [Some ALBs are designed to operate independently of ministerial control](#) — Report: 1st Report - Who's accountable? Relationships between Government and arm's-length bodies — Public Administration Committee — Who's accountable? Relationships between Government and arm's-length bodies 41 (2014-11-10, 11 years old ☺)

This committee report defines NDPBs as operating 'to a greater or lesser degree at arm's length from ministers,' explicitly stating that this distance and implied independence is a deliberate characteristic of their design.

Where this mechanism works elsewhere

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

Questions that did **not** run on this draft: What other sectors built for the same problem

Who has argued about this

1. [Accountability for ALBs is confused and neglected](#) — Report: 1st Report - Who's accountable? Relationships between Government and arm's-length bodies — Public Administration Committee — Table 2: One possible taxonomy of arm's-length bodies 36 (2014-11-10, 11 years old )

This committee report explicitly states that 'Accountability for arm's-length bodies is confused, overlapping and neglected, with blurred boundaries and responsibilities,' which is a core problem identified by the proposal.

2. [Ministerial accountability for ALBs](#) — Cabinet Office — Arms Length Bodies (2026-03-25. )

This debate clarifies the existing accountability mechanism for ALBs, stating they are accountable to their sponsoring Minister and parent department, which highlights the current framework the proposal aims to reform by establishing direct accountability for ALB decision-makers.

3. [Ministers held accountable for ALB performance](#) — Accountability of quangos and public bodies inquiry — QPD0013 (2014-04-29, 12 years old )

This written evidence raises questions about the capacity of departments to undertake effective oversight of ALBs, especially for complex tasks, and notes that ministers are accountable in the eyes of the public and Parliament, directly addressing the proposal's concerns.

4. [Ministers need influence over ALBs](#) — Scottish Parliament: SPCB Supported Bodies Landscape Review (2025-05-08. )

This Scottish Parliament debate discusses the importance of ministers being able to influence and engage with public bodies for which they are accountable, reflecting the tension between operational independence and ministerial oversight that the proposal addresses.

5. [Government review of ALBs](#) — Public Bodies: Governance and Accountability (2025-11-12)

This debate directly addresses the governance and accountability of public bodies, with a ministerial commitment to ensure ministers have the right accountability for services delivered by ALBs, indicating a recognition of the problem the proposal seeks to solve.

6. [Ongoing comprehensive ALB review](#) — Cabinet Office — Arms Length Bodies (2026-06-24. )

This debate provides information on the establishment of new ALBs, such as an Independent Football Regulator, demonstrating the ongoing creation of bodies that would need to be integrated into the proposed unified framework.

7. [Ministerial control and accountability in Defence Reform](#) — Ministry of Defence — MOD Arm's Length Bodies Reforms (2026-04-23. )

This debate mentions the Defence Reform programme and its aim to support the Government Plan for Change and the Prime Minister's Productive and Efficient Government agenda, which includes reforms to MOD ALBs, indicating a specific instance of ALB reform efforts.

8. [Public Office \(Accountability\) Bill](#) — Public Office (Accountability) Bill — 2nd reading (last updated 2026) (2026-07-21. )

This bill explicitly aims to reinforce accountability and fiscal responsibility across the system of public offices, which directly aligns with the proposal's goal of establishing a unified statutory framework for ministerial oversight and direct accountability of ALB decision-makers.

9. [Parliamentary mechanism for direct ALB accountability](#) — Arm's-Length Bodies (Review) Bill (2025-03-14. )

This debate directly raises the need for a mechanism to bring ALBs to Parliament for accountability, especially in cases of gross negligence, aligning with the proposal's aim for direct accountability of ALB decision-makers.

10. [Cabinet Office guidance and departmental responsibility](#) — Report: 1st Report - Who's accountable? Relationships between Government and arm's-length bodies — Public Administration Committee — Table 2: One possible taxonomy of arm's-length bodies 36 (2014-11-10, 11 years old )

This committee report explicitly states that 'Accountability for arm's-length bodies is confused, overlapping and neglected, with blurred boundaries and responsibilities,' which is a core problem identified by the proposal.

11. [Value for money assessment of ALBs](#) — Cabinet Office — Arms Length Bodies: Cost Effectiveness (2026-03-25. )

This debate clarifies that value for money in ALBs is primarily assessed by their sponsoring department and Accounting Officer, highlighting the current decentralized accountability for performance that the proposal aims to centralize and strengthen.

12. [Review of Office for Environmental Protection](#) — Office for Environmental Protection public body review outcome (2022-08-11. )

This document details the outcome of a public body review for the Office for Environmental Protection, including recommendations, which serves as a precedent for how individual ALB accountability and performance are assessed and improved.

13. [Arm's length bodies do not absolve Ministers of responsibility](#) — Cabinet Office — Civil Service Reform (2025-04-24. )

This debate directly addresses the 'fiction that an arm's length body can somehow absolve Ministers' of accountability, which is a core issue the proposal seeks to resolve by establishing direct accountability for ALB decision-makers.

14. [Loosening ministerial involvement in accountability](#) — Scottish Parliament: On resuming— (2005-10-31, 20 years old )

This Scottish Parliament debate discusses whether the process of accountability needs to be loosened, with some suggesting ministers should be less involved, which directly contradicts the proposal's aim for enhanced ministerial oversight and direct accountability.

Key people and groups likely to support or oppose

1. [Sir Gary Streeter — recorded acts bearing on “ADVERTISING STANDARDS AUTHORITY AND RELIGIOUS LIBERTY”](#) — Position graph, method 3c.7bac2c10d652, computed 2026-09-04 (2012-06-13)

Matched to this proposal on the phrase “advertising standards”. Most recent recorded act: 2012-06-13, for “ADVERTISING STANDARDS AUTHORITY AND RELIGIOUS LIBERTY”. 1 recorded act in total, listed in full in the long report.

2. What this section does not cover — our record of recorded divisions of the House of Commons begins 2016-03-09, and 2 signal types have no source data — Position graph coverage, generated 2026-09-04 (undated — no source record)

Our record of recorded divisions of the House of Commons begins 2016-03-09; 2 signal types (seats held on select and public bill committees; amendments a member put their name to) have no source data at all; and the stance estimates have never been scored against a verified answer key. The full statement is in the long report.

The numbers

1. [Accountability for ALBs is 'confused, overlapping and neglected'](#) — Report: 1st Report - Who's accountable? Relationships between Government and arm's-length bodies — Public Administration Committee — Table 2: One possible taxonomy of arm's-length bodies 36 (2014-11-10, 11 years old )

2. [Ministers are accountable for ALBs, but direct accountability for ALB decision-makers is difficult](#) — Report: 1st Report - Who's accountable? Relationships between Government and arm's-length bodies — Public Administration Committee — Table 2: One possible taxonomy of arm's-length bodies 36 (2014-11-10, 11 years old )
3. [Fragmented legal landscape for ALBs](#) — Report: 1st Report - Who's accountable? Relationships between Government and arm's-length bodies — Public Administration Committee — Table 2: One possible taxonomy of arm's-length bodies 36 (2014-11-10, 11 years old )
4. [Cabinet Office oversees ALB landscape and provides guidance](#) — central oversight of arms length bodies (undated, )
5. [Ministers remain accountable to Parliament under 'Carltona principle'](#) — Cabinet Office — Civil Service Reform (2025-04-24. )
6. [Public Bodies Act 2011 provides mechanism for abolition or merger, but is time-limited](#) — Public Bodies Act 2011, s.12 (2011)
7. [Public Bodies Act 2011 requires consultation and explanatory document](#) — Public Bodies Act 2011, s.11 (2011)
8. [Government aims to repatriate policy oversight to Ministerial control](#) — Ministry of Defence — MOD Arm's Length Bodies Reforms (2026-04-23. )
9. [ALBs are accountable to sponsoring Minister and parent department](#) — Cabinet Office — Arms Length Bodies (2026-03-25. )
10. [Value for money in ALBs is primarily assessed by sponsoring department](#) — Cabinet Office — Arms Length Bodies: Cost Effectiveness (2026-03-25. )
11. [Cabinet Office review of ALBs aims to improve efficiency and Ministerial accountability](#) — Cabinet Office — Arms Length Bodies (2026-06-16. )
12. [Government has announced establishment of 15 new ALBs since July 2024](#) — Cabinet Office — Arms Length Bodies (2026-06-24)
13. [Cabinet Office guidance on framework agreements not always updated](#) — central oversight of arms length bodies (undated, )
14. [Public Administration Committee found 'inconsistency, overlaps, confusion and clutter' in ALB accountability](#) — departments oversight of arms length bodies a comparative study (undated)
15. [Government has focused on streamlining and reforming ALB landscape since 2015](#) — departments oversight of arms length bodies a comparative study (undated)
16. [Ministers are inevitably held accountable for ALBs](#) — Post Office (Horizon System) Offences Bill (2024-03-20. )
17. [Public and parliamentary accountability for decisions has been eroded](#) — Accountability of quangos and public bodies inquiry — QPD0018 (2014-05-13, 12 years old )
18. [Ministers are accountable for the quality and content of responses regarding ALBs](#) — Report: 1st Report - Who's accountable? Relationships between Government and arm's-length bodies — Public Administration Committee — Who's accountable? Relationships between Government and arm's-length bodies 29 (2014-11-10, 11 years old )
19. [Ministers need to be able to influence public bodies if performance is not where it should be](#) — Scottish Parliament: SPCB Supported Bodies Landscape Review (2025-05-08. )

What's devolved

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

Questions that did **not** run on this draft: Whether this is Westminster's to change

Key sources

This module can be run when the strategic kernels have been properly reviewed.

M-05 — Judicial review of executive decisions

111 entries across **8 of 13 headings**.  **6 entries resolve to no heading** and are listed at the end — a gap in the library, not sources to drop.

How hard will this be to achieve?

This module can be run when the strategic kernels have been properly reviewed.

Cost and duration

The module calculating the costs and benefits of proposed measures is under development. It will aim to contribute to a better balance between those who benefit from legislation and those who pay for it, both taxpayers and those who pay the price of bureaucratic inefficiency and the regulatory burden.

What the law says now

1. [Judicial Review and Courts Act 2022 did not include general ouster clause framework](#) — Explanatory Notes to Judicial Review and Courts Act 2022 (*undated*)

This explanatory note details the government's decision not to proceed with a general framework for ouster clauses, which is directly relevant to the proposal's aim of clarifying their effect.

2. [Government considered clarifying ouster clauses post-IRAL](#) — Independent Review of Administrative Law Update - Statement (2021-03-22, 5 years old )

This debate excerpt discusses the government's consideration of 'putting in place a set of rules that clearly delineate which issues are a matter for the courts to adjudicate through judicial review and which are not,' directly addressing the proposal's core aim.

3. [IRAL panel opposed broad ouster clauses](#) — Independent Review of Administrative Law Update - Statement (2021-03-22, 5 years old )

This debate excerpt mentions the Lord Chancellor's intention to examine 'the use of ouster clauses' and 'the remedies available,' which is relevant to the proposal's focus on strengthening ouster clauses and defining judicial review boundaries.

4. Courts resist total ouster of jurisdiction — Report: Third Report - The Government's Independent Review of the Human Rights Act — Human Rights (Joint Committee) (2021-07-08, 5 years old )

This report discusses the courts' tendency not to give effect to ouster clauses that purport to oust jurisdiction entirely, which is the pivotal obstacle the proposal seeks to overcome with clearer definitions.

5. Anisminic established narrow interpretation of ouster clauses — Report: Report — 33 Report statutory intention.¹⁰⁴ — Joint Committee on the Fixed-Term Parliaments Act (2021-03-24)

This report discusses the Anisminic case and how courts interpreted an ouster clause, finding that errors of law meant the commissioners had exceeded their powers, which is a pivotal obstacle the proposal seeks to overcome.

6. [Privacy International reaffirmed Anisminic principle](#) — R v Investigatory Powers Tribunal and others (2019-05-15)

This case (R v Investigatory Powers Tribunal and others) is a key precedent regarding the interpretation of ouster clauses in light of Anisminic, directly relevant to the proposal's aim of strengthening ouster clauses.

7. [Judicial Review and Courts Act 2022 included targeted ouster clause for Cart JRs](#) — Judicial Review and Courts Act 2022 — Bill papers, became an Act (2022-05-04)

This bill paper discusses the removal of Cart judicial reviews and the IRAL report's consideration of whether specified grounds for review 'seriously impeded the proper or effective discharge of central or local government functions,' which is relevant to the proposal's problem statement.

8. Parliament can define court jurisdiction — Correspondence: Letter from Rt Hon Robert Buckland QC MP, Lord Chancellor and Secretary of State for Justice, dated 17 March 2021, regarding Independent Review of Administrative Law (2021-03-24)

This correspondence from the Lord Chancellor discusses the Independent Review of Administrative Law and additional proposals for public consultation, including 'legislating to clarify the effect of ouster clauses,' directly relevant to the proposal.

9. Courts' constitutional role is to enforce law set by Parliament — Report: Tenth Report - Legislative Scrutiny: Judicial Review and Courts Bill — Human Rights (Joint Committee) (2021-12-07. [Ø](#))

This report highlights the significant implications for the rule of law and Parliament's powers when attempting to limit judicial review, which is a key tension the proposal seeks to address.

10. Parliament should use clear words for ouster clauses — Report: Report — 33 Report statutory intention.¹⁰⁴ — Joint Committee on the Fixed-Term Parliaments Act (2021-03-24, 5 years old [Ø](#))

This report discusses concerns that the breadth of an ouster clause might make it less effective due to requiring judicial interpretation, which is relevant to the proposal's aim of clear statutory definitions.

11. [Judicial Review and Courts Act 2022 amended Tribunals, Courts and Enforcement Act 2007](#) — Tribunals, Courts and Enforcement Act 2007, s.11A (2007)

This section of the Tribunals, Courts and Enforcement Act 2007 is an explicit ouster clause, stating that 'the supervisory jurisdiction does not extend to, and no application or petition for judicial review may be made or brought in relation to, the decision,' providing a direct precedent.

12. [Courts and Tribunals \(Judiciary and Functions of Staff\) Act 2018 allows regulations for judicial functions](#) — Courts and Tribunals (Judiciary and Functions of Staff) Act 2018, s.3 (2018)

This section of the Courts and Tribunals (Judiciary and Functions of Staff) Act 2018 confers power on the Secretary of State or Lord Chancellor to make regulations for staff to exercise judicial functions, which is relevant to the proposal's consideration of new mechanisms for pre-decision review.

13. [Terrorism Prevention and Investigation Measures Act 2011 includes specific ouster clause](#) — Terrorism Prevention and Investigation Measures Act 2011, s.17 (2011)

This section of the Terrorism Prevention and Investigation Measures Act 2011 is a targeted ouster clause, stating that decisions 'are not to be questioned in any legal proceedings other than proceedings in the court,' providing a direct precedent.

14. [Justice and Security \(Northern Ireland\) Act 2007 limits challenge of certificates](#) — Justice and Security (Northern Ireland) Act 2007, s.7 (2007)

This section of the Justice and Security (Northern Ireland) Act 2007 is an explicit ouster clause, stating 'No court may entertain proceedings for questioning (whether by way of judicial review or otherwise) any decision,' providing a direct precedent for the proposal.

15. [Judicial Review and Courts Act 2022](#) — Explanatory Notes to Judicial Review and Courts Act 2022 (undated)

Explains the government's decision not to proceed with a general framework to clarify judicial review after the IRAL report, indicating the current legislative landscape and past considerations for broader reform.

16. [Ouster Clauses in Judicial Review and Courts Act 2022](#) — Judicial Review and Courts Act 2022, s.2 (2022)

This section of the Judicial Review and Courts Act 2022 introduces section 11A, which makes decisions by the Upper Tribunal about permission to appeal 'final and not liable to be questioned or set aside', directly relevant to the proposal's aim of statutory restriction.

17. Parliamentary Sovereignty and Ouster Clauses — Report: Tenth Report - Legislative Scrutiny: Judicial Review and Courts Bill — Human Rights (Joint Committee) (2021-12-07. Ø)

Discusses the government's view of ouster clauses as a reassertion of parliamentary sovereignty, which aligns with the proposal's constitutional argument.

18. [Judicial Resistance to Ouster Clauses](#) — LA (Albania), R (on the application of) v The Upper Tribunal (Immigration & Asylum Chamber) (2023-11-16)

Refers to the Supreme Court's acknowledgement of Parliament's right to oust judicial review with clear language and discusses a partial ouster in section 11A, providing a precedent for targeted ouster clauses.

19. [Targeted Ouster Clauses](#) — LA (Albania), R (on the application of) v The Upper Tribunal (Immigration & Asylum Chamber) (2023-11-16)

Refers to the Supreme Court's acknowledgement of Parliament's right to oust judicial review with clear language and discusses a partial ouster in section 11A, providing a precedent for targeted ouster clauses.

20. [Government Consultation on Ouster Clauses](#) — Independent Review of Administrative Law Update - Statement (2021-03-22, 5 years old Ø)

Indicates the government's intention to examine the use of ouster clauses and available remedies to protect the judiciary and restore trust in the judicial review process, directly relevant to the proposal's objectives.

21. [Civil Procedure Rules and Judicial Review](#) — Judicial Review and Courts Act 2022 (2022)

Refers to the Judicial Review and Courts Act 2022 and its provisions regarding Procedure Rules, which would be relevant for amending the Civil Procedure Rules as proposed.

22. Judicial Review as a Mechanism for Challenge — Report: Tenth Report - Legislative Scrutiny: Judicial Review and Courts Bill — Human Rights (Joint Committee) (2021-12-07)

Outlines the structure of the Judicial Review and Courts Bill, specifically mentioning chapters on 'Cart' judicial reviews and ouster clauses, which are directly relevant to the proposal's context.

23. [Judicial Review and Courts Act 2022: Government's Focus](#) — Explanatory Notes to Judicial Review and Courts Act 2022 (undated)

24. [Judicial Review and Courts Act 2022: Removal of Cart Judicial Reviews](#) — Judicial Review and Courts Act 2022 — Bill papers, became an Act (2022-05-04)

25. [Judicial Review and Courts Act 2022: Scope of Cart JR Removal](#) — Judicial Review and Courts Act 2022 — Bill papers, became an Act (2022-05-04)

26. [Judicial Review and Courts Act 2022: Concerns about Ouster Clauses](#) — Judicial Review and Courts Act 2022 — Bill papers, became an Act (2022-05-04)

27. [Safety of Rwanda \(Asylum and Immigration\) Act 2024: Commencement](#) — Safety of Rwanda (Asylum and Immigration) Act 2024 — Bill papers, became an Act (2024-06-10)

28. [Safety of Rwanda \(Asylum and Immigration\) Act 2024: Context of Illegal Migration](#) — Safety of Rwanda (Asylum and Immigration) Act 2024 — Bill papers, became an Act (2024-06-10)

29. [Safety of Rwanda \(Asylum and Immigration\) Act 2024: Specific Provisions](#) — Safety of Rwanda (Asylum and Immigration) Act 2024 — Bill papers, became an Act (2024-06-10)
30. [Safety of Rwanda \(Asylum and Immigration\) Act 2024: Repeal](#) — Border Security, Asylum and Immigration Act 2025, s.40 (2025)
31. [Anisminic Ltd v Foreign Compensation Commission: Ouster Clause Interpretation](#) — Privacy International, R (on the application of) v Secretary of State for Foreign and Commonwealth Affairs & Ors (2017-11-23)
32. [Anisminic Ltd v Foreign Compensation Commission: Extension of Ultra Vires](#) — White & Anor v South Derbyshire District Council (2012-11-08)
33. [Anisminic Ltd v Foreign Compensation Commission: Impact on Ultra Vires Doctrine](#) — White & Anor v South Derbyshire District Council (2012-11-08)
34. [Anisminic Ltd v Foreign Compensation Commission: Pre-Anisminic Test](#) — LA (Albania), R (on the application of) v The Upper Tribunal (Immigration & Asylum Chamber) (2023-11-16. Ø)
35. [Anisminic Ltd v Foreign Compensation Commission: Scottish Law Perspective](#) — Court of Session: 2016csoh78 petition by michael ashley for judicial review of determinations of a judicial panel and appellate tribunal of the scottish football associ (2016-06-10)
36. [Anisminic Ltd v Foreign Compensation Commission: Continued Relevance](#) — Mary Jane Baluden Oceana, R (on the application of) v Upper Tribunal (Immigration and Asylum Chamber) (2023-04-04. Ø)
37. Delegated Powers and Regulatory Reform Committee: Role and Scrutiny — Report: 22nd Report - Economic Crime (Transparency and Enforcement) Bill; Judicial Review and Courts Bill: Government Response — ¶8 — Delegated Powers and Regulatory Reform Committee (2022-03-10. Ø)
38. [Delegated Powers and Regulatory Reform Committee: Influence on Judges](#) — Report: Parliamentary Privilege - Report of 2013-14 (Report, together with formal minutes and an appendix) — Parliamentary Privilege (Joint Committee) — Parliamentary Privilege 27 (2013-07-03, 13 years old Ø)
39. [Independent Review of Administrative Law: Establishment and Purpose](#) — Judicial Review and Courts Act 2022 — Bill papers, became an Act (2022-05-04)
40. [Independent Review of Administrative Law: Government Response](#) — Explanatory Notes to Judicial Review and Courts Act 2022 (undated)
41. [Independent Review of Administrative Law: Panel's Stance on Ouster Clauses](#) — Independent Review of Administrative Law Update - Statement (2021-03-22, 5 years old Ø)
42. [Independent Review of Administrative Law: No Systemic Overreach Found](#) — Judicial Review and Courts Act 2022 — Bill papers, became an Act (2022-05-04. Ø)
43. [Independent Review of Administrative Law: Consultation on Ouster Clauses](#) — Independent Review of Administrative Law Update - Statement (2021-03-22, 5 years old Ø)
44. [Ouster clause: Definition and Purpose](#) — Independent Review of Administrative Law Update - Statement (2021-03-22, 5 years old Ø)
45. [Ouster clause: Current Practice and Parliamentary Intent](#) — Independent Review of Administrative Law (2021-03-18, 5 years old Ø)
46. [Ouster clause: Cart JR Removal](#) — Judicial Review and Courts Act 2022 — Bill papers, became an Act (2022-05-04)
47. [Ouster clause: Parliamentary Sovereignty Argument](#) — Judicial Review and Courts Bill - Committee (1st Day) — Amendment 16 (2022-02-21. Ø)
48. [Ouster clause: Historical Disappication](#) — MD Ayaz Karim, R (on the application of) v Upper Tribunal (Immigration and Asylum Chamber) (2024-06-06. Ø)

49. [Parliamentary Sovereignty: Underpins Ouster Clauses](#) — Judicial Review and Courts Bill - Committee (1st Day) — Amendment 16 (2022-02-21. Ø)
50. [Parliamentary Sovereignty: Not Untrammelled Executive Authority](#) — Judicial Review and Courts Bill — New Clause 4 - Publicly funded legal representation for bereaved people at inquests (2022-01-25. Ø)
51. [Parliamentary Sovereignty: Constrained by Common Law](#) — Asylum and Immigration (Treatment of Claimants, etc.) Bill (2004-03-15, 22 years old Ø)
52. [Principle of Legality: Curtailment of Rights](#) — Boris Mints & Ors v PJSC National Bank Trust & Anor (2023-10-06. Ø)
53. [R \(Privacy International\) v Investigatory Powers Tribunal: Reaffirmation of Anisminic](#) — Mary Jane Baluden Oceana, R (on the application of) v Upper Tribunal (Immigration and Asylum Chamber) (2023-04-04)
54. [R \(Privacy International\) v Investigatory Powers Tribunal: Total Ouster](#) — Court of Session: 2025csih4 reclaiming motion in petition for judicial review by ragbir singh and others (2025-01-24)
55. [Rule of Law: Judicial Independence](#) — Judicial Independence and Out of Court Discussions (*undated*, Ø)
56. [Rule of Law: Government Acceptance of Judgments](#) — Judicial Review and Courts Bill (2021-10-26. Ø)
57. [Rule of Law: Exclusion of Judicial Review](#) — Court of Session: 2010csoh45 blajosse charlotte eba for judicial review of the refusal of an appeal to the first tier tribunal (2010-03-31, 16 years old Ø)
58. [Ultra vires: Basis of Judicial Review](#) — European Union Bill (Programme)(No. 2) — Clause 1 — Interpretation of Part 1 (2011-01-24, 15 years old Ø)
59. [Ultra vires: Extension by Anisminic](#) — In the matter of an application for Judicial Review by Belfast City Council (2008-02-05)
60. [Ultra vires: Application in Practice](#) — Court of Session: p486_00 douglas stewart vperth and kinross council for judicial review of a decision of perth and kinross district council dated 18 2 94 to refuse t (2000-09-01, 26 years old Ø)
61. Terms of art the record confirms (*undated* — *no source record*)

What else refers to this law

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

How the courts have read it

1. [Anisminic v Foreign Compensation Commission \(1969\) narrowed ouster clauses](#) — LA (Albania), R (on the application of) v The Upper Tribunal (Immigration & Asylum Chamber) (2023-11-16)

This judgment references Anisminic's holding that an ouster clause was ineffective to prevent judicial review for errors of law, reinforcing the narrow interpretation of such clauses. This confirms the judiciary's consistent approach to widening judicial review despite ouster attempts.

2. [Privacy International \(2019\) affirmed narrow interpretation of ouster clauses](#) — R v Investigatory Powers Tribunal and others (2019-05-15)

This is the Supreme Court judgment in Privacy International, which definitively ruled that the ouster clause in RIPA 2000 did not exclude judicial review for errors of law, reaffirming the principle from Anisminic. This significantly widens the scope of judicial review and is a pivotal precedent for the proposal's challenge.

3. [Judicial resistance to broad ouster clauses is a pivotal obstacle](#) — R v Investigatory Powers Tribunal and others (2019-05-15)

This is the Supreme Court judgment in *Privacy International*, which definitively ruled that the ouster clause in RIPA 2000 did not exclude judicial review for errors of law, reaffirming the principle from *Anisminic*. This significantly widens the scope of judicial review and is a pivotal precedent for the proposal's challenge.

4. [Recent legislative attempts use targeted ouster clauses](#) — LA (Albania), R (on the application of) v The Upper Tribunal (Immigration & Asylum Chamber) (2023-11-16)

This judgment references *Anisminic*'s holding that an ouster clause was ineffective to prevent judicial review for errors of law, reinforcing the narrow interpretation of such clauses. This confirms the judiciary's consistent approach to widening judicial review despite ouster attempts.

What was tried before — and what happened

 Questions filed here that did **not** run on this draft: Whether this has been tried before

1. [Judicial review growth since WWII](#) — ATTORNEY-GENERAL — Judicial Review (Ministerial Decisions) (2011-01-18, 15 years old )

Discusses the increasing role of judicial review in the legal system and the concept of parliamentary sovereignty, directly relevant to the proposal's aim of rebalancing these powers.

2. [Judicial review's purpose: legality, not merits](#) Vol_1_(Jan_1909)_to_2004/S5LV0572P0.zip) — Lords: Judiciary, Legislature and the Executive (1996-06-05, 30 years old )

Acknowledges the high quality of judicial review in holding the executive to account and improving administrative decision-making, while also stating that it is not an appellate procedure, which is crucial for understanding the intended scope of judicial review.

3. [Historical increase in judicial intervention](#) — Judicial Review and Courts Bill - Second Reading (2022-02-07)

Discusses the potential for administrative business to be brought to a standstill if every decision were reviewable on unrestricted grounds, providing insight into the rationale behind past considerations of limiting judicial review.

4. Judicial review protects against 'overbearing state' — Report: 12th Report - Judicial Review and Courts Bill — Constitution Committee (2022-02-18. )

States the government's manifesto commitment to update administrative law to ensure judicial review protects individual rights without being abused for political means, outlining the original intent behind the 2022 Act.

5. IRAL commissioned to balance challenge and governance — Correspondence: Letter from the Justice Secretary, Rt Hon Robert Buckland QC MP on Independent Review of Administrative Law, dated 31.7.20 (2020-09-02, 6 years old )

Outlines the terms of reference for the Independent Review of Administrative Law (IRAL), which was commissioned to examine trends in judicial review and balance citizen's rights with effective governance, directly addressing the problem's background.

6. IRAL found no systemic overreach by courts — Correspondence: Letter from the Justice Secretary, Rt Hon Robert Buckland QC MP on Independent Review of Administrative Law, dated 31.7.20 (2020-09-02, 6 years old )

Outlines the terms of reference for the Independent Review of Administrative Law (IRAL), which was commissioned to examine trends in judicial review and balance citizen's rights with effective governance, directly addressing the problem's background.

7. [Judicial Review and Courts Act 2022 reforms](#) — Explanatory Notes to Judicial Review and Courts Act 2022 (undated)

Explains the government's focus for reforms in the Judicial Review and Courts Act 2022, indicating a deliberate decision not to legislate for a general framework to clarify judicial review, which is directly relevant to the proposal's aim of introducing statutory definitions.

8. [Cart JR removal to save judge days](#) — Ministry of Justice — Judicial Review (2021-11-23)

Provides an impact assessment of the 'Cart judicial review measure' in the Judicial Review and Courts Act 2022, detailing the expected savings in judge days, which indicates a deliberate legislative choice to reduce judicial workload in this area.

9. [Parliamentary sovereignty vs. judicial determination](#) — ATTORNEY-GENERAL — Judicial Review (Ministerial Decisions) (2011-01-18, 15 years old)

Highlights a historical concern about parliamentary sovereignty being misunderstood and judges determining the 'last word' on Parliament's decisions, directly addressing the tension the proposal seeks to resolve.

10. [Parliament's role in correcting errors](#) — Judicial Review and Courts Bill - Committee (1st Day) — Amendment 1 (2022-02-21.)

Raises concerns that the Judicial Review and Courts Bill could retrospectively ratify abuses of power, indicating a deliberate choice in the 2022 Act to limit judicial intervention and the controversy surrounding it.

11. [Judicial review ensures government compliance with Parliament's rules](#) — Judicial Review and Courts Bill (2021-10-26.)

Discusses the need for rigor in using mechanisms like clause 2 of the Judicial Review and Courts Bill to exclude only what is necessary to give effect to Parliament's direct will, indicating a deliberate legislative intent to restrict judicial review while maintaining checks.

12. [Judicial review of prerogative powers established in 1967](#) — Secretary of State for the Foreign & Commonwealth Affairs v Bancourt, R (on the application of) (2007-05-23)

Explains that the reviewability of acts of ministers in the exercise of royal prerogative was not established until later, providing historical context for the evolution of judicial review of executive decisions.

Where this mechanism works elsewhere

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

Questions that did **not** run on this draft: What other sectors built for the same problem

Who has argued about this

1. [Independent Review of Administrative Law \(IRAL\) examined judicial review](#) — Judicial Review and Courts Act 2022 — Bill papers, became an Act (2022-05-04.)

Judicial Review and Courts Act 2022 bill papers, detailing the establishment of the Independent Review of Administrative Law (IRAL) to examine trends in judicial review.

2. IRAL found no systemic overreach by courts — Correspondence: Letter from Rt Hon Robert Buckland QC MP, Lord Chancellor and Secretary of State for Justice, dated 17 March 2021, regarding Independent Review of Administrative Law (2021-03-24, 5 years old)

Letter from the Lord Chancellor on the Independent Review of Administrative Law, confirming the delivery of the report and the government's intention to consult on further proposals.

3. Government proceeded with reforms beyond IRAL recommendations — Correspondence: Letter from Rt Hon Robert Buckland QC MP, Lord Chancellor and Secretary of State for Justice, dated 17 March 2021, regarding Independent Review of Administrative Law (2021-03-24, 5 years old)

Letter from the Lord Chancellor on the Independent Review of Administrative Law, confirming the delivery of the report and the government's intention to consult on further proposals.

4. [Judicial Review and Courts Act 2022 made modest changes](#) — Explanatory Notes to Judicial Review and Courts Act 2022 (*undated*)

Explains the government's decision not to proceed with a general framework to clarify judicial review after the IRAL report, indicating past consideration of broader reform.

5. [Courts historically resist broad ouster clauses](#) — Judicial Review and Courts Bill - Second Reading (2022-02-07)

Debate discussing the 'explosion of judicial review' and its perceived conflict with parliamentary authority, reflecting the tension the proposal addresses.

6. [Judicial review upholds the rule of law and parliamentary intent](#) — Independent Review of Administrative Law (2021-03-18, 5 years old)

Debate on the Independent Review of Administrative Law, highlighting judicial review's role in upholding the rule of law and acting as a check on executive power.

7. [Judicial review is a common law doctrine](#) Vol_1_(Jan_1909)_to_2004/S5LV0572P0.zip) — Lords: Judiciary, Legislature and the Executive (1996-06-05, 30 years old)

Debate on the common law constitution and the importance of judicial review, providing historical context for the judiciary's role.

8. [Government concerns about judicial review use](#) — Report: 2nd Report - Criminal Justice and Courts Bill — Constitution Committee — 4 CRIMINAL JUSTICE AND COURTS BILL (2014-07-04, 12 years old)

Report stating that the centrality of judicial review to the rule of law is not questioned by the government, even in the context of proposed reforms.

9. [Proposals for procedural reforms to judicial review](#) — Report: 13th Report - The implications for access to justice of the Government's proposals to reform judicial review — Human Rights (Joint Committee) — 5 Capping of costs ("Protective costs orders") (2014-04-30, 12 years old)

Report discussing alternatives to the government's judicial review reforms, suggesting other ways to achieve aims of reducing cost and delay.

10. [Judicial review is distinct from appeals on merits](#) Vol_1_(Jan_1909)_to_2004/S5LV0572P0.zip) — Lords: Judiciary, Legislature and the Executive (1996-06-05, 30 years old)

Debate acknowledging the high quality of judicial review in holding the executive to account and promoting the rule of law, while noting it is not an appellate procedure.

11. [Growth of judicial review linked to public demand and human rights](#) Vol_1_(Jan_1909)_to_2004/S5LV0572P0.zip) — Lords: Judiciary, Legislature and the Executive (1996-06-05, 30 years old)

Debate discussing the expansion of judicial review due to greater public demand for limitation of executive powers, indicating a historical trend relevant to the proposal.

12. [Judicial review reforms are a devolved matter](#) — Judicial Review and Courts Bill — New Clause 4 - Publicly funded legal representation for bereaved people at inquests (2022-01-25.)

Debate highlighting that the independent review of administrative law made clear judicial review is a devolved matter, relevant to the scope of any UK-wide legislative changes.

Key people and groups likely to support or oppose

1. [Liz Saville Roberts — recorded acts bearing on “Judicial review on miscarriages of justice between 1982 and 2016”](#) — Position graph, method 3c.7bac2c10d652, computed 2026-09-04 (2023-05-02)

Matched to this proposal on the phrase “judicial review”. Most recent recorded act: 2023-05-02, for “Judicial review on miscarriages of justice between 1982 and 2016”. 1 recorded act in total, listed in full in the long report.

2. What this section does not cover — our record of recorded divisions of the House of Commons begins 2016-03-09, and 2 signal types have no source data — Position graph coverage, generated 2026-09-04 (*undated — no source record*)

Our record of recorded divisions of the House of Commons begins 2016-03-09; 2 signal types (seats held on select and public bill committees; amendments a member put their name to) have no source data at all; and the stance estimates have never been scored against a verified answer key. The full statement is in the long report.

The numbers

1. [Judicial review's role in upholding rule of law](#) — Independent Review of Administrative Law (2021-03-18, 5 years old $\emptyset$)

A debate acknowledging judicial review's vital role in upholding the rule of law and acting as a check on executive power, which contradicts the proposal's implicit premise of judicial overreach.

2. [Government consultation on further reforms despite IRAL findings](#) — Consultation — Judicial Review Reform (ministry-of-justice) (2021-04-30, 5 years old $\emptyset$)

Details the government's response to a consultation on Judicial Review Reform, including proposals for further changes beyond the IRAL's recommendations, showing executive attempts to restrict judicial review.

3. [Historical judicial resistance to broad ouster clauses](#) — R v Investigatory Powers Tribunal and others (2019-05-15)

A Supreme Court case that interprets ouster clauses in light of *Anisminic*, directly supporting the proposal's diagnosis that courts interpret ouster clauses narrowly to preserve judicial review for errors of law.

4. [Judicial review of Upper Tribunal decisions \(Cart case\)](#) — R (on the application of Cart) v The Upper Tribunal (2011-06-22)

Addresses the question of judicial review of Upper Tribunal decisions, particularly in immigration cases, which is a high-frequency area of challenge mentioned in the proposal.

5. [Government's focus on specific reforms post-IRAL](#) — Explanatory Notes to Judicial Review and Courts Act 2022 (*undated*)

Explains the government's decision not to proceed with a general framework to clarify judicial review after the IRAL report, indicating a past attempt to address the problem of unclear boundaries.

6. [Increased public demand for limiting executive powers_Vol_1_\(Jan_1909\)_to_2004/S5LV0572P0.zip](#) — Lords: Judiciary, Legislature and the Executive (1996-06-05, 30 years old $\emptyset$)

A debate discussing the expansion of judicial review due to greater public demand for limitation of executive powers, providing a historical perspective on the problem's causes.

7. [Judicial review as a devolved matter](#) — Judicial Review and Courts Bill — New Clause 4 - Publicly funded legal representation for bereaved people at inquests (2022-01-25. $\emptyset$)

A debate highlighting that the independent review of administrative law made clear judicial review is a devolved matter, which is a factual constraint on the proposal's scope.

8. [Judicial review ensures government compliance with Parliament's rules](#) — Judicial Review and Courts Bill — New Clause 4 - Publicly funded legal representation for bereaved people at inquests (2022-01-25. )

A debate stating that the point of judicial review is to ensure government compliance with parliamentary rules, and that restrictions on JR allow the government to 'ride roughshod' over Parliament, directly contradicting the proposal's premise that JR overreaches.

What's devolved

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

Questions that did **not** run on this draft: Whether this is Westminster's to change

Key sources

This module can be run when the strategic kernels have been properly reviewed.

M-06 — The permanent, appointed civil service

131 entries across **8 of 13 headings**.  **8 entries resolve to no heading** and are listed at the end — a gap in the library, not sources to drop.

How hard will this be to achieve?

This module can be run when the strategic kernels have been properly reviewed.

Cost and duration

The module calculating the costs and benefits of proposed measures is under development. It will aim to contribute to a better balance between those who benefit from legislation and those who pay for it, both taxpayers and those who pay the price of bureaucratic inefficiency and the regulatory burden.

What the law says now

1. [Crag 2010 formalised Civil Service appointments](#) — Explanatory Notes to Constitutional Reform and Governance Act 2010 (*undated*)

Explains that the Constitutional Reform and Governance Act 2010 formalised aspects of the Civil Service, including the Civil Service Commission and principles of appointment on merit, which the proposal aims to remove.

2. [Civil Service Commission's role in appointments](#) — Explanatory Notes to Constitutional Reform and Governance Act 2010 (*undated*)

Explains that the Constitutional Reform and Governance Act 2010 formalised aspects of the Civil Service, including the Civil Service Commission and principles of appointment on merit, which the proposal aims to remove.

3. [Government view on existing powers for appointments](#) — Accountability of Civil Servants: Constitution Committee Report — Motion to Take Note (2013-02-07)

Discusses the government's view on the possibility of ministerial influence on Permanent Secretary appointments under the 2010 legislation, directly addressing the proposal's concern about ministerial control.

4. [Ministerial power to make consequential provision](#) — Constitutional Reform and Governance Act 2010, s.51 (2010)

This section, 'Power to make consequential provision', allows a Minister of the Crown to make orders in consequence of any provision of the Act. If the Act were amended or repealed as proposed, this power could be used for consequential changes, but it does not confer power to make the primary change itself.

5. [Delegation of Civil Service management functions](#) — Constitutional Reform and Governance Act 2010, sch.2 para.6 (2010)

Amends section 1 of the Act, specifically regarding the functions conferred on the Minister for the Civil Service by section 3 of CRAG 2010 (management of the civil service), which is central to the proposal's aim to vest appointment and removal powers in the Secretary of State.

6. [Constitutional Reform and Governance Act 2010 \(CRAG 2010\) formalised Civil Service aspects](#) — Explanatory Notes to Constitutional Reform and Governance Act 2010 (undated)

Explains the statutory basis for the Civil Service Commission and the principles of appointment on merit, which the proposal directly targets for removal.

7. [Civil Service Commission's role and powers established in primary legislation](#) — Civil Service Commission annual report and accounts 2017-18 (2018-07-27)

Describes the Civil Service Commission's role in upholding ethical standards and hearing appeals under the Civil Service Code, functions that would be affected by the proposal.

8. [Civil Service Commission membership and appointment](#) — Constitutional Reform and Governance Act 2010, sch.1 para.1 (2010, 16 years old Ø)

Outlines the composition of the Civil Service Commission, which the proposal seeks to remove from its role in senior appointments.

9. [Civil Service Commission regulates its own procedure](#) — Constitutional Reform and Governance Act 2010, sch.1 para.10 (2010, 16 years old Ø)

Details the Civil Service Commission's power to regulate its own procedure, which would be affected if its role in appointments is removed.

10. [Civil Service Commission can employ staff and make arrangements for assistance](#) — Constitutional Reform and Governance Act 2010, sch.1 para.11 (2010, 16 years old Ø)

States the Civil Service Commission's power to employ staff, which would be impacted if its functions are removed or significantly altered.

11. [Minister for the Civil Service funds and directs the Commission](#) — Constitutional Reform and Governance Act 2010, sch.1 para.15 (2010, 16 years old Ø)

Outlines the funding mechanism for the Civil Service Commission by the Minister for the Civil Service, which would be impacted by changes to its functions.

12. [Civil Service Commission's annual statement and audit](#) — Constitutional Reform and Governance Act 2010, sch.1 para.16 (2010, 16 years old Ø)

Outlines requirements for the Civil Service Commission's statement of accounts, which would be affected by changes to its functions and funding.

13. [Civil Service Commission delegates functions](#) — Constitutional Reform and Governance Act 2010, sch.1 para.14 (2010, 16 years old Ø)

Outlines the Civil Service Commission's power to delegate functions, which would be removed or significantly altered if its role in appointments is abolished.

14. [Civil Service Commission publishes Recruitment Principles](#) — Explanatory Notes to Constitutional Reform and Governance Act 2010 (undated, Ø)

Explains the statutory basis for the Civil Service Commission and the principles of appointment on merit, which the proposal directly targets for removal.

15. [Civil Service Commission reviews recruitment framework](#) — Civil Service Commission Annual Report and Accounts 2013/14: web version (2014-06-25, 12 years old )

Refers to the Civil Service Commission's role and its consultation on the framework for recruitment, which the proposal seeks to dismantle.

16. [Ministerial involvement in senior appointments](#) — Civil Service Commission annual report and accounts 2011-12 - Full Text (2012-07-12, 14 years old )

Mentions exceptions to recruitment rules for time-limited appointments and specialist skills, which could be relevant to the new ministerial appointment framework.

17. [Ministers have significant influence on senior appointments](#) — Civil Service: Permanent Secretaries — Question (2012-12-13, 13 years old )

Quotes the First Civil Service Commissioner on ministerial influence in senior appointments, showing the existing tension the proposal aims to resolve.

18. [Ministerial involvement can enhance appointment process](#) — Civil Service: Politicisation - Motion to Take Note (2024-11-28. )

Acknowledges that ministerial involvement in senior civil servant appointments can enhance the process, aligning with the proposal's objective of greater ministerial control.

19. [Civil Service Code sets out values and promotes awareness](#) — Civil Service Commission Annual Report and Accounts 2013/14: web version (2014-06-25, 12 years old )

Refers to the Civil Service Commission's role and its consultation on the framework for recruitment, which the proposal seeks to dismantle.

20. [Civil servants accountable to ministers, ministers to Parliament](#) — FDA, R (on the application of) v Minister for the Cabinet Office & Anor (2024-07-05. )

References the Civil Service Code and its general principles, which the proposal aims to revise to reflect new appointment and removal powers.

21. [Carltona principle allows delegation of ministerial functions](#) — Explanatory Notes to Constitutional Reform and Governance Act 2010 (undated, )

Explains the statutory basis for the Civil Service Commission and the principles of appointment on merit, which the proposal directly targets for removal.

22. [Carltona principle is a recognised exception to non-delegation](#) — Austin v Chief Constable of Surrey Police (2010-02-18)

Explains the 'Carltona principle' as an exception to the general principle of non-delegation for ministers, which is fundamental to the proposal's context.

23. [Carltona principle will not readily be ousted by implication](#) — Forsey, R (on the application of) v The Northern Derbyshire Magistrates' Court (2017-05-19, 9 years old )

Further discusses the application and implied limitations of the 'Carltona principle', which is central to the proposal's problem statement.

24. [Carltona principle reinforced in later cases](#) — Castle v Crown Prosecution Service (2014-01-24)

Discusses the 'Carltona principle', which the proposal identifies as obscuring direct accountability for officials.

25. [Civil Service Management Code covers terms and conditions](#) — Civil Service management code (2026-01-05. )

The Civil Service Management Code sets out regulations for civil servants' terms and conditions, which would need to be revised following the proposed changes.

26. [Minister for the Civil Service has power over terms and conditions](#) — COUNCIL OF CIVIL SERVICE UNIONS et al v. THE UNITED KINGDOM (1987-01-20)

Provides historical context for the management of the Civil Service through Orders in Council, which predates CRAG 2010 and would be relevant if CRAG Part 1 is repealed.

27. [Consequential amendments and transitional provision in CRAG 2010](#) — Constitutional Reform and Governance Act 2010, s.19 (2010)

States that Schedule 2 contains consequential amendments and transitional provisions for Part 1 of CRAG 2010, which would need to be considered for any repeal or amendment.

28. [Power to make consequential provision in CRAG 2010](#) — Constitutional Reform and Governance Act 2010, s.51 (2010)

Provides the power to make consequential provisions, which would be necessary for a Bill amending or repealing CRAG 2010.

29. [Commencement of CRAG 2010 provisions](#) — Explanatory Notes to Constitutional Reform and Governance Act 2010 (undated)

Details commencement provisions for CRAG 2010, which would be relevant for any amending or repealing Bill.

30. [Maintaining permanent and impartial civil service is a consistent commitment](#) — Explanatory Notes to Constitutional Reform and Governance Act 2010 (undated, Ø)

Explains the statutory basis for the Civil Service Commission and the principles of appointment on merit, which the proposal directly targets for removal.

31. [Strong Ministers get what they want; Civil Service fails by agreeing](#) — The Future of the Civil Service — Motion to Take Note (2014-01-16, 12 years old Ø)

Discusses whether civil servants obstruct Ministers and the concept of ministerial control, directly addressing the problem statement.

32. [Accounting Officer Appointment](#) — Report: 33rd Report - National Health Service Landscape Review — Public Accounts Committee — M25 Private Finance Contract (2011-04-27, 15 years old Ø)

33. [Accounting Officer Responsibilities](#) — NHS foundation trust accounting officer memorandum (2015-08-05, 11 years old Ø)

34. [Accounting Officer Assessments](#) — accounting officer assessments improving decision making and transparency over governments major programmes (undated, Ø)

35. [Accounting Officer and Parliament](#) — Framework between MHCLG and RSH (2018-11-13, 7 years old Ø)

36. [Principal Accounting Officer Oversight](#) — Principles of corporate governance (2015-03-11, 11 years old Ø)

37. [Civil Service Commission Establishment](#) — Constitutional Reform and Governance Act 2010, s.2 (2010)

38. [Civil Service Commission Functions](#) — Explanatory Notes to Constitutional Reform and Governance Act 2010 (undated, Ø)

39. [Ministerial Influence on Senior Appointments](#) — Civil Service: Permanent Secretaries — Question (2012-12-13, 13 years old Ø)

40. [Civil Service Commission Objection to Ministerial Final Say](#) — Accountability of Civil Servants: Constitution Committee Report — Motion to Take Note (2013-02-07, 13 years old Ø)

41. [CRAG 2010 Statutory Basis for Civil Service](#) — Explanatory Notes to Constitutional Reform and Governance Act 2010 (undated)

42. [CRAG 2010 and Civil Service Commission Powers](#) — Constitutional Reform and Governance Act 2010, s.2 (2010)
43. [Managing Public Money as Guidance](#) — accounting officer assessments improving decision making and transparency over governments major programmes (*undated*, Ø)
44. [Managing Public Money and Accounting Officer Responsibilities](#) — Main supply estimate 2012-13 for the year ending 31 March 2013: supply estimate the Local Government Boundary Commission for England - Full Text (2012-04-30, 14 years old Ø)
45. [Managing Public Money and SROs](#) — Knowledge Asset Senior Responsible Owner: guide to appointing and the role (2023-08-07. Ø)
46. [Northcote-Trevelyan Report Principles](#) — Opposition Day — [11th Allotted Day-First Part] — Civil Service (2008-05-07)
47. [Government Commitment to Northcote-Trevelyan Principles](#) — CABINET OFFICE — Northcote-Trevelyan Report (2006-05-17, 20 years old Ø)
48. [Royal Prerogative and Civil Service Management](#) — Cabinet Office: Standards-setting Bodies (2007-03-29, 19 years old Ø)
49. [Royal Prerogative for Appointments](#) — In the matter of an application by Brenda Downes for leave to apply for judicial review (2006-05-22, 20 years old Ø)
50. [Royal Prerogative in Northern Ireland Civil Service](#) — Northern Ireland Act 1998, s.23 (1998, 28 years old Ø)
51. [Senior Responsible Owner Role](#) — Role of the senior responsible owner (2026-02-23. Ø)
52. [SRO Appointment and Responsibilities](#) — Knowledge Asset Senior Responsible Owner: guide to appointing and the role (2023-08-07. Ø)
53. [Carltona Principle Definition](#) — R v Adams (Northern Ireland) (2020-05-13, 6 years old Ø)
54. [Carltona Principle Application](#) — Castle v Crown Prosecution Service (2014-01-24, 12 years old Ø)
55. [Carltona Principle and Delegation](#) — Mr R Wagener v The Right Honourable M Gove MP: 2407553/2021 - Reserved Judgment (2024-02-26. Ø)
56. [Civil Service Code Values](#) — Civil Service Commission annual report and accounts 2012-13 - Full Text (2013-07-16, 13 years old Ø)
57. [Civil Service Code and CRAG 2010](#) — Explanatory Notes to Constitutional Reform and Governance Act 2010 (*undated*)
58. [Civil Service Code and Accountability to Parliament](#) — CABINET OFFICE — Civil Servants (2013-07-01, 13 years old Ø)
59. [Osmotherly Rules Purpose](#) — CABINET OFFICE — The Osmotherly Rules (2014-10-17, 11 years old Ø)
60. [Osmotherly Rules and Ministerial Discretion](#) — Report: 6th Report - The accountability of civil servants — Constitution Committee — Nonetheless, on occasion a select committee will want to question a (2012-11-20, 13 years old Ø)
61. [Osmotherly Rules and Hindrance to Scrutiny](#) — Report: 6th Report - The accountability of civil servants — Constitution Committee — Nonetheless, on occasion a select committee will want to question a (2012-11-20, 13 years old Ø)
62. Terms of art the record confirms (*undated — no source record*)

What else refers to this law

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

How the courts have read it

1. [Carltona principle vests civil servant actions in ministers](#) — Director of Public Prosecutions v Haw (2007-08-06, 19 years old ☺)

This case discusses the application of the 'Carltona principle' to the powers of a Chief Constable, indicating its breadth and potential for judicial interpretation beyond ministers, which is relevant to the proposal's aim to clarify accountability.

2. [Carltona principle: ministerial actions by officials](#) — In the matter of an application for judicial review by John Vincent McCann, a solicitor and a member of the Solicitor's Criminal Bar Association and In the matter of the payment of fees for a Solicitor's work in criminal matters under the Legal aid, Advice and assistance (NI) Order 1981 (2004-09-09)

This case explicitly references the 'Carltona principle' as well-established, stating that ministerial regulations are validly signed by officials, which is central to the proposal's concern about obscured accountability.

3. [Carltona principle: non-delegation exception](#) — Austin v Chief Constable of Surrey Police (2010-02-18)

This case recognizes the 'Carltona principle' as an exception to the general principle of non-delegation, allowing ministers to delegate statutory functions to civil servants, which is directly relevant to the proposal's aim to alter ministerial control.

4. [Carltona principle reinforced in later cases](#) — Castle v Crown Prosecution Service (2014-01-24)

This case discusses the 'Carltona principle' and its powerful support in later cases, which is directly relevant to the proposal's aim of clarifying accountability by addressing this principle.

5. [Carltona principle applies to various functions](#) — R v Adams (Northern Ireland) (2020-05-13, 6 years old ☺)

This Supreme Court case amplifies the 'Carltona principle,' stating that ministerial duties and powers are normally exercised by responsible officials, directly bearing on the proposal's concern about accountability.

6. [Carltona principle reflects established practice](#) — National Association of Health Stores & Anor, R (on the application of) v Department of Health (2005-02-22, 21 years old ☺)

This case discusses the 'Carltona principle' as a doctrine of public administration, treating the minister as the Crown's delegate, which is fundamental to the proposal's aim of clarifying ministerial control and accountability.

7. [Carltona principle does not imply formal delegation](#) — Mr R Wagener v The Right Honourable M Gove MP: 2407553/2021 - Reserved Judgment (2024-02-26. ☺)

This case directly references the 'Carltona principle' as the explanation for the absence of formal delegation from a minister to officials, highlighting its role in the current accountability framework the proposal seeks to change.

8. [Carltona principle widens ministerial capacity](#) — Director of Public Prosecutions v Haw (2007-08-06, 19 years old ☺)

This case discusses the application of the 'Carltona principle' to the powers of a Chief Constable, indicating its breadth and potential for judicial interpretation beyond ministers, which is relevant to the proposal's aim to clarify accountability.

What was tried before — and what happened

 Questions filed here that did **not** run on this draft: Whether this has been tried before

1. [CRAG 2010 formalised existing principles](#) — Explanatory Notes to Constitutional Reform and Governance Act 2010 (*undated*)

Explains the purpose of the Constitutional Reform and Governance Act 2010 (CRAG 2010) in relation to civil service management and statutory/prerogative powers, which the proposal seeks to amend.

2. [Purpose of CRAG 2010 Part 1](#) — Explanatory Notes to Constitutional Reform and Governance Act 2010 (*undated*)

Explains the purpose of the Constitutional Reform and Governance Act 2010 (CRAG 2010) in relation to civil service management and statutory/prerogative powers, which the proposal seeks to amend.

3. [Overwhelming support for Civil Service legislation](#) — Explanatory Notes to Constitutional Reform and Governance Act 2010 (*undated*)

Explains the background to the Constitutional Reform and Governance Act 2010, noting public debate and government intention to bring forward legislation for the civil service, indicating the deliberate nature of its provisions.

4. [Merit principle enshrined in law](#) — Committee's response to the Civil Service Commission's consultation on changes to their Recruitment Principles (2014-03-05)

Notes that current regulatory arrangements for civil service appointments and Civil Service Code values were put on a statutory basis by CRAG 2010, confirming the deliberate nature of the merit principle.

5. [Ministerial accountability reinforced by 'Carltona principle'](#) — Explanatory Notes to Constitutional Reform and Governance Act 2010 (*undated*, Ø)

Explains the purpose of the Constitutional Reform and Governance Act 2010 (CRAG 2010) in relation to civil service management and statutory/prerogative powers, which the proposal seeks to amend.

6. [Concerns about politicisation of Civil Service](#) — The Future of the Civil Service — Motion to Take Note (2014-01-16)

Discusses fears that piecemeal reforms might undermine civil service values and conventions, providing historical context for the deliberate protection of impartiality.

7. [Commitment to permanent and impartial Civil Service](#) — Explanatory Notes to Constitutional Reform and Governance Act 2010 (*undated*, Ø)

Explains the purpose of the Constitutional Reform and Governance Act 2010 (CRAG 2010) in relation to civil service management and statutory/prerogative powers, which the proposal seeks to amend.

8. [Ministerial desire for greater control over appointments](#) — FOREIGN AND COMMONWEALTH OFFICE — Civil Service Reform (2012-06-19, 14 years old Ø)

Discusses the desire for Ministers to have a stronger role in the recruitment of permanent secretaries, directly addressing the problem of ministerial control over senior appointments.

9. [Civil Service Reform Plan aimed to sharpen accountability](#) — CABINET OFFICE — Civil Service Accountability (2012-09-05)

Refers to the Civil Service Reform Plan and steps to sharpen accountability, indicating past efforts to address the problem of civil service accountability within the existing framework.

10. [Resistance to politicising the Civil Service](#) — Explanatory Notes to Constitutional Reform and Governance Act 2010 (*undated*, Ø)

Explains the purpose of the Constitutional Reform and Governance Act 2010 (CRAG 2010) in relation to civil service management and statutory/prerogative powers, which the proposal seeks to amend.

11. [No plans to amend CRAG 2010 regarding accountability](#) — Constitutional Reform and Governance Act 2010 - Question (2020-07-29)

States that there are no plans to amend the 2010 Act and that the established system of civil servants accountable to Ministers, who are accountable to Parliament, works well, confirming the deliberate nature of the current settlement.

Where this mechanism works elsewhere

Nothing under this heading. We looked for the same problem solved in another sector, industry or country, and found nothing. That is a gap in what we could retrieve, not a statement about what exists.

Questions that ran: What other sectors built for the same problem

Who has argued about this

1. [Ministerial involvement in senior appointments](#) — Civil Service: Politicisation - Motion to Take Note (2024-11-28. Ø)

This debate discusses ministerial involvement in senior civil service appointments, referencing Lord Maude's review which highlights the importance of such influence, directly bearing on the proposal's aim to increase ministerial control.

2. [Arguments for ministerial choice in appointments](#) — Accountability of Civil Servants: Constitution Committee Report — Motion to Take Note (2013-02-07, 13 years old Ø)

This debate directly addresses the argument that if Ministers are fully accountable, they should choose principal civil servants, which is a core premise of the proposal.

3. [Objections to ministerial final say on appointments](#) — Accountability of Civil Servants: Constitution Committee Report — Motion to Take Note (2013-02-07, 13 years old Ø)

This debate directly addresses the argument that if Ministers are fully accountable, they should choose principal civil servants, which is a core premise of the proposal.

4. Government commitment to impartial Civil Service — Government Response: Government response to the Committee's report on Permanent secretaries: their appointment and removal (15 January 2024) — Constitution Committee (2024-01-24. Ø)

This government response to a Constitution Committee report on permanent secretaries' appointment and removal directly addresses the balance between ministerial influence and civil service impartiality, a central tension in the proposal.

5. Lord Maude's review of governance and accountability — Government Response: Government response to the Committee's report on Permanent secretaries: their appointment and removal (15 January 2024) — Constitution Committee (2024-01-24)

This government response to a Constitution Committee report on permanent secretaries' appointment and removal directly addresses the balance between ministerial influence and civil service impartiality, a central tension in the proposal.

6. [Civil Service Commission's role in senior appointments](#) — Civil Service: Permanent Secretaries — Question (2012-12-13, 13 years old Ø)

This debate includes a statement from the First Civil Service Commissioner acknowledging that Ministers should have significant influence on senior appointments, but within the existing framework, which the proposal seeks to dismantle.

7. [Constitutional Reform and Governance Act 2010 \(CRAG\)](#) — The Future of the Civil Service — Motion to Take Note (2014-01-16)

This debate raises concerns about the potential impact of greater ministerial choice of Permanent Secretaries on the impartiality of the civil service when a new government takes office, directly addressing a potential consequence of the proposal.

8. [Risk of politicisation with increased ministerial choice](#) — The Future of the Civil Service — Motion to Take Note (2014-01-16, 12 years old )

This debate raises concerns about the potential impact of greater ministerial choice of Permanent Secretaries on the impartiality of the civil service when a new government takes office, directly addressing a potential consequence of the proposal.

9. [Calls for gradual opening of accountability](#) — Civil Service: Permanent Secretaries — Question (2012-12-13, 13 years old )

This debate discusses Civil Service accountability to Ministers and ministerial/official accountability to Parliament, and mentions a desire for 'gradual opening up of this accountability', which aligns with the proposal's aims.

10. [Endorsement of ministerial responsibility](#) — Accountability of Civil Servants: Constitution Committee Report — Motion to Take Note (2013-02-07, 13 years old )

This debate welcomes the Constitution Committee's endorsement of ministerial responsibility, which is the constitutional doctrine the proposal seeks to navigate or amend.

11. [Northcote-Trevelyan report and impartiality](#) — Accountability of Civil Servants: Constitution Committee Report — Motion to Take Note (2013-02-07)

This debate welcomes the Constitution Committee's endorsement of ministerial responsibility, which is the constitutional doctrine the proposal seeks to navigate or amend.

12. [Carltona principle and ministerial knowledge](#) — National Association of Health Stores & Anor, R (on the application of) v Department of Health (2005-02-22, 21 years old )

This case law references the Northcote-Trevelyan reforms as having firmly established that civil servants act in the name of their ministers, providing historical context for the system the proposal seeks to change.

13. [Civil Service Reform Plan](#) — Special Report: 5th Special Report - Truth to Power: How Civil Service reform can succeed: Government Response to the Committee's Eighth Report of Session 2013-14 — Public Administration Committee — Truth to Power: Government Response 1 (2014-01-10)

This special report includes the Government's response to a committee report on Civil Service reform, indicating official positions on the subject.

14. [Review of Civil Service Commission functions](#) — Civil Service Commission: triennial review - a better civil service (2015-02-13)

This triennial review of the Civil Service Commission concludes that its functions are still required and it should be retained, directly contradicting the proposal's aim to remove the Commission's role.

15. [Accountability and responsiveness without politicisation](#) — Accountability and Responsiveness in the Senior Civil Service: Lessons from Overseas (2013-06-17, 13 years old )

This guidance document directly addresses 'Accountability and Responsiveness in the Senior Civil Service', which is the core problem the proposal aims to solve, and challenges the idea that responsiveness and independence are polar opposites.

16. [Ministerial involvement in Permanent Secretary appointments](#) — Civil Service Commission annual report and accounts 2012-13 - Full Text (2013-07-16, 13 years old )

This annual report discusses 'strengthening' ministerial involvement in senior appointments while maintaining that appointees are civil servants, not political appointees, which is directly relevant to the proposal's aims.

17. [Concerns about civil servant accountability and empowerment](#) — Report: 1st Report - Civil Service: Lacking Capacity (Report, together with formal minutes relating to the report) — Liaison Committee (Commons) — Civil Service: lacking capacity 1 (2013-12-12, 12 years old )

This committee report concludes that a review of the Haldane doctrine was necessary to ensure effective government, which is relevant to the proposal's aim to address perceived moderation of policy by officials.

18. [Ambiguity in ministerial and civil service accountability](#) — [Mr. Martyn Jones in the Chair] — Ministers and Civil Servants (2008-10-30, 17 years old )

This debate directly addresses the 'respective roles of Ministers and civil servants', which is the core issue the proposal seeks to redefine.

19. [Lord Maude's review mandate](#) (2023-12-13)

This oral evidence session features Lord Maude discussing his review into Civil Service governance and accountability, which is highly relevant to the proposal's problem diagnosis and potential solutions.

20. [Erosion of public service tradition](#) — Civil Service (1994-07-13)

This debate references the Northcote-Trevelyan reforms and the erosion of the public service tradition, which the proposer explicitly identifies as the target of their reforms.

21. [Opposition to politicisation of senior civil service](#) — Civil Service (1994-07-13)

This debate discusses the need to bring more people into the senior civil service while emphasizing that these jobs must not be politicised and that the choice should remain with the Civil Service Commission, directly contradicting the proposal.

22. [Impact of denigration on Civil Service morale](#) — The Future of the Civil Service — Motion to Take Note (2014-01-16, 12 years old )

This debate discusses ministerial criticism of the Civil Service and the importance of morale, which is relevant to the context of the proposal's aims to increase ministerial control.

Key people and groups likely to support or oppose

1. [Freddie van Mierlo — recorded acts bearing on “Civil Service pensions”](#) — Position graph, method 3c.7bac2c10d652, computed 2026-09-04 (2026-06-01)

Matched to this proposal on the phrase “civil service”. Most recent recorded act: 2026-06-01, for “Civil Service pensions”. 1 recorded act in total, listed in full in the long report.

2. What this section does not cover — our record of recorded divisions of the House of Commons begins 2016-03-09, and 2 signal types have no source data — Position graph coverage, generated 2026-09-04 (undated — no source record)

Our record of recorded divisions of the House of Commons begins 2016-03-09; 2 signal types (seats held on select and public bill committees; amendments a member put their name to) have no source data at all; and the stance estimates have never been scored against a verified answer key. The full statement is in the long report.

The numbers

1. [Ministerial accountability for departmental actions](#) — Civil Service: Politicisation - Motion to Take Note (2024-11-28. )

This debate discusses ministerial accountability and the need for diversity in the Civil Service, acknowledging that the system has challenges but not necessarily endorsing a full reversal of the permanent civil service model.

2. [Carltona principle and ministerial accountability](#) — Castle v Crown Prosecution Service (2014-01-24)

This case law discusses the 'Carltona principle', which the proposal identifies as obscuring direct accountability for officials, providing legal context for this stated cause.

3. [Civil Service Commission role in appointments](#) — Explanatory Notes to Constitutional Reform and Governance Act 2010 (*undated*)

These explanatory notes refer to the Constitutional Reform and Governance Act 2010, which the proposal aims to amend, specifically regarding powers in relation to civil service management.

4. [Ministerial involvement in senior appointments](#) — Civil Service: Politicisation - Motion to Take Note (2024-11-28)

This debate clarifies that under CRAG 2010, the power of appointment is vested in Ministers, not officials, and that the Civil Service Commission's principles acknowledge ministerial involvement, directly contradicting the proposal's premise that Ministers lack direct control over appointments.

5. [Commitment to permanent and impartial civil service](#) Vol_1_(Jan_1909)_to_2004/S5LV0560PO.zip) — Lords: THE CIVIL SERVICE (1995-01-26, 31 years old ☺)

This debate reaffirms the government's commitment to a permanent Civil Service based on values like political impartiality and selection on merit, directly contradicting the proposal's aim to reverse this model.

6. [Civil Service Code values](#) — FDA, R (on the application of) v Minister for the Cabinet Office & Anor (2024-07-05)

This case discusses the constitutional position of civil servants, the Civil Service Code, and the Civil Service Management Code, providing current legal and constitutional context for the system the proposal seeks to change.

7. [Frustrations with bureaucracy among civil servants](#) — CABINET OFFICE — Civil Service Reform Plan (2012-11-07, 13 years old ☺)

This debate explicitly states there is no plan to change the basic rules of accountability regarding a permanent, politically impartial civil service, directly contradicting the proposal's aim to reverse this model.

8. [Lack of diversity in senior civil service](#) — Civil Service: Politicisation - Motion to Take Note (2024-11-28)

This debate discusses revisiting ministerial accountability and introducing greater transparency and enforcement, which directly relates to the proposal's aim to clarify accountability and ministerial control.

9. [Ministerial perception of moderation or obstruction](#) — Accountability of Civil Servants: Constitution Committee Report — Motion to Take Note (2013-02-07, 13 years old ☺)

This debate mentions blame for errors being pinned on civil servants and a former Minister feeling better supported in opposition, supporting the proposal's diagnosis of a lack of clear accountability and ministerial control.

10. [Carltona principle not readily ousted by implication](#) — Forsey, R (on the application of) v The Northern Derbyshire Magistrates' Court (2017-05-19, 9 years old ☺)

This case law discusses the 'Carltona principle' and its general application to ministerial functions, reinforcing the legal context of this principle which the proposal seeks to address.

11. [No plans to amend CRAG 2010](#) — Constitutional Reform and Governance Act 2010 - Question (2020-07-29)

This debate explicitly states that the government has no plans to amend the 2010 Act and that the established system of civil servants being accountable to Ministers works well, directly contradicting the proposal's premise and aims.

12. [Ministerial control over appointments includes power to make appointments](#) — Constitutional Reform and Governance Act 2010, s.3 (2010)

This primary legislation vests the power to manage the civil service in the Minister for the Civil Service, providing the statutory basis for ministerial authority that the proposal seeks to enhance.

What's devolved

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

Questions that did **not** run on this draft: Whether this is Westminster's to change

Key sources

This module can be run when the strategic kernels have been properly reviewed.

M-07 — Operational independence of the Bank of England

129 entries across **9 of 13 headings**.  **7 entries resolve to no heading** and are listed at the end — a gap in the library, not sources to drop.

How hard will this be to achieve?

This module can be run when the strategic kernels have been properly reviewed.

Cost and duration

The module calculating the costs and benefits of proposed measures is under development. It will aim to contribute to a better balance between those who benefit from legislation and those who pay for it, both taxpayers and those who pay the price of bureaucratic inefficiency and the regulatory burden.

What the law says now

1. [Bank of England Act 1998 confers operational independence](#) — Bank of England Act 1998, s.13 (1998)

This section of the Bank of England Act 1998 establishes the Monetary Policy Committee and confers upon it the responsibility for formulating monetary policy, which is the core of the operational independence the proposal seeks to reverse.

2. [Treasury has reserve powers to direct monetary policy](#) — Bank of England Act 1998, s.19 (1998)

This section of the Bank of England Act 1998 confers a reserve power on the Treasury to give directions to the Bank with respect to monetary policy by order, under specific conditions of public interest and extreme economic circumstances. This power is limited as it requires 'extreme economic circumstances' and 'consultation with the Governor', which the proposal aims to remove or broaden.

3. [Treasury order can modify MPC provisions](#) — Bank of England Act 1998, s.19 (1998)

This section of the Bank of England Act 1998 confers a reserve power on the Treasury to give directions to the Bank with respect to monetary policy by order, under specific conditions of public interest and extreme economic circumstances. This power is limited as it requires 'extreme economic circumstances' and 'consultation with the Governor', which the proposal aims to remove or broaden.

4. [Treasury reserve power requires parliamentary oversight](#) — Bank of England Act 1998, s.19 (1998)

This section of the Bank of England Act 1998 confers a reserve power on the Treasury to give directions to the Bank with respect to monetary policy by order, under specific conditions of public interest and extreme economic circumstances. This power is limited as it requires 'extreme economic circumstances' and 'consultation with the Governor', which the proposal aims to remove or broaden.

5. [Government retains right to override in extreme circumstances](#) — Bank of England and Financial Regulation (1997-05-20, 29 years old )

This debate excerpt from 1997 explicitly mentions the Government's retention of 'the right to override the Bank's monetary policy decisions in extreme circumstances', which directly relates to the existing limits on the Bank's independence and the proposal's aim to re-establish political control.

6. [Existing power to direct monetary policy in extreme circumstances](#) — Bank of England Act 1998, s.19 (1998)

This section of the Bank of England Act 1998 confers a reserve power on the Treasury to give directions to the Bank with respect to monetary policy by order, under specific conditions of public interest and extreme economic circumstances. This power is limited as it requires 'extreme economic circumstances' and 'consultation with the Governor', which the proposal aims to remove or broaden.

7. [Bank of England Act 1998 established MPC's operational independence](#) — Bank of England Act 1998, s.13 (1998)

This is the core statutory provision that establishes the Monetary Policy Committee and confers responsibility for formulating monetary policy, which the proposal aims to amend or repeal.

8. [MPC composition defined in Bank of England Act 1998](#) — Bank of England Act 1998, s.13 (1998)

This is the core statutory provision that establishes the Monetary Policy Committee and confers responsibility for formulating monetary policy, which the proposal aims to amend or repeal.

9. [Treasury sets MPC objectives annually](#) — Bank of England: Monetary Policy Committee — Question (2013-07-09)

States that the Bank of England Act 1998 gives powers of operational responsibility for monetary policy to the independent MPC, and mentions the Chancellor setting the MPC remit, directly addressing the proposal's core.

10. [Bank of England and Financial Services Act 2016 reinforced independence](#) — Explanatory Notes to Bank of England and Financial Services Act 2016 (undated)

Explains a review commissioned by the Governor into the Bank's transparency practices, particularly concerning the MPC, which is relevant to the accountability aspect of the proposal.

11. [Treasury has reserve powers over monetary policy](#) — Bank of England Act 1998, s.19 (1998)

This section outlines the Treasury's reserve powers to give directions to the Bank with respect to monetary policy in extreme economic circumstances, which is a key existing mechanism for political intervention.

12. [Monetary policy definition involves government strategy](#) — Bank of England (2012-03-14, 14 years old ☺)

Provides a definition of 'monetary policy' as understood by the Bank of England, which is central to the scope of the proposal.

13. [Accountability through Treasury Committee scrutiny](#) — Bank of England: how is independence working? — IBE0007 (2023-04-18. ☺)

Provides factual information relevant to an inquiry on 'how Bank of England independence is working', directly addressing the proposal's problem.

14. [Memoranda of Understanding reinforce independence](#) — Memorandum of Understanding Between HM Treasury and the Bank of England 2025 (2025-02-13. ☺)

Reinforces the Bank's independence and resilience to deliver its statutory policy objectives, highlighting the current framework the proposal seeks to change.

15. [Appointment terms for Governor and Deputy Governor](#) — Bank of England Act 1998, sch.1 para.1 (1998, 28 years old ☺)

Sets out the appointment periods for the Governor and Deputy Governor, which are key roles within the Bank's independent structure.

16. [Court of Directors' role in Bank governance](#) — Bank of England Act 1998, sch.1 para.10 (1998)

States that the court may appoint sub-committees, relevant to the internal governance structure of the Bank of England.

17. [Publication of Court of Directors' meeting records](#) — Bank of England Act 1998, sch.1 para.12A (1998, 28 years old ☺)

Requires the Bank to publish a record of each court meeting, relevant to the transparency and accountability mechanisms of the Bank.

18. [FPC status and membership](#) — Bank of England and Financial Services Act 2016, s.6 (2016)

Amends section 9B(1) of the Bank of England Act 1998 regarding the Financial Policy Committee, showing how the 1998 Act has been amended previously and how other committees are structured.

19. [FMI Committee established by Bank of England Act 1998](#) — Bank of England Act 1998, s.30F (1998)

Establishes the Financial Market Infrastructure Committee, showing the structure of committees within the Bank of England Act 1998, which may need to be considered if the MPC's independence is altered.

20. [Oversight Committee functions](#) — Financial Services Act 2012, s.3 (2012)

Amends the Bank of England Act 1998 by substituting section 3, which relates to the Oversight Committee, demonstrating how the Act has been modified regarding internal governance.

21. [Chancellor's influence on MPC composition](#) Vol_1_(Jan_1909)_to_2004/S5LV0606P0.zip) — Lords: Monetary Policy Committee: Select Committee Report (1999-11-04, 26 years old ☺)

Discusses the appointment terms of MPC members and the Chancellor's role in their selection, which is relevant to the structure of the independent body.

22. [Monetary and fiscal policy interdependencies](#) — Bank of England (Economic Affairs Committee Report) - Motion to Take Note (2024-05-02. ☺)

Debate discussing whether important trade-offs in monetary policy should be the preserve of democratic institutions, directly addressing the proposal's core concern about democratic accountability.

23. [Asset Purchase Facility \(APF\) established by Chancellor](#) — Financial Relationship between the Treasury and the Bank of England: memorandum of understanding (2018-06-21)

24. APF operations indemnified by Treasury — Report: 1st Report - Making an independent Bank of England work better — Economic Affairs Committee (2023-11-27. ☺)

25. [Bank of England Act 1998 established MPC](#) — Bank of England Act 1998, s.13 (1998)

26. [Bank of England Act 1998 governs MPC membership](#) — Bank of England Act 1998, s.13 (1998)

27. [Bank of England Act 1998 defines MPC interpretation](#) — Bank of England Act 1998, s.20 (1998)

28. [Bank of England Act 1998 underpins monetary policy framework](#) — Bank of England (2014-04-01)

29. [Inflation Target is government's objective for MPC](#) — Bank of England (2008-01-22, 18 years old ☺)

30. [Inflation Target has led to low inflation](#) — Bank of England: Monetary Policy Committee (2004-02-26)

31. [Inflation Target is a key feature of independence](#) — Stability and Growth Pact (EUC Report) (2003-06-04, 23 years old ☺)

32. [Monetary Policy Committee \(MPC\) formulates monetary policy](#) — Bank of England Act 1998, s.13 (1998, 28 years old ☺)

33. [MPC has operational independence for interest rates](#) — Bank of England (2008-01-22)
34. [MPC decisions include Quantitative Easing \(QE\)](#) — Monetary Policy (2014-09-26)
35. [MPC monitors money growth for policy](#) — Treasury — Bank of England (2024-07-30)
36. [Quantitative Easing \(QE\) is a monetary policy tool](#) — maintaining the financial stability of uk banks update on the support schemes (*undated*, Ø)
37. [QE involves large-scale asset purchases](#) — What is quantitative easing? June 2019 (2020-03-31, 6 years old Ø)
38. [QE provides monetary stimulus](#) — TREASURY — Bank for International Settlements (2012-07-05, 14 years old Ø)
39. [Treasury Committee scrutinises MPC appointments](#) — Report: 8th Report - The Treasury Committee's scrutiny of appointments — Treasury Committee — 1 The Treasury Committee's scrutiny of appointments Contents (2016-02-26)
40. [Treasury Committee has non-statutory role in appointments](#) — Bank of England: how is independence working? — IBE0007 (2023-04-18. Ø)
41. Terms of art the record confirms (*undated* — *no source record*)

What else refers to this law

1. [18 instruments are recorded as made under ukpga/1998/11 — the strongest kind of reference here](#) — ukxi/1998/1120 (*undated* — *no source record*)

18 instruments are recorded as made under ukpga/1998/11. ukxi/1998/1120: "Treasury, in exercise of the powers conferred on them by section 45 of the Bank of England Act 1998".

2. [188 references — each exercises or relies on a power in the target. As a kind: would need a substitute reference.](#) — asp/2025/15 p08209 (*undated* — *no source record*)

188 references in 171 provisions that exercises or relies on a power in the target: would need a substitute reference. asp/2025/15 p08209: "from time to time by the Monetary Policy Committee of the Bank of England as the official dealing rate, being the rate at which the Bank is willing to enter int".

3. [183 references — each mentions the target without acting on it. As a kind: needs no action.](#) — eur/2013/575 article-458 (*undated* — *no source record*)

183 references in 155 provisions that mentions the target without acting on it: needs no action. eur/2013/575 article-458: "financial sector exposures. 'the 1998 Act' means the Bank of England Act 1998".

4. [51 references — each amends or repeals part of the target. As a kind: would go with the target.](#) — ukpga/2012/21 schedule-1-paragraph-4 (*undated* — *no source record*)

51 references in 47 provisions that amends or repeals part of the target: would go with the target. ukpga/2012/21 schedule-1-paragraph-4: "Part 3 of Schedule 1 to the House of Commons Disqualification Act 1975 (other disqualifying offices), at the appropriate place insert— " Member of the Financial".

5. [18 references — each brings the target into force, or is named after it. As a kind: would need rewording.](#) — ukpga/2016/14 schedule-3-paragraph-4 (*undated* — *no source record*)

18 references in 16 provisions that brings the target into force, or is named after it: would need rewording. ukpga/2016/14 schedule-3-paragraph-4: "comes into force the budget is to be treated as the budget for the Bank's functions as the Prudential Regulation Authority for the financial year to which it re".

6. [7 references — each borrows a definition from the target. As a kind: would need a substitute reference.](#) — ukpga/2000/8 section-313 (*undated* — *no source record*)

7 references in 7 provisions that borrows a definition from the target: would need a substitute reference. ukpga/2000/8 section-313: “functions”, in relation to the Bank of England, has the meaning given by section 30D(3) of the Bank of England Act 1998”.

7. [4 references — each disapplies, qualifies or overrides the target. As a kind: would need a substitute reference.](#) — ukpga/2023/29 section-29 (*undated — no source record*)

4 references in 4 provisions that disapplies, qualifies or overrides the target: would need a substitute reference. ukpga/2023/29 section-29: “(1) does not apply to rules made for the purpose of complying with a direction or recommendation of the Financial Policy Committee of the Bank of England under—”.

8. What this reference search could not see — 2 layers are not searched, and every count here is what we found in the layers we have — Citation graph coverage, generated 2026-09-09 (*undated — no source record*)

This covers caselaw, statutory instruments (the regulations made under Acts), Acts of Parliament and other instruments. We hold amends, repeals, commences or modifies, from TNA's own effects data — but not in this search, so they are not joined into any number here. We do not hold this at all yet: a treaty article bearing on a domestic provision. There will be further references we cannot see. A repeal or an amendment is not a citation and is not returned by this query. A change may be prevented by an international obligation this graph cannot see. 25.4% of the references we hold sit in a title, long title, preamble or explanatory note rather than inside a provision — real references, but not provisions that would break. 7.4% point at an instrument we hold no text for, so we can count them and cannot show you what they say. 77 of the Acts referred to here are named by an identifier that fits more than one Act, because two parliamentary sessions can fall inside one calendar year. We refused to guess between them, so those are recorded as refusals — a refusal, not an absence, and not evidence that nothing refers to them. 36.1% of the OLD preamble parser's section-level made-under references were wrong — the effects table still holds those, while the enabling rows quoted here came from the fixed parser (measured 12.2 days ago). 41.3% of the instruments sampled had their scheduled text reach our corpus as well —  a scheduled agreement that was not ingested presents as a SHORT DOCUMENT, not as an error (measured 12.2 days ago). 97,095 act names found in running text resolved to no instrument we hold a title for — short forms that name only a year, and Acts the corpus does not hold. Counted, never dropped (measured 13.6 days ago). Treat any number here as what we found in the layers we have searched, not as a total.

How the courts have read it

1. [Statutory interpretation considers historical context](#) — Buddington, R (on the application of) v Secretary of State for the Home Department (2005-10-14, 20 years old )

This case discusses the principle of statutory interpretation, specifically how controversial provisions should be read in the context of the statute as a whole and its historical context. This is relevant to how the Bank of England Act 1998, which confers operational independence, might be judicially construed, and whether such construction narrows or widens the provision, impacting the proposal to reverse independence.

2. [Parliamentary intention guides statutory construction](#) — Buddington, R (on the application of) v Secretary of State for the Home Department (2005-10-14, 20 years old )

This case discusses the principle of statutory interpretation, specifically how controversial provisions should be read in the context of the statute as a whole and its historical context. This is relevant to how the Bank of England Act 1998, which confers operational independence, might be judicially construed, and whether such construction narrows or widens the provision, impacting the proposal to reverse independence.

3. [Interpreting statutes for unforeseen facts](#) — William Hill Organization Ltd, R (on the application of) v The Horserace Betting Levy Board & Ors (2012-07-20, 14 years old )

This case discusses the authoritative statement by Lord Wilberforce on interpreting an Act of Parliament to apply a statutory provision to facts not envisaged when enacted. This is relevant to how courts might

interpret the Bank of England Act 1998 in unforeseen economic circumstances, potentially widening or narrowing the scope of operational independence, which the proposal seeks to reverse.

4. [Judicial review of administrative acts](#) — Gamesa Energy UK Ltd., R (on the application of) v The National Assembly for Wales (2006-08-04, 20 years old ☐)

This case refers to the speech of Lord Steyn in *Boddington v British Transport Police*, which discussed the unlawfulness of administrative acts and the court's power to intervene. This is relevant to potential judicial review of decisions made under the Bank of England Act 1998, and how courts might interpret the scope of powers conferred, which could narrow or widen the operational independence.

5. [Human Rights Act's interpretative provision](#) — ZN & Anor, R (On the Application Of) v Bromley Youth Court (2014-07-09)

This case discusses Section 3 of the Human Rights Act 1998, which requires domestic legislation to be read compatibly with convention rights. This is relevant to how the Bank of England Act 1998 might be interpreted through the lens of human rights, potentially narrowing or widening its provisions related to operational independence, which the proposal aims to reverse.

6. [Bank of England's operational independence](#) — Buddington, R (on the application of) v Secretary of State for the Home Department (2005-10-14)

This case discusses the principle of statutory interpretation, specifically how controversial provisions should be read in the context of the statute as a whole and its historical context. This is relevant to how the Bank of England Act 1998, which confers operational independence, might be judicially construed, and whether such construction narrows or widens the provision, impacting the proposal to reverse independence.

What was tried before — and what happened

 Questions filed here that did **not** run on this draft: Whether this has been tried before

1. [Operational independence established by Bank of England Act 1998](#) — Bank of England: Monetary Policy Committee — Question (2013-07-09)

Confirms that the Bank of England Act 1998 gives operational responsibility for monetary policy to the independent MPC, directly stating the statutory basis the proposal seeks to amend.

2. [Purpose of independence: price stability](#) — Bank of England (Economic Affairs Committee Report) - Motion to Take Note (2024-05-02. ☐)

States the widely recognised belief that an operationally independent central bank is the best way to achieve price stability, which was a key rationale for the 1998 Act and is directly challenged by the proposal.

3. [Inflation targeting preceded independence](#) — Bank of England (Economic Affairs Committee Report) - Motion to Take Note (2024-05-02)

Discusses the historical context of inflation targeting and the Bank's independence, noting that inflation was already at target when independence was granted, which is relevant to understanding the original purpose and context of the 1998 Act.

4. [Other factors influenced low inflation](#) — Bank of England (Economic Affairs Committee Report) - Motion to Take Note (2024-05-02. ☐)

Discusses the historical context of inflation targeting and the Bank's independence, noting that inflation was already at target when independence was granted, which is relevant to understanding the original purpose and context of the 1998 Act.

5. [Labour party manifesto pledge on reform](#) — Orders of the Day — Bank of England Bill (1997-11-11)

Discusses whether the decision to grant independence was a breach of the Labour party's manifesto pledge, providing insight into the political context and potential deliberate choices behind the 1998 Act.

6. [Historical context of Bank's relationship with Treasury](#) Vol_1_(Jan_1909)_to_2004/S5LV0541P0.zip) — Lords: Bank of England: Long-Term Price Stability (1992-12-16)

Discusses the historical relationship between the Treasury and the Bank of England, noting that even before nationalisation, the Bank did not truly control monetary policy, providing historical context for the shift to independence.

7. Accountability mechanisms for independent Bank — Report: 1st Report - Making an independent Bank of England work better — Economic Affairs Committee (2023-11-27. [Ø](#))

Discusses the Bank of England's accountability to Parliament through the people of the UK, which is central to the proposal's concern about democratic accountability.

8. [Perceived lack of democratic accountability](#) — Bank of England (Economic Affairs Committee Report) - Motion to Take Note (2024-05-02. [Ø](#))

Argues that important trade-offs in monetary policy are properly the preserve of democratic institutions, directly supporting the proposal's premise that these are political choices, not technical ones.

9. [Concerns about coordination with fiscal policy](#) — Bank of England (Economic Affairs Committee Report) - Motion to Take Note (2024-05-02. [Ø](#))

Argues that important trade-offs in monetary policy are properly the preserve of democratic institutions, directly supporting the proposal's premise that these are political choices, not technical ones.

10. [Independence not universally seen as cause of low inflation](#) — Bank of England (Economic Affairs Committee Report) - Motion to Take Note (2024-05-02. [Ø](#))

Discusses the historical context of inflation targeting and the Bank's independence, noting that inflation was already at target when independence was granted, which is relevant to understanding the original purpose and context of the 1998 Act.

11. [Government commitment to independence](#) — Bank of England (Economic Affairs Committee Report) - Motion to Take Note (2024-05-02. [Ø](#))

States the widely recognised belief that an operationally independent central bank is the best way to achieve price stability, which was a key rationale for the 1998 Act and is directly challenged by the proposal.

12. [Debate on true independence and accountability](#) Vol_1_(Jan_1909)_to_2004/S5LV0606P0.zip) — Lords: Monetary Policy Committee: Select Committee Report (1999-11-04, 26 years old [Ø](#))

Debates the perceived lack of accountability where the Chancellor can claim credit for good outcomes but attribute bad ones to the MPC's operational independence, directly addressing the core problem of the proposal.

Where this mechanism works elsewhere

Nothing under this heading. We looked for the same problem solved in another sector, industry or country, and found nothing. That is a gap in what we could retrieve, not a statement about what exists.

Questions that ran: What other sectors built for the same problem

Who has argued about this

1. [Operational independence granted in 1998](#) — Bank of England (Economic Affairs Committee Report) - Motion to Take Note (2024-05-02)

This debate directly addresses the question of how the Bank of England's independence is working, 25 years after it was granted, and discusses the transfer of power from elected representatives.

2. [Inflation and public confidence](#) — Bank of England (Economic Affairs Committee Report) - Motion to Take Note (2024-05-02)

This debate directly addresses the question of how the Bank of England's independence is working, 25 years after it was granted, and discusses the transfer of power from elected representatives.

3. [Treasury Committee's enhanced role in accountability](#) — Orders of the Day — Bank of England Bill — ROLE OF TREASURY COMMITTEE IN APPOINTMENTS UNDER SECTION 13(2)(c) (1998-01-22, 28 years old ☺)

This debate refers to the Chancellor's letter announcing the operational independence of the Bank of England in monetary policy, providing direct evidence of the initial decision and its communication.

4. [Government retains override power in extreme circumstances](#) — Bank of England and Financial Regulation (1997-05-20, 29 years old ☺)

This debate from 1997 discusses the Bank's new responsibilities and mentions the Government's retention of the right to override the Bank's decisions, which is directly relevant to the proposal's aim of re-establishing political control.

5. [Monetary policy decisions as political choices](#) — Bank of England (Economic Affairs Committee Report) - Motion to Take Note (2024-05-02. ☺)

This debate argues that important trade-offs in monetary policy are properly the preserve of democratic institutions answerable to the public, directly supporting the proposal's rationale for re-establishing political control.

6. [Calls for greater transparency and scrutiny](#) — Bank of England (Economic Affairs Committee Report) - Motion to Take Note (2024-05-02. ☺)

This debate acknowledges opportunities for parliamentarians to question the operational framework of the Bank and its remit letters, but highlights the magnitude of topics that require more robust scrutiny, supporting the need for stronger accountability.

7. Bank of England accountable to Parliament — Report: 1st Report - Making an independent Bank of England work better — Economic Affairs Committee (2023-11-27. ☺)

This committee report discusses the Bank of England's accountability to the people of the UK through Parliament, directly addressing the core problem of democratic accountability.

8. [Treasury Committee recommendations for Bank governance](#) — Report: 1st Report - Financial Services Bill (Report, together with formal minutes) — Treasury Committee — 6 Financial Services Bill (2012-06-08, 14 years old ☺)

This committee report discusses the need for appropriate transparency for the Financial Policy Committee's tools and recommends enhancing the Bank of England's corporate governance for stronger internal oversight, relevant to accountability.

9. [Parliamentary Commission on Banking Standards endorsed accountability recommendations](#) — Report: 4th Report - Appointment of Anthony Habgood as Chairman of the Court of the Bank of England — Treasury Committee (2014-07-24)

This committee report discusses the endorsement of Treasury Committee recommendations on the accountability of the Bank of England by the Parliamentary Commission on Banking Standards, indicating prior examination and recommendations for accountability.

10. [Government responsible for Bank's governance structure](#) — Report: 1st Report - Financial Services Bill (Report, together with formal minutes) — Treasury Committee — 4 Financial Services Bill (2012-06-08, 14 years old ☺)

This committee report disagrees with the government's view that the Bank's governance is primarily for the Bank itself, arguing that the government, accountable to Parliament, defines the Bank's functions in legislation, directly supporting the proposal's premise.

11. [Benefits of independence for inflation and interest rates](#) — TREASURY — Monetary Policy Committee (2006-07-13, 20 years old ☺)

This debate discusses the effects of the Bank of England's independence and mentions proposals for reform of the Monetary Policy Committee, indicating prior examination of the current structure.

12. [Opposition to annual parliamentary vote on inflation target](#) — TREASURY — Monetary Policy Committee (2006-07-13, 20 years old ☺)

This debate discusses the effects of the Bank of England's independence and mentions proposals for reform of the Monetary Policy Committee, indicating prior examination of the current structure.

13. [Support for maintaining MPC independence](#) — Business of the House — LIBOR (FSA Investigation) (2012-06-28, 14 years old ☺)

This debate emphasizes the importance of the Bank of England being accountable to Parliament while also maintaining the independence of the Monetary Policy Committee, presenting a counter-argument to the proposal.

14. [No plans to change reserves remuneration](#) — Treasury — Bank of England (2025-04-25. ☺)

This parliamentary answer explicitly states that the Bank of England has operational independence from the government to carry out its statutory responsibilities for monetary policy, reinforcing the current legal framework.

15. [Government does not intervene in commercial interest rate decisions](#) — Treasury — Bank Services: Interest Rates (2022-10-18. ☺)

This parliamentary answer states that the independent Monetary Policy Committee makes monetary policy decisions independently, reinforcing the current operational independence.

16. [Treasury Committee recommended statutory veto over Governor appointment](#) — Report: 1st Report - Financial Services Bill (Report, together with formal minutes) — Treasury Committee — 18 Financial Services Bill — ¶122 (2012-06-08, 14 years old ☺)

This committee report discusses the concentration of power at the Bank of England and recommendations made to ensure the independence of the Governor, relevant to the structure of power and accountability.

17. [Recommendation for Bank to respond to parliamentary information requests](#) — Report: Final Report - Changing banking for good - Volume I (Volume I: Summary, and Conclusions and recommendations) — Parliamentary Commission on Banking Standards (Joint Committee) — 64 Changing banking for good (2013-06-19, 13 years old ☺)

This committee report recommends that the Bank of England be given a duty to respond to reasonable reports for information from Parliament, directly addressing a mechanism for enhanced accountability.

18. [Treasury Committee recommended enhanced Supervisory Board for Bank](#) — Report: Report - Draft Financial Services Bill — Draft Financial Services Bill (Joint Committee) — 68 DRAFT FINANCIAL SERVICES BILL (2011-12-19, 14 years old ☺)

This committee report discusses the governance structures within the Bank of England and concludes that the role of the Court of the Bank needed to be substantially enhanced, indicating prior examination of internal accountability.

19. Recommendation for publication of 'Deed of Indemnity' — Report: 1st Report - Making an independent Bank of England work better — Economic Affairs Committee (2023-11-27)

This committee report discusses the 'Deed of Indemnity' and clarifies that it does not imply Treasury dictation of monetary policy, relevant to the boundaries of independence and political control.

Key people and groups likely to support or oppose

1. [Mrs Teresa Gorman — recorded acts bearing on “Independence of the Bank of England”](#) — Position graph, method 3c.7bac2c10d652, computed 2026-09-04 (1989-12-05)

Matched to this proposal on the phrase “independence of the bank”. Most recent recorded act: 1989-12-05, for “Independence of the Bank of England”. 1 recorded act in total, listed in full in the long report.

2. What this section does not cover — our record of recorded divisions of the House of Commons begins 2016-03-09, and 2 signal types have no source data — Position graph coverage, generated 2026-09-04 (*undated — no source record*)

Our record of recorded divisions of the House of Commons begins 2016-03-09; 2 signal types (seats held on select and public bill committees; amendments a member put their name to) have no source data at all; and the stance estimates have never been scored against a verified answer key. The full statement is in the long report.

The numbers

1. [Operational independence granted by Bank of England Act 1998](#) — Bank of England Act 1998, s.13 (1998)

This is the primary legislation that granted operational independence to the Monetary Policy Committee, which the proposal seeks to amend or repeal.

2. [Transfer of power to unelected officials](#) — Bank of England (Economic Affairs Committee Report) - Motion to Take Note (2024-05-02)

This debate discusses the 25th anniversary of the Bank's operational independence and questions how it is working, directly addressing the problem statement.

3. [Inflation hit 41-year high in October 2022](#) — Bank of England (Economic Affairs Committee Report) - Motion to Take Note (2024-05-02)

This debate discusses the 25th anniversary of the Bank's operational independence and questions how it is working, directly addressing the problem statement.

4. Bank of England's accountability to Parliament — Report: 1st Report - Making an independent Bank of England work better — Economic Affairs Committee (2023-11-27. Ø)

This report details how the Bank is held to account by parliamentary committees, directly addressing the proposal's concern about accountability mechanisms.

5. Treasury Committee's role in accountability — Report: 1st Report - Making an independent Bank of England work better — Economic Affairs Committee (2023-11-27. Ø)

This report details how the Bank is held to account by parliamentary committees, directly addressing the proposal's concern about accountability mechanisms.

6. Bank's accountability through publications — Report: 1st Report - Making an independent Bank of England work better — Economic Affairs Committee (2023-11-27. Ø)

This report details how the Bank is held to account by parliamentary committees, directly addressing the proposal's concern about accountability mechanisms.

7. [Monetary policy decisions are political choices](#) — Bank of England (Economic Affairs Committee Report) - Motion to Take Note (2024-05-02. Ø)

This debate argues that important trade-offs in monetary policy should be the preserve of democratic institutions, directly supporting the proposal's core argument for re-establishing political control.

8. Significant powers delegated to appointed officials — Report: 1st Report - Making an independent Bank of England work better — Economic Affairs Committee (2023-11-27. Ø)

This report highlights that significant powers are delegated to unelected officials at the Bank, which can counteract government fiscal policy, directly supporting the proposal's diagnosis of a lack of democratic accountability.

9. Bank's actions can counteract fiscal policy — Report: 1st Report - Making an independent Bank of England work better — Economic Affairs Committee (2023-11-27. [Ø](#))

This report highlights that significant powers are delegated to unelected officials at the Bank, which can counteract government fiscal policy, directly supporting the proposal's diagnosis of a lack of democratic accountability.

10. Need for enhanced scrutiny — Report: 1st Report - Making an independent Bank of England work better — Economic Affairs Committee (2023-11-27. [Ø](#))

This report highlights that significant powers are delegated to unelected officials at the Bank, which can counteract government fiscal policy, directly supporting the proposal's diagnosis of a lack of democratic accountability.

11. [Treasury can specify price stability and economic policy](#) — Bank of England Act 1998, s.12 (1998, 28 years old [Ø](#))

This section of the Bank of England Act 1998 allows the Treasury to specify what price stability and the economic policy of Her Majesty's Government are to be, demonstrating a degree of political control over the Bank's objectives.

12. [Treasury has reserve powers to give directions](#) — Bank of England Act 1998, s.19 (1998, 28 years old [Ø](#))

This section of the Bank of England Act 1998 outlines the Treasury's reserve powers to give directions with respect to monetary policy in extreme economic circumstances, which is a form of political control.

13. [No evidence that central bank independence is necessary for low inflation](#) — Orders of the Day — Bank of England (Amendment) Bill (1994-01-28, 32 years old [Ø](#))

This debate from before the 1998 Act discusses the lack of accountability for the Bank of England and the need for a reformed central bank, providing historical context for the problem the proposal addresses.

14. [Balance between accountability and independence not struck](#) — Bank of England: how is independence working? — IBE0007 (2023-04-18. [Ø](#))

This evidence outlines the Treasury Committee's work to further both the accountability and independence of the Bank's policy committees, directly addressing the perceived insufficiency of accountability mechanisms.

15. [Bank failed the British people on inflation](#) — Bank of England (Economic Affairs Committee Report) - Motion to Take Note (2024-05-02. [Ø](#))

This debate questions the firm evidence base for monetary policy independence and suggests it is a pragmatic judgment, which supports the proposal's underlying premise that the current arrangement is not inherently superior.

16. [Monetary policy independence is a pragmatic judgment, not firmly evidence-based](#) — Bank of England (Economic Affairs Committee Report) - Motion to Take Note (2024-05-02. [Ø](#))

This debate questions the firm evidence base for monetary policy independence and suggests it is a pragmatic judgment, which supports the proposal's underlying premise that the current arrangement is not inherently superior.

17. [Difficulty of effective scrutiny of financial stability objective](#) — Report: 27th Report - Accountability of the Bank of England: Response from the Court of the Bank to the Twenty-first Report from the Committee — Treasury Committee — ¶4 (2012-01-23, 14 years old [Ø](#))

This report discusses the accountability of the Bank of England and mentions the lack of a single quantifiable objective against which to measure performance, which relates to the proposal's concern about accountability for policy outcomes.

18. [Concerns about delegating powers to Bank in 1990s](#) — Report: 27th Report - Accountability of the Bank of England: Response from the Court of the Bank to the Twenty-first Report from the Committee — Treasury Committee — 24 See Response from the Court, para 5 (2012-01-23, 14 years old )

This report discusses the Bank's accountability to democratic scrutiny, which is a central concern of the proposal.

19. [Monetary policy decisions are independent of government](#) — Treasury — Bank Services: Interest Rates (2022-10-18. )

This written answer states that the independent MPC makes monetary policy decisions, reinforcing the current arrangement the proposal seeks to change.

20. [Government does not comment on monetary policy effectiveness](#) — Treasury — Bank Services: Interest Rates (2022-10-18. )

This written answer states that the independent MPC makes monetary policy decisions, reinforcing the current arrangement the proposal seeks to change.

21. [Bank's statutory framework for price stability may not be appropriate](#) — Bank of England: how is independence working? — IBE0013 (2023-05-02. )

This evidence recommends an independent review to consider questions raised by the inquiry into how Bank of England independence is working, suggesting a recognized need to re-evaluate the current system.

22. [Monetary policy has critical role in supporting economy](#) — TREASURY — Bank for International Settlements (2012-07-05, 14 years old )

This written answer confirms the independent MPC has operational responsibility for monetary policy, reinforcing the current statutory arrangement the proposal seeks to change.

23. [Credibility of fiscal plan allows lower bank rate](#) — TREASURY — Bank for International Settlements (2012-07-05, 14 years old )

This written answer confirms the independent MPC has operational responsibility for monetary policy, reinforcing the current statutory arrangement the proposal seeks to change.

24. [Independence important for high-profile role](#) — Report: 2nd report - Appointment of Dr Martin Weale to the Monetary Policy Committee of the Bank of England — Treasury Committee (2010-09-17, 15 years old )

This report emphasizes the importance of independence for MPC members to ensure accountability to the wider public through speeches and interviews, which contradicts the proposal's claim of a lack of accountability.

25. [Performance of inflation targeting regime is measurable](#) — Report: 7th Report - Financial Regulation: a preliminary consideration of the Government's proposals — Treasury Committee — 78 Financial Regulation (2011-02-03, 15 years old )

This report states that the performance of the inflation targeting regime is measurable with explicit roles for the Treasury and MPC, which contradicts the proposal's claim of insufficient accountability for policy outcomes.

26. [MPC decision making is transparent](#) — Report: 7th Report - Financial Regulation: a preliminary consideration of the Government's proposals — Treasury Committee — 78 Financial Regulation (2011-02-03, 15 years old )

This report states that the performance of the inflation targeting regime is measurable with explicit roles for the Treasury and MPC, which contradicts the proposal's claim of insufficient accountability for policy outcomes.

27. [Treasury Committee actively pursues transparency and accountability](#) — Report: 7th Report - Financial Regulation: a preliminary consideration of the Government's proposals — Treasury Committee — 78 Financial Regulation (2011-02-03, 15 years old )

This report states that the performance of the inflation targeting regime is measurable with explicit roles for the Treasury and MPC, which contradicts the proposal's claim of insufficient accountability for policy outcomes.

28. [Independence led to lower inflation and interest rates](#) — TREASURY — Monetary Policy Committee (2006-07-13, 20 years old )

This debate claims that Bank of England independence has led to lower inflation, interest rates, and mortgage rates, which contradicts the proposal's implied negative assessment of independence.

What's devolved

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

Questions that did **not** run on this draft: Whether this is Westminster's to change

Key sources

This module can be run when the strategic kernels have been properly reviewed.

M-08 — Diversity, equity and inclusion practice in the civil service

112 entries across **8 of 13 headings**.  **7 entries resolve to no heading** and are listed at the end — a gap in the library, not sources to drop.

How hard will this be to achieve?

This module can be run when the strategic kernels have been properly reviewed.

Cost and duration

The module calculating the costs and benefits of proposed measures is under development. It will aim to contribute to a better balance between those who benefit from legislation and those who pay for it, both taxpayers and those who pay the price of bureaucratic inefficiency and the regulatory burden.

What the law says now

 Questions filed here that did **not** run on this draft: Whether a power to do this already exists

1. [Public Sector Equality Duty \(PSED\) in Equality Act 2010](#) — Equality Act 2010, s.149 (2010)
2. [Scope of PSED](#) — Cabinet Office — Equality: Private Sector (2025-05-02)
3. [Enforcement of PSED](#) — Equality Act 2006, s.32 (2006)
4. [Civil Service Diversity and Inclusion Strategy](#) — Cabinet Office — Government Departments: Equality (2018-02-27, 8 years old )
5. [Cabinet Office Role in Civil Service DEI](#) — Cabinet Office — Civil Service: Equality (2025-06-04. )
6. [Civil Service Recruitment Principles](#) — Report: 14th Report - Public Appointments: regulation, recruitment and pay (Report and Appendices, together with formal minutes and oral evidence) — Public Administration Committee — 32 Public appointments: regulation, recruitment and pay (2011-10-19, 14 years old )

7. [Guidance on Impartiality and DEI](#) — Cabinet Office — Equality, Diversity and Inclusion in the Civil Service (2024-05-14. )
8. [Judicial Interpretation of 'Due Regard'](#) — R (on the application of Marouf) v Secretary of State for the Home Department (2023-06-28. )
9. [PSED and Non-Commercial Considerations in Contracts](#) — Equality Act 2010, sch.26 para.10 (2010)
10. [Socio-economic Duty](#) — Equality Act 2010, s.1 (2010)
11. [Civil Service Code](#) — Civil Service Commission Annual Report and Accounts 2013/14: web version (2014-06-25, 12 years old )
12. [Civil Service Commission's Role in Recruitment](#) — Civil Service Commission annual report and accounts 2011-12 - Full Text (2012-07-12)
13. [Judicial Functions Exemption](#) — Equality Act 2010, sch.18 para.3 (2010)
14. [Civil Service Diversity Data](#) — Home Office — Home Office: Equality (2023-01-30. )
15. [Departmental Responsibility for DEI](#) — Cabinet Office — Civil Service: Equality (2025-06-04. )
16. [Treasury's Role in Funding and Metrics](#) — Civil Service Commission annual report and accounts 2012-13 - Full Text (2013-07-16, 13 years old )
17. [PACAC's Oversight Role](#) — Report: 14th Report - Public Appointments: regulation, recruitment and pay (Report and Appendices, together with formal minutes and oral evidence) — Public Administration Committee — Public appointments: regulation, recruitment and pay 1 (2011-10-19, 14 years old )
18. [Previous Diversity Initiatives](#) — Report: 3rd Report - The Performance of the Ministry of Defence 2009-10 - additional written evidence — Defence Committee — FUTURE Are we building for the future? (2011-07-05, 15 years old )
19. [Recruitment Principles and Merit](#) — Report: 14th Report - Public Appointments: regulation, recruitment and pay (Report and Appendices, together with formal minutes and oral evidence) — Public Administration Committee — 32 Public appointments: regulation, recruitment and pay (2011-10-19, 14 years old )
20. [Civil Service Commission's Relationship with Cabinet Office](#) — Civil Service Commission annual report and accounts 2015 to 2016: web version (2016-07-27, 10 years old )
21. [Guidance on EDI Expenditure](#) — Cabinet Office — Civil Servants: Equality (2025-04-03. )
22. [Training on PSED](#) — Department for Work and Pensions — Civil Servants: Training (2022-02-07. )
23. [Accounting Officer's responsibility for scheme management](#) — report comptroller auditor general 2012 13 civil superannuation accounts (*undated*)
24. [Accounting Officer guidance on value for money](#) — progress public bodies reform 2 (*undated*, )
25. [Cabinet Office role in Civil Service Diversity and Inclusion Strategy](#) — Cabinet Office — Government Departments: Equality (2018-02-27)
26. [Cabinet Office and diversity targets](#) — Oral Answers to Questions — CABINET OFFICE — Modernisation (1999-12-15, 26 years old )
27. Cabinet Office oversight of Civil Service management — Government Response: Government Response to the Committee's Third report — Health and Social Care Committee (2025-12-16. )
28. [Cabinet Office as owner of Business Appointment Rules](#) — investigation into governments management of the business appointment rules (*undated*, )
29. [Cabinet Office guidance on managing conflicts of interest](#) — managing conflicts of interest (*undated*)
30. [Carltona principle application](#) — Director of Public Prosecutions v Haw (2007-08-06, 19 years old )

31. [Carltona principle in later cases](#) — Castle v Crown Prosecution Service (2014-01-24)
32. [Carltona principle and judicial review](#) — In the matter of an application by Joseph Lockhart for Judicial Review (2007-04-27, 19 years old )
33. [Civil Service Commission's establishment and governance](#) — Civil Service Commission annual report and accounts 2010-11 - Full Text (2011-07-18)
34. [Civil Service Commission's focus on recruitment and principles](#) — Civil Service Commission annual report and accounts 2011-12 - Full Text (2012-07-12, 14 years old )
35. [Civil Service Commission and diversity in public appointments](#) — Report: 14th Report - Public Appointments: regulation, recruitment and pay (Report and Appendices, together with formal minutes and oral evidence) — Public Administration Committee — 12 Q 224 (2011-10-19, 14 years old )
36. [Civil Service Management Code as legally binding](#) — investigation into governments management of the business appointment rules (*undated*)
37. [Civil Service Management Code and political activity](#) — EU referendum: guidance for UK government departments on activities during the period to 26 May (2016-05-26, 10 years old )
38. [Civil Service Management Code for terms and conditions](#) — Met Office Framework Document 2019 (2019-03-18, 7 years old )
39. [Equality Act 2010 mandates Public Sector Equality Duty](#) — Equality Act 2010, s.149 (2010)
40. [Equality Act 2010 and socio-economic inequalities](#) — Equality Act 2010, s.1 (2010)
41. [Equality Act 2010 protected characteristics](#) — Impact Assessment to The Universal Credit (Benefit Cap Earnings Exception) Amendment Regulations 2017 (2017-02-20)
42. [Managing Public Money for severance payments](#) — serious fraud office 2011 12 accounts (*undated*, )
43. [Managing Public Money as general guidance](#) — Framework agreement between DHSC and HEE – annex A: wider guidance (2019-07-11, 7 years old )
44. [Managing Public Money for grants and value for money](#) — NRS scheme funding guidance (2026-05-15. )
45. [PSED requires 'due regard' to equality needs](#) — Equality Act 2010, s.149 (2010)
46. [PSED compliance and enforcement by the Commission](#) — Equality Act 2006, s.31 (2006)
47. PSED as a driver for D&I in public authorities — Report: NAO Auditor's Value for Money Study (2022) Human Resources — Public Accounts Commission (2022-12-06. )
48. PSED in leadership competency frameworks — Government Response: Government Response to the Committee's Third report — Health and Social Care Committee (2025-12-16. )
49. [PSED and judicial review](#) — Court of Session: 2025csoh102 petition of roseanna mcphie for judicial review of a decision by perth and kinross council (2025-11-05)
50. [Stonewall Workplace Equality Index as an external driver](#) — Review of the Public Sector Equality Duty by the Independent Steering Group (2013-10-10, 12 years old )
51. Terms of art the record confirms (*undated — no source record*)

What else refers to this law

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

How the courts have read it

1. [PSED requires 'due regard' to three needs](#) — Police Superintendents' Association, R (on the application of) v The Police Remuneration Review Body & Anor (2023-07-19)

This case directly addresses the PSED under s.149 of the Equality Act 2010, specifically regarding the Home Secretary's application of the duty. It is relevant to understanding judicial expectations of 'due regard' and whether the proposal's narrowed interpretation aligns with or challenges existing judicial construction.

2. [Advancing equality includes removing disadvantages and encouraging participation](#) — National Council for Civil Liberties v Equality and Human Rights Commission (2025-06-26)

This case directly construes Section 149(3) of the Equality Act 2010, which defines 'advancing equality of opportunity' and is central to the proposal's aim of narrowing the interpretation of 'due regard'. The proposal depends on whether this construction widens or narrows the provision.

3. [Judicial construction of 'due regard' requires substantive and rigorous approach](#) — London Borough of Hackney v Haque (2017-01-17, 9 years old ⓪)

This case construes the intention of Parliament regarding equality considerations being 'at the centre of formulation of policy by all public authorities', which impacts the breadth of the PSED and the proposal's aim to narrow its application. The proposal depends on whether this construction widens or narrows the provision.

4. ['Due regard' must be fulfilled before and at the time of policy consideration](#) — Taylor v Slough Borough Council (2020-12-21, 5 years old ⓪)

This case reviews points on the public authority decision maker's awareness of the duty to have 'due regard' and the scope of the relevant matters. This directly bears on the proposal's attempt to clarify and narrow the interpretation of 'due regard' and whether this construction narrows or widens the provision.

5. [PSED aims to mainstream equality issues in policy development](#) — Court of Session: court of session judgement appeal by s against the scottish ministers 16 october 2020 (2020-10-16, 5 years old ⓪)

This case construes the PSED as a procedural duty 'designed to alter behaviour in policy development and decision-making, rather than to enforce particular rules or achieve particular results', aiming for 'substantive and not merely formal' equality. This directly bears on the proposal's attempt to narrow the interpretation of 'due regard' and whether this construction narrows or widens the provision.

6. [Court does not determine weight given to PSED if rigorously considered](#) — Williams & Anor, R (on the application of) v Surrey County Council (2012-04-03, 14 years old ⓪)

This case construes the meaning of 'due regard' in the PSED, stating that the court determines if there has been 'rigorous consideration' rather than the 'weight' given. This directly bears on the proposal's attempt to redefine 'due regard' and whether this construction narrows or widens the provision.

7. [PSED requires impact assessment](#) — The Children's Law Centre's Application (2025-12-23)

This case refers to the UKSC case of For Women Scotland Ltd v Scottish Ministers, which confirms that the section 149 EA 2010 duty requires an impact assessment. This directly bears on the procedural requirements of 'due regard' and whether this construction narrows or widens the provision.

8. [Nature of 'due regard' is shaped by the function being exercised](#) — Sofia Sheakh (R on the application of) v London Borough of Lambeth Council (2022-04-05. ⓪)

This case construes the nature of the duty to have 'due regard' under the PSED, stating it is 'shaped by the function being exercised'. This directly bears on the proposal's attempt to narrow the interpretation of 'due regard' and whether this construction narrows or widens the provision.

What was tried before — and what happened

 Questions filed here that did **not** run on this draft: Whether this has been tried before

1. [PSED aims to drive culture shift beyond minimal compliance](#) — Equality Bill — Report (2010-03-02, 16 years old )

This debate discusses amendments to Clause 148 (now Section 149) of the Equality Bill, highlighting perceived limitations of the duty and the intent to improve its effectiveness in promoting equality.

2. ['Due regard' requires substantive, not just formal, consideration](#) — London Borough of Hackney v Haque (2017-01-17, 9 years old )

This case law states that 'it seems to have been the intention of Parliament that these considerations of equality of opportunity (where they arise) are now to be placed at the centre of formulation of policy by all public authorities', which directly addresses the original intent behind the PSED.

3. [PSED does not mandate specific outcomes, but 'due regard' to goals](#) — Luton Community Housing Ltd v Durdana (2020-03-26, 6 years old )

This case law defines 'due' in 'due regard' as 'appropriate in all the circumstances' and clarifies that the duty is not to achieve a specific result but to have regard to the need to eliminate discrimination, which is central to the proposal's reinterpretation of 'due regard'.

4. [Ministers can impose specific duties to aid PSED performance](#) — Equality Act 2010, s.153 (2010)

This section of the Equality Act 2010 grants Ministers the power to impose specific duties to enable better performance of the Section 149 duty, indicating that the original legislation anticipated further guidance or regulation to shape the PSED's application.

5. [Government guidance on PSED and positive action was published in 2011](#) — Equality Act 2010 (2011-01-12)

This debate entry mentions 'short practical guidance produced by the Government Equalities Office on the public sector equality duty', which shows that the government intended to provide guidance on the PSED's application from its inception.

6. [Concerns about 'over-compliance' and 'gold-plating' of PSED raised in 2013 review](#) — Review of the Public Sector Equality Duty by the Independent Steering Group (2013-10-10)

This report from an independent review of the PSED identifies 'over-compliance' and 'gold-plating' as issues, suggesting that an expansive interpretation of the duty was observed and discussed as early as 2013.

Where this mechanism works elsewhere

Nothing under this heading. We looked for the same problem solved in another sector, industry or country, and found nothing. That is a gap in what we could retrieve, not a statement about what exists.

Questions that ran: What other sectors built for the same problem

Who has argued about this

1. [Civil Service aims to be 'UK's most inclusive employer'](#) — Cabinet Office — Government Departments: Equality (2018-02-27, 8 years old )

Demonstrates the Cabinet Office's interpretation of the PSED, expecting departments to set out plans to increase diversity and inclusion, which aligns with the 'expansive interpretation' the proposal seeks to narrow.

2. [Civil Service Diversity and Inclusion Strategy provides framework](#) — Cabinet Office — Civil Servants: Equality (2025-04-03. )

Shows the Cabinet Office's guidance to civil servants on embedding Diversity and Inclusion considerations in decision-making, directly addressing the 'expansive interpretation' the proposal aims to revise.

3. [PSED requires 'due regard' to eliminate discrimination, advance equality, foster good relations](#) — Equality Act 2010, s.149 (2010)

Sets out the statutory Public Sector Equality Duty (PSED) which is at the core of the proposal's problem, defining the 'due regard' requirement.

4. [PSED is a duty of process, not outcome](#) — R (on the application of Marouf) v Secretary of State for the Home Department (2023-06-28. Ø)

A Supreme Court case that provides guidance on the 'rigorous consideration' required for the PSED, which is essential for understanding the legal interpretation of 'due regard' that the proposal seeks to narrow.

5. [PSED requires rigorous consideration and proper appreciation of impact](#) — R (on the application of Marouf) v Secretary of State for the Home Department (2023-06-28. Ø)

A Supreme Court case that provides guidance on the 'rigorous consideration' required for the PSED, which is essential for understanding the legal interpretation of 'due regard' that the proposal seeks to narrow.

6. [No requirement to link pay or promotion to DEI objectives](#) — Cabinet Office — Civil Servants: Performance Related Pay (2024-07-30. Ø)

Addresses the government's policy on linking pay to performance against equality, diversity, and inclusion objectives, directly relevant to the proposal's aim for the Treasury to revise funding allocations and performance metrics.

7. [Civil servants must not let personal political views determine DEI actions](#) — Cabinet Office — Equality, Diversity and Inclusion in the Civil Service (2024-05-14. Ø)

A Written Ministerial Statement on Equality, Diversity and Inclusion in the Civil Service, which includes guidance on civil servants' personal political views, directly relevant to the proposal's aim to issue revised guidance.

8. Civil Service has a new Diversity and Inclusion Strategy 2022-2025 — Correspondence: Letter from Alex Chisholm, Civil Service Chief Operating Officer and Cabinet Office Permanent Secretary on the new Civil Service Diversity and Inclusion Strategy 2022-25, dated 7.3.22 (2022-03-15)

Correspondence from the Civil Service Chief Operating Officer to PACAC on the new Civil Service Diversity and Inclusion Strategy 2022-25, directly addressing the strategy the proposal seeks to curtail and PACAC's oversight.

9. [Civil Service reviewing D&I training for evidence-based approach](#) — Cabinet Office — Equality: Training (2020-11-12, 5 years old Ø)

A debate answer discussing the Civil Service's review of future diversity and inclusion learning, indicating ongoing internal efforts and the scope of DEI initiatives.

10. [PACAC's remit includes civil service administration and constitutional affairs](#) — Report: Work of the Committee since the 2017 General Election — Public Administration and Constitutional Affairs Committee (2019-10-08, 6 years old Ø)

A PACAC report on its work, indicating its ongoing oversight role, which is relevant to the proposal's recommendation for PACAC to conduct regular reviews of Civil Service compliance.

11. Civil Service People Survey demographic results published annually — Correspondence: Letter from Alex Chisholm, Civil Service Chief Operating Officer and Cabinet Office Permanent Secretary on publication of 2022 Civil Service People Survey Demographic Results, dated 29.6.23 (2023-07-04. Ø)

Correspondence from the Civil Service Chief Operating Officer to PACAC regarding the publication of Civil Service People Survey Demographic Results, indicating PACAC's interest in Civil Service diversity data and its oversight role.

12. [Civil Service Equality, Diversity and Inclusion Expenditure Review is under consideration](#) — Cabinet Office — Civil Service: Equality (2024-07-30. ∅)

A debate question and answer regarding the publication of data on historic spending on equality, diversity, and inclusion, directly relevant to the proposal's call for the Treasury to review funding allocations.

13. [Expansive EDI practices criticised in Parliament](#) — Civil Service: Politicisation - Motion to Take Note (2024-11-28. ∅)

A House of Lords debate directly addressing the 'politicisation' of the Civil Service and the impact of the public sector equality duty on creating an internal culture dominated by EDI priorities, which aligns with the core problem identified by the proposer.

Key people and groups likely to support or oppose

1. [Freddie van Mierlo — recorded acts bearing on “Civil Service pensions”](#) — Position graph, method 3c.7bac2c10d652, computed 2026-09-04 (2026-06-01)

Matched to this proposal on the phrase “civil service”. Most recent recorded act: 2026-06-01, for “Civil Service pensions”. 1 recorded act in total, listed in full in the long report.

2. What this section does not cover — our record of recorded divisions of the House of Commons begins 2016-03-09, and 2 signal types have no source data — Position graph coverage, generated 2026-09-04 (undated — no source record)

Our record of recorded divisions of the House of Commons begins 2016-03-09; 2 signal types (seats held on select and public bill committees; amendments a member put their name to) have no source data at all; and the stance estimates have never been scored against a verified answer key. The full statement is in the long report.

The numbers

1. [Public Sector Equality Duty](#) — Equality Act 2010, s.149 (2010)

This is the core statutory duty (Public Sector Equality Duty) that the proposal seeks to reinterpret and narrow, directly addressing the root cause.

2. [Civil Service Diversity and Inclusion Strategy](#) — Cabinet Office — Civil Servants: Recruitment (2017-11-14)

This answer discusses initiatives aimed at improving diversity in Civil Service recruitment, providing context for the 'expansive interpretation' of the PSED.

3. [Civil Service Diversity and Inclusion Strategy 2022-2025](#) — Civil Service Diversity and Inclusion Strategy: 2022 to 2025 (2022-02-24)

This is the official Civil Service Diversity and Inclusion Strategy 2022-2025, which explicitly outlines the expansive interpretation and application of the PSED that the proposal seeks to narrow.

4. [Cabinet Office oversight of DEI](#) — diversity equality and inclusion in the civil service (undated, ∅)

This guidance document from the NAO provides a summary of equality, diversity, and inclusion in the Civil Service, offering a quantified overview of the problem's scale and existing practices.

5. [Civil Service Commission's role in Diversity Strategy](#) — Civil Service Commission annual report and accounts 2017-18 (2018-07-27)

This report mentions the Civil Service Commission's interaction with the new Civil Service Diversity and Inclusion strategy and its representation on the Diverse Leadership Taskforce, showing its involvement in DEI initiatives.

6. [Guidance on Diversity and Inclusion and Impartiality](#) — Guidance on Diversity and Inclusion and Impartiality for Civil Servants (2024-05-14)

This guidance aims to provide clarity on Civil Service diversity and inclusion and reinforce impartiality, directly relevant to the proposal's aim of issuing revised, legally authoritative guidance.

7. [Expenditure on DEI in Civil Service](#) — Cabinet Office — Civil Service: Equality (2025-06-09)

This source quantifies the annual cost of promoting diversity, equality, and inclusion policies within the Civil Service, directly addressing the scale of the problem.

8. [Difficulty in quantifying DEI savings](#) — Cabinet Office — Civil Service: Equality (2025-07-29. ⓪)

This source attempts to quantify the money saved from Civil Service EDI implementation, which could provide data on the economic impact of current practices.

9. [Limited central D&I training](#) — Cabinet Office — Civil Servants: Training (2024-01-19. ⓪)

This answer states that the Civil Service has 'limited diversity and inclusion specific training' and lists available courses, which could contradict the proposal's claim of 'extensive proactive DEI initiatives'.

10. [Phasing out unconscious bias training](#) — Cabinet Office — Cabinet Office: Training (2023-05-02)

This answer states that the Cabinet Office does not hold a central departmental record of all training and associated spend on diversity and inclusion, which contradicts the idea of a fully quantified problem and highlights a data gap.

11. [Government consideration of EDI spending](#) — Cabinet Office — Civil Servants: Equality (2024-03-12. ⓪)

This answer indicates the government is considering a presumption against external EDI spending and increasing ministerial scrutiny, which aligns with the proposal's aim to review funding allocations and performance metrics.

12. [Civil Service commitment to inclusivity](#) — Cabinet Office — Civil Servants: Recruitment (2017-11-14, 8 years old ⓪)

This answer discusses initiatives aimed at improving diversity in Civil Service recruitment, providing context for the 'expansive interpretation' of the PSED.

13. [Cabinet Secretary's desire for Civil Service inclusivity](#) — Intelligence and Security Committee: Diversity and Inclusion in the UK Intelligence Community - 2018 Report (2018-09-13)

This report mentions the Cabinet Secretary's desire for the Civil Service to be the 'most inclusive employer', reinforcing the stated expansive interpretation of the PSED.

14. [Civil Service Diversity Expert Advisers](#) — Cabinet Office — Civil Servants: Equality (2018-03-26, 8 years old ⓪)

This answer states the Civil Service's ambition to become the 'most inclusive employer in the UK' and mentions consultation with external stakeholders on diversity and inclusion strategy, supporting the claim of an expansive interpretation.

15. Civil Service People Survey Demographic Results — Correspondence: Letter from Alex Chisholm, Civil Service Chief Operating Officer and Cabinet Office Permanent Secretary on publication of 2022 Civil Service People Survey Demographic Results, dated 29.6.23 (2023-07-04. ⓪)

This letter refers to the publication of 2022 Civil Service People Survey Demographic Results, which would contain quantified data on diversity within the Civil Service, directly addressing the scale of the problem.

16. [Increasing diversity in senior civil service](#) — Cabinet Office — Civil Service: Broadening and Diversifying Expertise (2022-06-09. ⓪)

This debate highlights the goal of increasing diversity in the senior civil service and using the fast stream as a tool, indicating the ongoing commitment to diversity initiatives.

17. [Cabinet Office does not routinely collect all EDI expenditure data](#) — Cabinet Office — Civil Service: Equality (2025-10-31. )

This answer states that the Cabinet Office does not routinely collect data on all EDI expenditure, which contradicts the idea of a fully quantified problem and highlights a data gap.

18. [One-off review of EDI expenditure](#) — Cabinet Office — Civil Service: Equality (2025-10-31)

This answer states that the Cabinet Office does not routinely collect data on all EDI expenditure, which contradicts the idea of a fully quantified problem and highlights a data gap.

19. [Home Office has not estimated D&I staffing costs](#) — Home Office — Home Office: Equality (2025-03-25. )

This answer refers to Cabinet Office guidance on Civil Service EDI Expenditure, indicating existing efforts to manage and potentially quantify EDI costs, which is relevant to the Treasury's role in the proposal.

20. [Civil Service Equality, Diversity & Inclusion Expenditure Guidance](#) — Civil Service Equality, Diversity and Inclusion Expenditure Guidance (2024-05-14)

This guidance outlines measures to control EDI spend and activity, directly relevant to the Treasury's role in reviewing funding allocations and performance metrics as proposed.

What's devolved

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

Questions that did **not** run on this draft: Whether this is Westminster's to change

Key sources

This module can be run when the strategic kernels have been properly reviewed.

M-09 — Gender self-identification

83 entries across **7 of 13 headings**.  **9 entries resolve to no heading** and are listed at the end — a gap in the library, not sources to drop.

How hard will this be to achieve?

This module can be run when the strategic kernels have been properly reviewed.

Cost and duration

The module calculating the costs and benefits of proposed measures is under development. It will aim to contribute to a better balance between those who benefit from legislation and those who pay for it, both taxpayers and those who pay the price of bureaucratic inefficiency and the regulatory burden.

What the law says now

1. [Equality Act 2010 defines 'sex' as man or woman](#) — Equality Act 2010, s.11 (2010)

This section of the Equality Act 2010 defines 'sex' as a protected characteristic, stating it refers to 'a man or to a woman' and 'persons of the same sex', which is the core ambiguity the proposal seeks to clarify.

2. [Gender Recognition Certificates change legal sex for all purposes](#) — Gender Recognition Act 2004, s.9 (2004)

This section of the Gender Recognition Act 2004 states that a full GRC changes a person's legal sex 'for all purposes', which is the basis for the incremental reinterpretation of 'sex' in the Equality Act 2010.

3. [Supreme Court clarified 'sex' in Equality Act means biological sex](#) — Equality duties on education inspection (2025-11-05)

This guidance references the UK Supreme Court ruling on the meaning of sex in the Equality Act, stating it should be interpreted as 'biological' sex, which is a direct outcome of the litigation the proposal acknowledges.

4. EHRC can advise government on equality law effectiveness — Correspondence: Letter from the Chairwoman of the EHRC relating to recent advice to Government regarding amendments to the definition of sex in the Equality Act 2010 (2023-04-19)

This letter from the EHRC Chairwoman discusses recent advice to the Government regarding amendments to the definition of sex in the Equality Act 2010, indicating ongoing governmental consideration of the issue the proposal addresses.

5. [Minister has power to issue statutory guidance under Equality Act 2010](#) — Equality Act 2010, sch.1 para.13 (2010)

This paragraph outlines the procedure for the Minister to issue guidance under the Equality Act 2010, including publishing a draft and considering representations, which is relevant to the proposal's aim for the EHRC to issue updated statutory guidance.

6. [Parliamentary approval required for statutory guidance](#) — Equality Act 2010, sch.1 para.14 (2010, 16 years old ☺)

This paragraph details the parliamentary approval process for guidance issued by the Minister under the Equality Act 2010, requiring a draft to be laid before Parliament, which is relevant to the proposal's aim for the EHRC to issue updated statutory guidance.

7. [Statutory guidance comes into force by Minister's order](#) — Equality Act 2010, sch.1 para.15 (2010)

This paragraph states that guidance comes into force on a day appointed by order by the Minister, which is relevant to the proposal's aim for the EHRC to issue updated statutory guidance.

8. [Equality Act 2010 governs 'sex' and 'gender reassignment'](#) — Equality Act 2010, s.11 (2010)

Provides the current statutory definition of 'sex' in the Equality Act 2010, which the proposal seeks to amend.

9. [Gender Recognition Act 2004 changes legal sex](#) — Gender Recognition Act 2004, s.9 (2004)

Sets out the legal effect of a full Gender Recognition Certificate, which is central to the proposal's aim of clarifying the interaction between the GRA 2004 and the Equality Act 2010.

10. [GRC impacts protected characteristic of sex in EA 2010](#) — The Gender Recognition Reform (Scotland) Bill (Prohibition on Submission for Royal Assent) Order 2023, sch.2 para.2 (2023)

Confirms that a full GRC changes a person's sex for the purposes of the Equality Act 2010, which is the statutory interaction the proposal aims to clarify.

11. [Supreme Court ruled 'sex' in EA 2010 means biological sex](#) — For Women Scotland Ltd v The Scottish Ministers (2025-04-16)

This Supreme Court ruling directly addresses the interpretation of 'sex' in the Equality Act 2010, stating it means biological sex, which is a core element of the proposal's context.

12. [Implications of Supreme Court ruling for GRC holders](#) — Equality Act 2010: Code of Practice - Statement (2026-06-03)

Confirms that a Supreme Court ruling clarified 'sex' in the Equality Act means biological sex and that GRCs no longer change one's sex for the Act's purposes, directly addressing the proposal's problem.

13. [EA 2010 allows single-sex service exceptions](#) — Legislative Definition of Sex — [Judith Cummins in the Chair] (2023-06-12)

Reassures members of the government's commitment to maintaining safeguards for single-sex services and acknowledges the importance of spaces reserved for biological sex, directly relevant to the proposal.

14. [EHRC advises on Equality Act definition of sex](#) — Correspondence: Letter from the Chairwoman of the EHRC relating to recent advice to Government regarding amendments to the definition of sex in the Equality Act 2010 (2023-04-19)

A letter from the EHRC Chairwoman regarding advice to the Government on amending the definition of sex in the Equality Act 2010, showing direct engagement with the proposal's core issue.

15. [EHRC guidance on single-sex spaces](#) — Legislative Definition of Sex — [Judith Cummins in the Chair] (2023-06-12)

Discusses the EHRC's statutory guidance on single-sex spaces and the onus placed on service providers, which the proposal aims to influence through legislative change.

16. [Parliamentary process for EHRC guidance](#) — Equality Act 2010, sch.1 para.14 (2010, 16 years old ☺)

Outlines the parliamentary process for approving draft guidance, which is relevant to the proposal's call for the EHRC to issue updated statutory guidance.

17. [Self-identification not enacted in Great Britain](#) — For Women Scotland Ltd v The Scottish Ministers (2025-04-16)

This Supreme Court ruling directly addresses the interpretation of 'sex' in the Equality Act 2010, stating it means biological sex, which is a core element of the proposal's context.

18. [Equality Act 2010 defines 'sex' as man or woman](#) — Equality Act 2010, s.11 (2010)

19. [Equality Act 2010 includes gender reassignment as a protected characteristic](#) — Equality Act 2010, s.7 (2010)

20. [EHRC acknowledges complexity of Equality Act 2010 regarding 'sex'](#) — Legislative Definition of Sex — [Judith Cummins in the Chair] (2023-06-12)

21. [EHRC has statutory duty to monitor equality and human rights](#) — Is Britain Fairer? The state of equality and human rights 2015 (2015-11-11)

22. [EHRC acts as a regulator enforcing equalities legislation](#) — Equality and Human Rights Commission (2020-01-06)

23. [EHRC provides guidance on Equality Act 2010 compliance](#) — RPC Opinion: Pregnancy and Maternity Guidance and Toolkit (2019-02-13)

24. [Forstater v CGD Europe established gender-critical beliefs as protected](#) — M Forstater v CGD Europe and others: 2200909/2019 - Judgment (2023-06-30)

25. [Both sex-based and gender identity beliefs are protected under Equality Act 2010](#) — Allison Bailey v Stonewall Equality Limited & Ors (2024-07-24)

26. [Gender Recognition Act 2004 allows legal gender change](#) — Call for input: Incorrect guidance on single-sex spaces and gender self-identification (2024-05-01)

27. [GRA 2004 and Equality Act 2010 interaction is complex and debated](#) — Gender Recognition (2023-12-06)

28. Government Equalities Office launched review of Gender Recognition Act — Report: Third report- Reform of the Gender Recognition Act — Women and Equalities Committee (2021-12-21)

29. GEO responsible for equalities legislation and policy — Government Response: Fifth special report - Reform of the Gender Recognition Act: Government response to the Committee's Third Report — Women and Equalities Committee (2022-03-24. ☺)

30. [GEO faced judicial review regarding GRA 2004 requirements](#) — In the matter of an application by JR111 for Judicial Review (Ruling on Remedy) (2021-05-21)

31. Terms of art the record confirms (*undated — no source record*)

What else refers to this law

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

How the courts have read it

1. [Ambiguity in 'sex' definition in Equality Act 2010](#) — Scottish Parliament: Gender Recognition Reform (Scotland) Bill: Stage 1 (2022-06-14)

This debate excerpt highlights the ongoing legal ambiguity regarding whether Gender Recognition Certificates affect the operation of single-sex exceptions in the Equality Act 2010, which the proposal seeks to clarify.

2. [GRC effect on protected characteristic of sex](#) — The Gender Recognition Reform (Scotland) Bill (Prohibition on Submission for Royal Assent) Order 2023, sch.2 para.2 (2023)

This statutory instrument highlights the interaction between the Gender Recognition Act 2004 and the Equality Act 2010, specifically noting how a GRC affects the protected characteristic of sex, which is the core ambiguity the proposal addresses.

3. [For Women Scotland Ltd v The Scottish Ministers \(2025\) UKSC 16](#) — For Women Scotland Ltd v The Scottish Ministers (2025-04-16)

This Supreme Court ruling in 'For Women Scotland Ltd v The Scottish Ministers' directly construes 'sex' in the Equality Act 2010 as biological sex, narrowing its interpretation and directly supporting the proposal's objective.

4. [Judicial construction narrows 'sex' to biological sex](#) — Good Law Project Limited & Ors, R (on the application of) v Commissioner for Equality and Human Rights (2026-02-13)

This High Court case refers to the Supreme Court's conclusion in 'For Women Scotland Ltd v The Scottish Ministers' that 'sex' in the Equality Act 2010 means biological sex, reinforcing the judicial construction relevant to the proposal.

5. [Impact of UKSC ruling on GRCs and Equality Act](#) — Equality duties on education inspection (2025-11-05)

This guidance explicitly states that the UK Supreme Court ruled 'sex' in the Equality Act means biological sex, directly addressing the core ambiguity the proposal seeks to resolve.

6. [Parliamentary debate on 'sex' meaning biological sex](#) — Scottish Parliament: Gender Recognition Reform (Scotland) Bill: Stage 1 (2022-06-14)

This debate excerpt discusses the meaning of 'sex' in the Equality Act 2010, asserting it means biological sex, which is central to the proposal's aim of clarifying this definition.

7. [Equality Act 2010 definition of 'sex'](#) — Equality Act 2010, s.11 (2010)

This is the statutory provision in the Equality Act 2010 that defines 'sex' as a protected characteristic, which the proposal aims to amend and clarify.

What was tried before — and what happened

 Questions filed here that did **not** run on this draft: Whether this has been tried before

1. [Effect of Gender Recognition Certificates on legal sex](#) — Impact Assessment to The Gender Recognition Reform (Scotland) Bill (Prohibition on Submission for Royal Assent) Order 2023 (2023-01-17)

Explains how a full GRC changes a person's protected characteristic of sex for the Equality Act 2010, which is central to the proposal's concern about reinterpretation.

2. [Original meaning of 'sex' in Equality Act 2010](#) — Scottish Parliament: Gender Recognition Reform (Scotland) Bill: Stage 1 (2022-06-14)

Discusses the meaning of 'sex' in the Equality Act 2010, arguing it means biological sex, which directly addresses the ambiguity the proposal seeks to resolve.

3. [Judicial clarification of 'sex' in Equality Act 2010](#) — Equality Act 2010: Code of Practice - Statement (2026-06-03)

Confirms a court ruling that 'sex' in the Equality Act means biological sex, directly addressing the legal clarity the proposal seeks to enshrine.

4. [Impact of GRCs on Equality Act 2010 interpretation](#) — The Gender Recognition Reform (Scotland) Bill (Prohibition on Submission for Royal Assent) Order 2023, sch.2 para.2 (2023)

States that the Gender Recognition Act 2004 interacts with the Equality Act 2010, and a GRC changes legal sex for the purposes of the 2010 Act, highlighting the source of the ambiguity.

5. [Unforeseen impact of 'sex' and 'gender' usage](#) — Gender Recognition (2023-12-06)

Highlights the debate around whether 'sex' and 'gender' were intended to be used as they are now in the Equality Act 2010 and Gender Recognition Act 2004, indicating a potential divergence from original intent.

6. [Legal sex definition under current acts](#) — Legislative Definition of Sex — [Judith Cummins in the Chair] (2023-06-12)

Explains how the Gender Recognition Act 2004, combined with the Equality Act, defines legal sex and how this allows for different treatment, which is the core ambiguity the proposal addresses.

7. [Intent of Gender Recognition Act 2004 regarding legal sex](#) — Legislative Definition of Sex — [Judith Cummins in the Chair] (2023-06-12)

Argues that current interpretations are changing the original intention of the Equality Act and could question existing case law, directly supporting the proposal's premise of administrative reinterpretation.

8. [Concerns over Gender Recognition Reform \(Scotland\) Bill](#) — The Gender Recognition Reform (Scotland) Bill (Prohibition on Submission for Royal Assent) Order 2023, sch.2 para.12 (2023. 0)

Discusses exceptions for sex discrimination in single-sex school admissions and the implications of changing legal sex, directly relevant to the proposal's aim to clarify single-sex provisions.

9. [Intentional interchangeable use of 'sex' and 'gender'](#) — Scottish Parliament: Gender Recognition Reform (Scotland) Bill: Stage 1 (2022-05-31)

Highlights that the legal position on whether a GRC changes someone's sex under the Equality Act 2010 is unsettled, which is the ambiguity the proposal seeks to resolve.

10. [Conflicting court decisions on 'sex' definition](#) — Legislative Definition of Sex — [Judith Cummins in the Chair] (2023-06-12)

References conflicting court decisions on whether 'sex' is limited to biological sex or includes those with a GRC, illustrating the ambiguity the proposal aims to clarify.

11. [Equality Act 2010 definition of sex](#) — Equality Act 2010, s.11 (2010)

Provides the statutory definition of 'sex' in the Equality Act 2010, which is the specific provision the proposal seeks to amend.

12. [Legal sex and biological sex distinction](#) — Legislative Definition of Sex — [Judith Cummins in the Chair] (2023-06-12. 0)

Explains that for most people, legal sex is biological sex, but differs for transgender people with GRCs, directly addressing the distinction the proposal seeks to clarify.

Where this mechanism works elsewhere

Nothing under this heading. We looked for the same problem solved in another sector, industry or country, and found nothing. That is a gap in what we could retrieve, not a statement about what exists.

Questions that ran: What other sectors built for the same problem

Who has argued about this

1. [Gender Recognition Act 2004 allows legal sex change](#) — Impact Assessment to The Gender Recognition Reform (Scotland) Bill (Prohibition on Submission for Royal Assent) Order 2023 (2023-01-17)

Discusses the impact of GRCs on the protected characteristic of sex under the Equality Act 2010, directly addressing the core ambiguity the proposal seeks to resolve.

2. [Debate on 'sex' definition in Equality Act 2010](#) — Scottish Parliament: Gender Recognition Reform (Scotland) Bill: Stage 1 (2022-05-31)

A Scottish Parliament debate highlighting that the legal position regarding GRCs and their implications for the Equality Act 2010 is unsettled, reinforcing the need for clarity.

3. [Supreme Court clarifies 'sex' means biological sex](#) — For Women Scotland Ltd v The Scottish Ministers (2025-04-16)

Supreme Court case ruling that 'sex' in the Equality Act 2010 means biological sex, providing the legal clarity that underpins the proposal's call for legislative alignment.

4. [Implications for single-sex spaces post-Supreme Court ruling](#) — Equality Act 2010: Code of Practice - Statement (2026-06-03. Ø)

A House of Lords debate referencing a court ruling that 'sex' in the Equality Act means biological sex, directly supporting the proposal's premise and noting implications for GRCs.

5. [EHRC guidance on 'sex' definition](#) — Good Law Project Limited & Ors, R (on the application of) v Commissioner for Equality and Human Rights (2026-02-13)

High Court case referencing an interim update from the EHRC on the implications of a Supreme Court judgment on single-sex facilities, showing administrative reinterpretation post-litigation.

6. Women and Equalities Committee examined GRA reform — Report: Third report- Reform of the Gender Recognition Act — ¶19 — Women and Equalities Committee (2021-12-21)

Report from the Women and Equalities Committee on the Reform of the Gender Recognition Act, providing context on wider issues affecting transgender people and the GRA.

7. [Government response to GRA reform consultation](#) — Women and Equalities — Gender Recognition: Equality (2022-03-24)

A House of Lords written answer stating no intention to change current legislative requirements for changing legal sex, but also commitment to making the process more straightforward, indicating government position on GRA reform.

8. [Concerns about self-identification and single-sex spaces](#) — Reform of the Gender Recognition Act — GRA0266 (2021-01-20, 5 years old Ø)

Written evidence to a committee inquiry discussing the impact of GRA reform proposals on women, directly relevant to the proposal's concerns about single-sex provisions.

9. [Equality Act exceptions for single-sex services](#) — Business: summary guide for providing goods and services (PDF file - 280kb) (2011-06-22)

EHRC guidance discussing exceptions to sex discrimination for transsexual people and the personal process of gender reassignment, relevant to the scope of single-sex provisions.

10. [Scottish Government's position on GRC and Equality Act](#) — Scottish Parliament: Gender Recognition Reform (Scotland) Bill: Stage 3 (2022-12-21)

A Scottish Parliament debate referencing a court case on the Gender Representation on Public Boards (Scotland) Act 2018 and the EHRC's consistent position, indicating legal and regulatory context.

Key people and groups likely to support or oppose

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

The numbers

1. [Legal sex defined by birth assignment or GRC](#) — Legislative Definition of Sex — [Judith Cummins in the Chair] (2023-06-12)

This debate excerpt directly addresses the ambiguity in the statutory definition of 'sex' in the Equality Act 2010, particularly concerning Gender Recognition Certificates, which is the core problem identified.

2. [GRC changes legal sex for Equality Act purposes](#) — The Gender Recognition Reform (Scotland) Bill (Prohibition on Submission for Royal Assent) Order 2023, sch.2 para.2 (2023)

This statutory instrument directly states that a full GRC has the effect of changing a person's sex as a protected characteristic for the purposes of the Equality Act 2010, which is a key part of the problem diagnosis.

3. [Debate on 'sex' meaning in Equality Act 2010](#) — Scottish Parliament: Gender Recognition Reform (Scotland) Bill: Stage 1 (2022-06-14)

This debate excerpt directly addresses the debate around whether GRCs affect the operation of single-sex exceptions in the Equality Act 2010, which is central to the proposal's problem diagnosis.

4. [Supreme Court clarifies 'sex' means biological sex](#) — For Women Scotland Ltd v The Scottish Ministers (2025-04-16)

This Supreme Court ruling directly contradicts the proposal's premise of ambiguity by clarifying that 'sex' in the Equality Act 2010 means biological sex, and is a key legal development that has already addressed the problem.

5. [EHRC confirms Supreme Court ruling on biological sex](#) — Equality duties on education inspection (2025-11-05)

This guidance directly states that the UK Supreme Court ruled on 16 April 2025 that 'sex' in the Equality Act should be interpreted as 'biological' sex only, directly contradicting the proposal's premise of ongoing ambiguity.

6. [Equality Act allows for different treatment based on GRC status](#) — Legislative Definition of Sex — [Judith Cummins in the Chair] (2023-06-12. ©)

This debate excerpt directly addresses the ambiguity in the statutory definition of 'sex' in the Equality Act 2010, particularly concerning Gender Recognition Certificates, which is the core problem identified.

7. EHRC advised UK Government on 'sex' definition — Correspondence: Letter from the Chairwoman of the EHRC relating to recent advice to Government regarding amendments to the definition of sex in the Equality Act 2010 (2023-04-19)

This letter from the EHRC Chairwoman directly relates to advice given to the Government regarding amendments to the definition of sex in the Equality Act 2010, indicating ongoing efforts to address the ambiguity.

8. [EHRC guidance on single-sex services and trans people](#) — Enforcing the Equality Act: the law and the role of the EHRC inquiry — EEA0121 (2018-12-03)

This written evidence discusses the original Statutory Code of Practice for the Equality Act 2010 and its guidance on including trans people in single-sex services, which is directly relevant to the 'administrative practice and guidance' aspect of the problem.

9. [UK Government maintained GRC requirement for gender dysphoria diagnosis](#) — Impact Assessment to The Gender Recognition Reform (Scotland) Bill (Prohibition on Submission for Royal Assent) Order 2023 (2023-01-17)

This impact assessment confirms the UK Government's position on maintaining the requirement for a diagnosis of gender dysphoria for legal sex change, which directly relates to the 'incremental reinterpretation' aspect of the problem.

What's devolved

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

Questions that did **not** run on this draft: Whether this is Westminster's to change

Key sources

This module can be run when the strategic kernels have been properly reviewed.

M-10 — Publicly funded charities campaigning on government policy

77 entries across 8 of 13 headings. ⚠️ 8 entries resolve to no heading and are listed at the end — a gap in the library, not sources to drop.

How hard will this be to achieve?

This module can be run when the strategic kernels have been properly reviewed.

Cost and duration

The module calculating the costs and benefits of proposed measures is under development. It will aim to contribute to a better balance between those who benefit from legislation and those who pay for it, both taxpayers and those who pay the price of bureaucratic inefficiency and the regulatory burden.

What the law says now

⚠️ Questions filed here that did **not** run on this draft: Whether a power to do this already exists

1. [Charities Act 2011 defines 'charitable purpose'](#) — Charities Act 2011, s.2 (2011)

Defines 'charitable purpose' for England and Wales, which is fundamental to understanding what activities charities can undertake, including campaigning.

2. [Charities can campaign for their purposes](#) — Charities Bill [HL] (2005-10-12, 20 years old ⓪)

States the existing legal framework that charities may campaign in furtherance of their charitable purposes, but cannot exist solely for political purposes, which is the basis for the current guidance the proposal seeks to address.

3. [Charity Commission guidance permits campaigning](#) — Campaigning and political activity guidance for charities (CC9) (2022-11-07. ⓪)

This is the Charity Commission's primary guidance (CC9) on campaigning and political activity, which the proposal explicitly references as the root cause of the problem, and which would need to be considered in conjunction with new grant conditions.

4. [Prohibition on party-political activity](#) — Political activity and campaigning by charities (2022-10-12. Ø)

Provides current Charity Commission guidance on political activity and campaigning, explicitly stating what charities must never do (e.g., provide resources to candidates/parties), which helps define the existing boundaries the proposal seeks to reinforce or extend for publicly funded charities.

5. [Definition of 'political purposes' in charity law](#) — The International Foundation for Therapeutic and Counselling Choice v The Charity Commission for England and Wales (2025-04-30. Ø)

Raises the question of whether an appellant's purposes were 'political purposes as that phrase is understood in charity law,' directly addressing a key definitional challenge for the proposal.

6. [Restriction on expenditure for promoting Bills](#) — Charities Act 2011, s.74 (2011)

Restricts expenditure on promoting Bills in Parliament without consent, indicating an existing statutory control over certain political activities by charities, which is relevant to the scope of 'campaigning activities' the proposal seeks to define.

7. [Government departments' policy on campaigning funds](#) — COMMUNITIES AND LOCAL GOVERNMENT — Charities (2012-10-08, 13 years old Ø)

A government answer to a question about departmental policy on grants to charities for advocacy, lobbying, or campaigning, indicating that departments already have policies on this, which the proposal aims to standardize.

8. [Existing grant conditions for political activities](#) — The Health and Social Care (Financial Assistance) Regulations 2009, reg.3 (2009)

Provides a definition of 'political campaigning organisation' and activities intended to influence voters, which could inform the proposed definitions of 'campaigning activities' and 'directly oppose' in grant conditions.

9. [Debate on public funds for lobbying](#) — Access to Mental Health Services — Clause 27 — Changes to existing limits (2013-09-10, 12 years old Ø)

Directly addresses the core problem, stating that 'lobbying the Government with the Government's money—taxpayers' money—is a suspect activity,' and that 'we do not pay our taxes to allow bodies to oppose or support the Government.'

10. [Charities can focus resources on political activity](#) — The prevention or relief of poverty for the public benefit (2011-12-01, 14 years old Ø)

References 'Speaking Out: Campaigning and Political Activity' guidance (CC9), confirming that charities can focus resources on political activity as long as it's not their sole purpose, which is the current framework the proposal aims to refine.

11. [Accounting Officer responsibility for grants](#) — Report: 8th Report - The Government's funding of Kids Company — Public Accounts Committee — 8 The Government's funding of Kids Company Recommendations (2015-11-13, 10 years old Ø)

12. [Charities Act 2011 defines charitable purposes](#) — Charities Act 2011, s.3 (2011)

13. [Charities Act 2011 and public benefit](#) — Charities Act 2011, s.4 (2011)

14. [Cabinet Office role in charity policy](#) — CABINET OFFICE — Political Activity (Charity Commission Guidance) (2014-09-10, 11 years old Ø)

15. [Cabinet Office policy on grant-funded campaigning](#) — Cabinet Office — Charities: Lobbying (2016-03-14, 10 years old Ø)

16. [Charity Commission guidance on political activity](#) — Report: 3rd Report - The role of the Charity Commission and "public benefit": Postlegislative scrutiny of the Charities Act 2006 - Volume II (Volume II: Additional Written Evidence) — Public Administration Committee (2013-06-06, 13 years old Ø)

17. [Charity Commission regulates campaigning, not grant terms](#) — Report: 3rd Report - The role of the Charity Commission and “public benefit”: Postlegislative scrutiny of the Charities Act 2006 - Volume II (Volume II: Additional Written Evidence) — Public Administration Committee — 5. How valid are concerns that there are too many charities? (2013-06-06, 13 years old ☐)
18. [Charity Commission for England and Wales as regulator](#) — Draft Protection of Charities Bill Joint Committee - publications — PCB0017 (2015-01-13, 11 years old ☐)
19. [Grant Agreement as a tool for conditions](#) — HOME DEPARTMENT — Charities (2012-10-15, 13 years old ☐)
20. [National Audit Office examines value for money](#) — Report: 8th Report - The Government's funding of Kids Company — Public Accounts Committee — 8 The Government's funding of Kids Company Recommendations (2015-11-13, 10 years old ☐)
21. [National Audit Office reports on Charity Commission](#) — Draft Protection of Charities Bill Joint Committee - publications — PCB0008 (2015-01-05, 11 years old ☐)
22. [Transparency of Lobbying, Non-party Campaigning and Trade Union Administration Act 2014 impact](#) — Report: Report - Stronger charities for a stronger society — Select Committee on Charities (2017-03-26)
23. Terms of art the record confirms (*undated — no source record*)

What else refers to this law

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

How the courts have read it

1. [Charities Act 2011 s.74 restricts expenditure on promoting Bills without consent](#) — Ukraine Development Charity v The Charity Commissioner for England and Wales (2025-02-28)

This case confirms that the Tribunal can consider activities of an appellant in determining if objects are 'exclusively charitable' and for 'public benefit', which is central to the Charity Commission's existing guidance on campaigning. This widens the scope of evidence considered when assessing charitable status, which could indirectly affect how campaigning activities are viewed.

2. [Judicial review of Charity Commission decisions](#) — Watch Tower Bible & Tract Society of Britain v Charity Commission (2014-12-12, 11 years old ☐)

This case addresses the presumption that a bespoke statutory regime (like the Charity Tribunal) should be used over judicial review, which is relevant to the proposed enforcement mechanism for grant conditions. It narrows the circumstances under which judicial review is appropriate, potentially channeling challenges through the Charity Tribunal.

3. [Political purposes and public benefit](#) — Ukraine Development Charity v The Charity Commissioner for England and Wales (2025-02-28. ☐)

This case confirms that the Tribunal can consider activities of an appellant in determining if objects are 'exclusively charitable' and for 'public benefit', which is central to the Charity Commission's existing guidance on campaigning. This widens the scope of evidence considered when assessing charitable status, which could indirectly affect how campaigning activities are viewed.

4. [Use of appeal monies for political campaigning](#) — Kennedy v The Charity Commission (2014-03-26, 12 years old ☐)

This case involved the use of appeal monies for political campaigning, directly addressing the issue of funds being used for political activity, which is the core problem the proposal seeks to address. It confirms that such use was found to be unauthorized, supporting the need for clear restrictions.

5. [Standing for judicial review of Charity Commission decisions](#) — Mermaids v The Charity Commission for England & Wales & Anor (2023-07-06. Ø)

This case discusses the threshold for establishing standing to bring a judicial review compared to the 2011 Act, which is relevant to the proposed reporting and enforcement mechanism. It suggests a potentially lower threshold for judicial review, which could widen access to challenges against Charity Commission decisions.

What was tried before — and what happened

⚠ Questions filed here that did **not** run on this draft: Whether this has been tried before

1. [Charities can campaign for their purposes, but not have a political purpose](#) — Campaigning and political activity guidance for charities (CC9) (2022-11-07. Ø)

This is the Charity Commission's core guidance (CC9) on campaigning and political activity, which the proposal directly references as the root cause of the problem, outlining the existing framework and its permissions.

2. [Prohibition on party political campaigning is long-standing](#) — CABINET OFFICE — Political Activity (Charity Commission Guidance) (2014-09-10, 11 years old Ø)

This debate explicitly discusses the Charity Commission guidance on political activity and the prohibition of party-political campaigning by charities, which is central to the proposal's problem statement.

3. [Distinction between policy advocacy and party political activity](#) — Political activity and campaigning by charities (2022-10-12. Ø)

This Charity Commission guidance explicitly states what charities must never do regarding political activity, directly addressing the existing regulatory framework the proposal seeks to augment.

4. [Charities Act 2011 restricts expenditure on promoting Bills](#) — Charities Act 2011, s.74 (2011)

This section of the Charities Act 2011 restricts expenditure on promoting Bills without consent, indicating a specific legislative control on a form of political campaigning.

5. [Government compact supports charity independence to challenge policy](#) — Non-governmental Organisations (2001-01-10, 25 years old Ø)

This debate references the Government compact on relationships with funded organisations, including recognition of the sector's independence and right to campaign, which is directly relevant to the historical intent behind allowing such activities.

6. [Previous government actively encouraged challenging campaigning](#) — Transparency of Lobbying, Non-Party Campaigning and Trade Union Administration Bill — Second Reading (2013-10-22, 12 years old Ø)

This debate highlights the historical perspective of a Labour Government actively encouraging charities' challenging campaigning role, even if uncomfortable, suggesting a deliberate policy choice to allow such activity.

7. [Concerns about taxpayer money subsidising campaigning](#) — COMMUNITIES AND LOCAL GOVERNMENT — Charities (2012-10-08, 13 years old Ø)

This written answer details a Department's policy on the use of funding by registered charities for advocacy, lobbying, or campaigning, indicating that specific grant conditions or departmental policies on this issue have been considered or implemented.

8. [Government aims to prevent taxpayer money lobbying on 'other issues'](#) — Charities: Government Grants — Question (2016-02-10, 10 years old Ø)

This debate explicitly states the aim of a clause to prevent taxpayers' money from being used to lobby, indicating a past legislative attempt to address the core problem of the proposal.

9. [Debate on whether political activity can be a charity's sole activity](#) — Report: 3rd Report - The role of the Charity Commission and “public benefit”: Postlegislative scrutiny of the Charities Act 2006 - Volume II (Volume II: Additional Written Evidence) — Public Administration Committee (2013-06-06, 13 years old ☺)

This committee report evidence questions whether political activity can be the sole or continuing activity of a charity, bearing on the historical interpretation of charity law regarding political engagement.

10. [Charities can focus resources on political activity for a period](#) — The prevention or relief of poverty for the public benefit (2011-12-01, 14 years old ☺)

This guidance explicitly states that a charity may choose to focus most or all of its resources on political activity for a period, as long as it's not the reason for its existence, directly bearing on the deliberate choice to permit such activity.

11. [Charity Commission guidance supports campaigning for charitable purposes](#) — Report: 3rd Report - The role of the Charity Commission and “public benefit”: Postlegislative scrutiny of the Charities Act 2006 - Volume II (Volume II: Additional Written Evidence) — Public Administration Committee (2013-06-06)

This committee report evidence from War on Want discusses the importance of campaigning and political activity for charities and references the Charity Commission's guidance (CC9), indicating the historical context of this guidance.

12. [Rules around political activity considered reasonable and proportionate](#) — Report: 3rd Report - The role of the Charity Commission and “public benefit”: Postlegislative scrutiny of the Charities Act 2006 - Volume II (Volume II: Additional Written Evidence) — Public Administration Committee (2013-06-06, 13 years old ☺)

This committee report evidence states that the rules around political activity by charities are considered reasonable and proportionate, indicating a historical consensus on the existing framework.

13. [Concerns about 'state funded activism' raised by think tanks](#) — Report: 3rd Report - The role of the Charity Commission and “public benefit”: Postlegislative scrutiny of the Charities Act 2006 - Volume II (Volume II: Additional Written Evidence) — Public Administration Committee — ¶10 (2013-06-06)

This committee report references a paper titled 'Sock Puppets: How the Government lobbies itself and why', directly addressing the 'sock puppet' problem identified by the proposer and indicating historical awareness of the issue.

Where this mechanism works elsewhere

Nothing under this heading. We looked for the same problem solved in another sector, industry or country, and found nothing. That is a gap in what we could retrieve, not a statement about what exists.

Questions that ran: What other sectors built for the same problem

Who has argued about this

1. [Existing legal framework permits campaigning for charitable purposes](#) — Charities Bill [HL] (2005-10-12, 20 years old ☺)

This debate from the Charities Bill [HL] discusses the existing legal framework allowing charities to campaign in furtherance of their charitable purposes, which is the root cause identified in the proposal.

2. [Government support for charities' freedom to campaign](#) — Charities Bill [HL] (2005-10-12)

This debate from the Charities Bill [HL] discusses the existing legal framework allowing charities to campaign in furtherance of their charitable purposes, which is the root cause identified in the proposal.

3. [Previous government policy on grant conditions for campaigning](#) — Cabinet Office — Charities: Lobbying (2016-02-25)

This debate directly addresses the government's proposed new restrictions on lobbying by charities through a new clause for government grant agreements, which is the core mechanism of the proposal.

4. [Purpose of 2016 grant condition policy](#) — Charities: Government Grants — Question (2016-02-10)

This debate discusses concerns about a clause affecting charities' ability to provide advice and guidance to government when part of their funded work, which relates to the scope of campaigning restrictions.

5. [Compatibility of 2016 policy with 'The Compact'](#) — Cabinet Office — Charities: Lobbying (2016-03-14)

This debate addresses the government's new policy on charitable campaigning for charities receiving government grant funding, directly relating to the proposal's mechanism of grant conditions.

6. [Impact of 2016 policy on government consultations](#) — Cabinet Office — Charities: Lobbying (2016-03-14)

This debate addresses the government's new policy on charitable campaigning for charities receiving government grant funding, directly relating to the proposal's mechanism of grant conditions.

7. [Opposition to using funding to 'gag legitimate debate'](#) — Overseas Aid: Charities and Faith-based Organisations - Motion to Take Note (2018-07-12, 8 years old ⓪)

This debate directly addresses the tension between charities receiving government money and their obligation to speak out on policy issues, which is central to the proposal.

8. [Call for greater transparency in charity campaigning](#) — Public Administration Committee Report (Charity Commission) (2013-06-06, 13 years old ⓪)

This debate discusses a Public Administration Committee Report that recommended against relaxing rules on political campaigning by charities and suggested charities publish spending on campaigning, directly addressing the problem and potential solutions.

9. [Charity Commission supports NCVO's code of good practice for campaigning](#) — Special Report: 4th Special Report - The role of the Charity Commission and "public benefit": Post-legislative scrutiny of the Charities Act 2006: Charity Commission Response to the Committee's Third Report of Session 2013-14 — Public Administration Committee — Political campaigning and independence (2013-12-18, 12 years old ⓪)

This committee report includes the Charity Commission's response to recommendations on political campaigning and independence, indicating an examination of the issue.

10. [Distinction between 'public' and 'electoral/political' campaigning](#) — Third Party Campaigning Review: summary of evidence (2016-03-17, 10 years old ⓪)

This review summary discusses distinctions between 'electoral campaigning' and 'public campaigning' on policy issues, which is relevant to defining 'campaigning activities' in the proposed grant conditions.

11. [Concerns about consistency in applying rules to think tanks](#) — Special Report: 4th Special Report - The role of the Charity Commission and "public benefit": Post-legislative scrutiny of the Charities Act 2006: Charity Commission Response to the Committee's Third Report of Session 2013-14 — Public Administration Committee — Political campaigning and independence — ¶32 (2013-12-18, 12 years old ⓪)

This committee report discusses the Charity Commission's response regarding political campaigning and the charitable status of think tanks, which are analogous to the 'sock puppets' mentioned by the proposer.

12. [Proposer's term 'sock puppets' used in IEA report](#) — The work of the Charity Commission — CHA0012 (2020-03-16)

This written evidence explicitly references 'Sock puppets: How the government lobbies itself & why, Institute of Economic Affairs, 2012', which is the proposer's own term for the problem.

13. [Question raised about influence of anonymously funded charities](#) — Charities: Government Grants — Question (2016-02-10, 10 years old ⓪)

This debate questions the government's policy on charities receiving grants and their ability to lobby, directly addressing the core problem of the proposal.

Key people and groups likely to support or oppose

1. [Andrew Rosindell — recorded acts bearing on “Maintaining institutional neutrality of publicly funded buildings and spaces”](#) — Position graph, method 3c.7bac2c10d652, computed 2026-09-04 (2025-06-12)

Matched to this proposal on the phrase “publicly funded”. Most recent recorded act: 2025-06-12, for “Maintaining institutional neutrality of publicly funded buildings and spaces”. 1 recorded act in total, listed in full in the long report.

2. What this section does not cover — our record of recorded divisions of the House of Commons begins 2016-03-09, and 2 signal types have no source data — Position graph coverage, generated 2026-09-04 (*undated — no source record*)

Our record of recorded divisions of the House of Commons begins 2016-03-09; 2 signal types (seats held on select and public bill committees; amendments a member put their name to) have no source data at all; and the stance estimates have never been scored against a verified answer key. The full statement is in the long report.

The numbers

1. [Charity Commission guidance permits campaigning for charitable purposes](#) — Campaigning and political activity guidance for charities (CC9) (2022-11-07. )

This is the Charity Commission's core guidance (CC9) on campaigning and political activity, which the proposal identifies as a root cause. It explicitly states charities can campaign for their purposes but not have a political purpose or undertake irrelevant political activity.

2. [Charities are already free to support or oppose parliamentary Bills](#) — Charities Bill [HL] (2005-10-12, 20 years old )

This debate excerpt discusses the Charity Commission's revised guidance from 2004, which was seen as enabling and highlighted the freedoms of the existing legal framework for charities campaigning for changes in law. This directly relates to the proposal's root cause regarding existing guidance.

3. [Public support for charity campaigning](#) — Report: 3rd Report - The role of the Charity Commission and “public benefit”: Postlegislative scrutiny of the Charities Act 2006 - Volume II (Volume II: Additional Written Evidence) — Public Administration Committee (2013-06-06)

This committee report cites research by nfpSynergy indicating public perception of lobbying government as a worthwhile activity for charities, providing a quantitative measure of public opinion on charity campaigning.

4. [Government departments have policies against funding political campaigning](#) — COMMUNITIES AND LOCAL GOVERNMENT — Charities (2012-10-08, 13 years old )

This written answer details the Department for Communities and Local Government's policy on grants for advocacy, lobbying, or campaigning, stating that grants are not provided for organisations involved in criminal activity or those existing for political purposes. This shows existing grant conditions related to political activity.

5. [Charity Commission states public funds for political campaigns are a matter for Parliament](#) — Special Report: 4th Special Report - The role of the Charity Commission and “public benefit”: Post-legislative scrutiny of the Charities Act 2006: Charity Commission Response to the Committee's Third Report of Session 2013–14 — Public Administration Committee — Political campaigning and independence — ¶132 (2013-12-18, 12 years old )

This committee report explicitly states that the issue of whether public funds should be used to fund charities involved with political campaigns is a matter for Parliament and its oversight of public spending, and recommends ministers make a written statement when providing government support. This directly addresses the 'pivotal obstacle' and suggests a past attempt at a solution.

6. [Debate on 'sock puppets' and state-funded activism](#) — Report: 3rd Report - The role of the Charity Commission and “public benefit”: Postlegislative scrutiny of the Charities Act 2006 - Volume II (Volume II: Additional Written Evidence) — Public Administration Committee — ¶10 (2013-06-06)

This committee report references a 2012 Institute of Economic Affairs publication titled 'Sock Puppets: How the Government lobbies itself and why,' which directly addresses the core problem identified in the proposal regarding publicly funded charities campaigning against government policy.

7. [Charities can focus resources on political activity for a period](#) — The prevention or relief of poverty for the public benefit (2011-12-01, 14 years old )

This guidance reiterates that a charity may focus resources on political activity for a period, as long as it doesn't become the reason for the charity's existence, referencing CC9. This confirms the existing permissive guidance identified as a root cause.

What's devolved

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

Questions that did **not** run on this draft: Whether this is Westminster's to change

Key sources

This module can be run when the strategic kernels have been properly reviewed.

M-11 — The Sentencing Council and sentencing guidelines

110 entries across **9 of 13 headings**.  **11 entries resolve to no heading** and are listed at the end — a gap in the library, not sources to drop.

How hard will this be to achieve?

This module can be run when the strategic kernels have been properly reviewed.

Cost and duration

The module calculating the costs and benefits of proposed measures is under development. It will aim to contribute to a better balance between those who benefit from legislation and those who pay for it, both taxpayers and those who pay the price of bureaucratic inefficiency and the regulatory burden.

What the law says now

1. [Sentencing Council's statutory independence](#) — Sentencing Guidelines (Pre-sentence Reports) Bill — Clause 1 - Sentencing guidelines about pre-sentence reports (2025-04-30. )

This debate discusses the incompatibility of the Secretary of State's approval or rewriting of guidelines with the independence of the Sentencing Council, highlighting a key challenge the proposal faces.

2. [Existing consultation requirements](#) — Report: Sixth Report: Sentencing Guidelines and Parliament: building a bridge — Justice Committee — A democratic deficit? (2015-05-18, 11 years old )

This committee report states that the Justice Select Committee's views on draft guidelines are not binding on the Sentencing Council, directly confirming the current advisory nature of the consultation process that the proposal seeks to change.

3. [Current legislative proposals for approval](#) — Ministry of Justice — Sentencing: Parliamentary Scrutiny (2025-09-10. )

This source indicates that a 'Sentencing Bill' has already been brought forward to introduce stronger democratic and judicial oversight by requiring approval from both the Lord Chancellor and Lady Chief Justice for all guidelines, directly addressing the proposal's aim.

4. [Lord Chancellor's veto power in proposed legislation](#) — Sentencing Bill - Committee (2nd Day) (Continued) — Amendment 80 (2025-12-01. Ø)

This debate on the 'Sentencing Bill' directly discusses a clause (Clause 19) that requires approval from both the Lord Chancellor and Lady Chief Justice for definitive guidelines, which is the central mechanism of the proposal.

5. [No existing delegated power for ministerial approval](#) — Sentencing Guidelines (Pre-sentence Reports) Bill — Clause 1 - Sentencing guidelines about pre-sentence reports (2025-04-30. Ø)

This debate discusses the incompatibility of the Secretary of State's approval or rewriting of guidelines with the independence of the Sentencing Council, highlighting a key challenge the proposal faces.

6. [Sentencing guidelines definition](#) — Coroners and Justice Act 2009, s.120 (2009)

Directly references 'sentencing guidelines' within the Coroners and Justice Act 2009, indicating this section would be a key target for amendment.

7. [Mandatory sentencing guidelines for the Council](#) — Coroners and Justice Act 2009, s.120 (2009, 17 years old Ø)

Directly references 'sentencing guidelines' within the Coroners and Justice Act 2009, indicating this section would be a key target for amendment.

8. [Discretionary sentencing guidelines for the Council](#) — Coroners and Justice Act 2009, s.120 (2009, 17 years old Ø)

Directly references 'sentencing guidelines' within the Coroners and Justice Act 2009, indicating this section would be a key target for amendment.

9. [Sentencing Council's independence from Parliament and government](#) — Sentencing Council Guidelines - Commons Urgent Question (2025-03-19. Ø)

States the Sentencing Council's independence from Parliament and government and the Lord Chancellor's discontent with published guidance, illustrating the problem of lack of direct accountability.

10. [Current parliamentary scrutiny of draft guidelines](#) — HOME DEPARTMENT — Sentencing Guidelines Council (2004-11-15, 21 years old Ø)

Discusses parliamentary scrutiny of draft guidelines by the Sentencing Guidelines Council, showing historical context of parliamentary involvement.

11. [Justice Select Committee's role is advisory](#) — Report: Sixth Report: Sentencing Guidelines and Parliament: building a bridge — Justice Committee — A democratic deficit? (2015-05-18, 11 years old Ø)

States that the Justice Select Committee's views on draft guidelines are 'not binding on the Sentencing Council', directly supporting the proposal's problem statement about the advisory nature of consultation.

12. [Proposed legislative change in Sentencing Bill](#) — Ministry of Justice — Sentencing: Parliamentary Scrutiny (2025-09-10. Ø)

Mentions a 'Sentencing Bill' proposing stronger democratic and judicial oversight by requiring approval from the Lord Chancellor, directly aligning with the proposal's aim.

13. [Lord Chancellor's approval of business plan also proposed](#) — Ministry of Justice — Sentencing: Parliamentary Scrutiny (2025-09-10. Ø)

Mentions a 'Sentencing Bill' proposing stronger democratic and judicial oversight by requiring approval from the Lord Chancellor, directly aligning with the proposal's aim.

14. [Proposed approval mechanism as a veto](#) — Sentencing Bill - Committee (2nd Day) (Continued) — Amendment 80 (2025-12-01. Ø)

Directly addresses a proposed clause (Clause 19) requiring individual approval from the Lord Chancellor and Lady Chief Justice for definitive guidelines, which is central to the proposal.

15. [Concerns about delays with new approval process](#) — Sentencing Bill - Report — Amendment 54 (2026-01-06. )

Discusses proposed amendments to the Sentencing Bill requiring approval requests from the council to be considered by the Lord Chancellor, directly addressing the proposal's mechanism.

16. [Impact of Lord Chancellor's disapproval of business plan](#) — Sentencing Bill - Committee (2nd Day) (Continued) — Amendment 80 (2025-12-01. )

Highlights a debate point about the silence of a clause on what happens if the Lord Chancellor does not approve a business plan, relevant to the proposed approval mechanism for guidelines.

17. [Judiciary's view on independence of guidelines](#) — Sentencing Guidelines (Pre-sentence Reports) Bill - Second Reading (2025-05-07. )

Highlights a disagreement between the Lord Chancellor and the Sentencing Council over a 'policy decision of significance', directly illustrating the problem of the Council's independence on matters with political content.

18. [Court of Appeal's jurisdiction on sentencing principles](#) — Blackshaw, R. v (Rev 1) (2011-10-18)

Discusses the legislation relating to sentencing guidelines issued by the Sentencing Council and its impact on the court's jurisdiction, relevant to the legal framework.

19. [Sentencing Council's duty to assess impact on resources](#) — Explanatory Notes to Coroners and Justice Act 2009 (undated)

Mentions section 132 of the Coroners and Justice Act 2009 placing a duty on the Sentencing Council, indicating specific provisions that define its responsibilities.

20. [Coroners and Justice Act 2009 established the Sentencing Council and its powers](#) — Coroners and Justice Act 2009, s.120 (2009)

21. [Coroners and Justice Act 2009 outlines guideline content](#) — Explanatory Notes to Coroners and Justice Act 2009 (undated)

22. [Coroners and Justice Act 2009 mandates consultation](#) — Report: Second Report: Work of the Committee in 2008-09 — Justice Committee — 16 Work of the Committee in 2008-09 (2015-05-18)

23. [Coroners and Justice Act 2009 requires courts to follow guidelines](#) — Explanatory Notes to Coroners and Justice Act 2009 (undated)

24. [Criminal Justice Act 2003 established predecessor to Sentencing Council](#) — The Coroners and Justice Act 2009 (Commencement No. 4, Transitional and Saving Provisions) Order 2010, art.7 (2010)

25. [Judicial independence is a principle in sentencing](#) — Sentencing Bill - Committee (2nd Day) (Continued) — Amendment 80 (2025-12-01. )

26. [Judicial independence and policy purview](#) — Justice — Sentencing Council (2025-04-22. )

27. [Justice Select Committee scrutinises draft sentencing guidelines](#) — Report: Second Report: Work of the Committee in 2008-09 — Justice Committee — 16 Work of the Committee in 2008-09 (2015-05-18)

28. [Justice Select Committee's role is seen as a balance](#) — Report: Sixth Report: Sentencing Guidelines and Parliament: building a bridge — Justice Committee — A democratic deficit? (2015-05-18, 11 years old )

29. [Lord Chancellor must be consulted on draft guidelines](#) — Explanatory Notes to Coroners and Justice Act 2009 (undated, )

30. [Lord Chancellor's approval for guidelines and business plan](#) — Ministry of Justice — Sentencing: Parliamentary Scrutiny (2025-09-10. )

31. Lord Chancellor's approval for guidelines diminishes independence — Government Response: Letter from Jake Richards MP, Parliamentary Under-Secretary of State for Sentencing, Youth Justice and International to Lord Strathclyde, Chair of the Constitution Committee, regarding the Sentencing Bill — Yours sincerely — ¶16 (2026-01-28. Ø)

32. [Sentencing Council for England and Wales is an independent body](#) — Report: Sixth Report: Sentencing Guidelines and Parliament: building a bridge — Justice Committee — A democratic deficit? (2015-05-18, 11 years old Ø)

33. [Sentencing Council consults on draft guidelines](#) — Imposition consultation (2016-01-14, 10 years old Ø)

34. [Sentencing Council's leadership](#) — Justice — Sentencing Council (2025-04-22)

35. [Sentencing guidelines are rules courts must follow](#) — Coroners and Justice Act 2009, s.120 (2009, 17 years old Ø)

36. [Sentencing guidelines are subject to consultation and review](#) — Explanatory Notes to Coroners and Justice Act 2009 (undated, Ø)

37. [Sentencing guidelines aim to promote public confidence](#) — Report: Sixth Report: Sentencing Guidelines and Parliament: building a bridge — Justice Committee (2015-05-18, 11 years old Ø)

38. Terms of art the record confirms (undated — no source record)

What else refers to this law

1. [64 instruments are recorded as made under ukpga/2009/25 — the strongest kind of reference here](#) — ukxi/2014/1919 (undated — no source record)

64 instruments are recorded as made under ukpga/2009/25. For 2 of them the words we can quote do not name it. ukxi/2014/1919: "Lord Chief Justice, in exercise of powers conferred under sections 115, 116, 117, 120 and 121 of the Constitutional Reform Act 2005 , and under paragraph 14 of "

2. [394 references — each mentions the target without acting on it. As a kind: needs no action.](#) — asp/2010/13 schedule-7-paragraph-87 (undated — no source record)

394 references in 286 provisions that mentions the target without acting on it: needs no action. asp/2010/13 schedule-7-paragraph-87: "and Justice Act 2009 (c.25)87In section 156 of the Coroners and Justice Act 2009".

3. [138 references — each exercises or relies on a power in the target. As a kind: would need a substitute reference.](#) — asp/2015/12 section-16 (undated — no source record)

138 references in 105 provisions that exercises or relies on a power in the target: would need a substitute reference. asp/2015/12 section-16: "section 4 of the Asylum and Immigration (Treatment of Claimants, etc.) Act 2004 (trafficking people for exploitation),hunder section 71 of the Coroners and Just".

4. [135 references — each brings the target into force, or is named after it. As a kind: needs no action.](#) — nisi/1983/1120 article-9A (undated — no source record)

135 references in 74 provisions that brings the target into force, or is named after it: needs no action. nisi/1983/1120 article-9A: "15In relation to an agreement entered into during the period beginning with that date and ending with the commencement of section 72(2) of the Coroners and Just".

5. [54 references — each amends or repeals part of the target. As a kind: would go with the target.](#) — nisir/2011/62 article-2 (undated — no source record)

54 references in 43 provisions that amends or repeals part of the target: would go with the target. nisir/2011/62 article-2: "c after the entry relating to Order 124, insert— 125 Coroners and Justice Act 2009".

6. [19 references — each borrows a definition from the target. As a kind: would need a substitute reference.](#) — nia/2013/2 section-21 (undated — no source record)

19 references in 17 provisions that borrows a definition from the target: would need a substitute reference. nia/2013/2 section-21: “rights (within the meaning of the Human Rights Act 1998);bmake provision for orders similar to witness anonymity orders within the meaning of section 86 of the ”.

7. [8 references — each disapplies, qualifies or overrides the target. As a kind: would need a substitute reference.](#) — asp/2016/2 section-6 (undated — no source record)

8 references in 8 provisions that disapplies, qualifies or overrides the target: would need a substitute reference. asp/2016/2 section-6: “the time of death, the person was ordinarily resident in Scotland.2But that subsection does not apply to the death of a person within section 12(2) or (3) of th”.

8. What this reference search could not see — 2 layers are not searched, and every count here is what we found in the layers we have — Citation graph coverage, generated 2026-09-09 (undated — no source record)

This covers caselaw, statutory instruments (the regulations made under Acts), Acts of Parliament and other instruments. We hold amends, repeals, commences or modifies, from TNA's own effects data — but not in this search, so they are not joined into any number here. We do not hold this at all yet: a treaty article bearing on a domestic provision. There will be further references we cannot see. A repeal or an amendment is not a citation and is not returned by this query. A change may be prevented by an international obligation this graph cannot see. 25.4% of the references we hold sit in a title, long title, preamble or explanatory note rather than inside a provision — real references, but not provisions that would break. 7.4% point at an instrument we hold no text for, so we can count them and cannot show you what they say. 77 of the Acts referred to here are named by an identifier that fits more than one Act, because two parliamentary sessions can fall inside one calendar year. We refused to guess between them, so those are recorded as refusals — a refusal, not an absence, and not evidence that nothing refers to them. 36.1% of the OLD preamble parser's section-level made-under references were wrong — the effects table still holds those, while the enabling rows quoted here came from the fixed parser (measured 12.2 days ago). 41.3% of the instruments sampled had their scheduled text reach our corpus as well —  a scheduled agreement that was not ingested presents as a SHORT DOCUMENT, not as an error (measured 12.2 days ago). 97,095 act names found in running text resolved to no instrument we hold a title for — short forms that name only a year, and Acts the corpus does not hold. Counted, never dropped (measured 13.6 days ago). Treat any number here as what we found in the layers we have searched, not as a total.

How the courts have read it

1. [Sentencing Council guidelines replace case law research](#) — R v John Edward Butterworth & Anor (2022-10-12.)

This case, R v John Edward Butterworth & Anor, discusses the statutory duties of a sentencer to follow relevant guidance and the importance of transparency in sentencing. It confirms the existing duty to follow guidelines, which the proposal aims to subject to ministerial and judicial approval, thereby widening the scope of 'relevant guidance' to include politically approved versions.

2. [Guidelines are not rigid or ring-fenced](#) — Dyer & Ors, R. v (2013-11-05, 12 years old)

This case, Dyer & Ors, R. v, discusses the 'interests of justice' consideration underpinning the work of the Sentencing Guidelines Council (now Sentencing Council). This widens the interpretation of factors the Council must consider, and the proposal would subject this broad discretion to ministerial and judicial approval, thereby narrowing the Council's independent judgment.

3. [Court of Appeal jurisdiction undiminished by 2009 Act](#) — Blackshaw, R. v (Rev 1) (2011-10-18)

This case, Blackshaw, R. v (Rev 1), states that the legislation relating to Sentencing Council guidelines cannot impose a more rigid system than that for murder cases and that the 2009 Act did not diminish the Court of Appeal's jurisdiction. This construction narrows the perceived binding nature of guidelines and highlights the existing judicial independence, which the proposal seeks to alter by introducing a political approval layer.

4. [Sentencing Council issues definitive guidelines after consultation](#) — Valentas & Anor, R. v (2010-02-03, 16 years old ☺)

This case, Valentas & Anor, R. v, refers to the process by which sentencing proposals are considered by the Sentencing Guidelines Council (and later the Sentencing Council) and whether they are amended before a definitive guideline is issued. It illustrates the existing, non-binding consultation process that the proposal seeks to replace with a formal approval requirement.

5. [Guidelines for similar offences can inform sentencing](#) — Price v Cheshire East Borough Council (2012-10-11, 13 years old ☺)

This case, Price v Cheshire East Borough Council, addresses whether magistrates were wrong in law to consider Sentencing Guidelines Council's Magistrates' Court Sentencing Guidelines in the absence of a specific guideline. It implicitly confirms the advisory nature of guidelines when not directly applicable, which the proposal seeks to change to a binding approval process.

6. [Sentencing Council expected to frame general guidelines](#) — Healey & Ors, R v (2012-05-09, 14 years old ☺)

This case, Healey & Ors, R v, explicitly states that the Sentencing Council is the statutory body responsible for addressing general factors affecting drugs sentencing. This confirms the Council's statutory role in setting guidelines, which the proposal aims to bring under ministerial and judicial approval, thereby narrowing the Council's independent authority.

7. [Guidelines have become more elaborate over time](#) — R v MH (2015-11-26, 10 years old ☺)

This case, R v MH, references the Sentencing Advisory Panel's approach to sentencing in rape cases, based on harm, culpability, and risk, and later guidelines. It provides context on the historical development and methodology of sentencing guidelines, which the proposal aims to subject to a new approval process, thereby impacting how such methodologies are ultimately adopted.

What was tried before — and what happened

⚠ Questions filed here that did **not** run on this draft: Whether this has been tried before

1. [Establishment of the Sentencing Council](#) — Explanatory Notes to Coroners and Justice Act 2009 (undated)

States that the Coroners and Justice Act 2009 established the Sentencing Council, replacing previous bodies, to promote greater consistency in sentencing while maintaining judicial independence, directly addressing the original purpose of the current provision.

2. [Purpose of the Sentencing Council](#) — BILL PRESENTED — Water Industry (Financial Assistance) Bill — Transparency and Consistency of Sentencing (2012-02-02, 14 years old ☺)

Confirms that the Sentencing Council was deliberately set up in 2010 under the Coroners and Justice Act 2009, with the Lord Chancellor at the time supporting its establishment and sensible role, indicating the intentional nature of its creation.

3. [Composition of the Sentencing Council](#) — Explanatory Notes to Coroners and Justice Act 2009 (undated, ☺)

Explains the composition of the Sentencing Council, specifically the requirement for judicial members, which is relevant to understanding its intended independence and the balance of expertise.

4. [Consultation Process for Guidelines](#) — Explanatory Notes to Coroners and Justice Act 2009 (undated, ☺)

Outlines the statutory consultation requirements for the Sentencing Council, including with the Lord Chancellor and the Justice Select Committee, which is central to understanding the existing framework the proposal seeks to amend.

5. [Non-binding Nature of Justice Committee Views](#) — Report: Sixth Report: Sentencing Guidelines and Parliament: building a bridge — Justice Committee — A democratic deficit? (2015-05-18, 11 years old ☺)

Explicitly states that the Justice Select Committee's views on draft guidelines are not binding on the Sentencing Council, confirming that the non-binding nature of parliamentary scrutiny was a deliberate aspect of the current framework to balance judicial independence and democratic scrutiny.

6. [Ministerial Discontent with Current Guidelines](#) — Sentencing Guidelines (Pre-sentence Reports) Bill - Second Reading (2025-05-07. Ø)

Highlights a disagreement between the Lord Chancellor and the Sentencing Council over the significance of a policy decision, indicating the tension between ministerial oversight and the Council's independence.

7. [Recent Legislative Proposals for Stronger Oversight](#) — Ministry of Justice — Sentencing: Parliamentary Scrutiny (2025-09-10. Ø)

Indicates a recent legislative proposal (Sentencing Bill) that aims to introduce stronger democratic and judicial oversight by requiring approval from the Lord Chancellor and Lady Chief Justice, directly addressing the proposal's core aim.

8. [Parliamentary Sovereignty and Policy Determination](#) — Sentencing Guidelines (Pre-sentence Reports) Bill (2025-04-22. Ø)

Highlights a recent instance where the Lord Chancellor expressed discontent with Sentencing Council guidelines and sought reconsideration, demonstrating the current tension and the perceived need for greater ministerial influence.

9. [Concerns about a Political Veto](#) — Sentencing Bill - Second Reading (2025-11-12. Ø)

Debates the proposed requirement for consent from the Lord Chancellor and Lord Chief Justice for guideline publication, explicitly calling it a 'political veto' and discussing its impact on the Sentencing Council's independence, confirming the deliberate nature of the current independence.

Where this mechanism works elsewhere

Nothing under this heading. We looked for the same problem solved in another sector, industry or country, and found nothing. That is a gap in what we could retrieve, not a statement about what exists.

Questions that ran: What other sectors built for the same problem

Who has argued about this

1. [Sentencing Bill introduces stronger oversight for guidelines](#) — Ministry of Justice — Sentencing: Parliamentary Scrutiny (2025-09-10. Ø)

This parliamentary answer confirms that the Lord Chancellor has introduced measures in the Sentencing Bill to require statutory approval from both the Lord Chancellor and Lady Chief Justice for Sentencing Council guidelines, directly addressing the proposal's aim.

2. [Lord Chancellor approval required for business plan](#) — Ministry of Justice — Sentencing: Parliamentary Scrutiny (2025-09-10. Ø)

This parliamentary answer confirms that the Lord Chancellor has introduced measures in the Sentencing Bill to require statutory approval from both the Lord Chancellor and Lady Chief Justice for Sentencing Council guidelines, directly addressing the proposal's aim.

3. [Sentencing Act 2026 mandates consent for guidelines](#) — Sentencing Act 2026, s.20 (2026)

This section of the Sentencing Act 2026 amends the Coroners and Justice Act 2009 to require the Sentencing Council to seek consent from the Lord Chief Justice and Lord Chancellor to issue definitive guidelines, directly enacting the proposal's core aim.

4. [Sentencing Act 2026 mandates business plan approval](#) — Sentencing Act 2026, s.19 (2026)

This section of the Sentencing Act 2026 introduces a requirement for the Sentencing Council to submit a business plan to the Lord Chancellor for approval, establishing a formal oversight mechanism relevant to the proposal.

5. [High bar for guideline rejection](#) — Sentencing Bill - Report — Amendment 54 (2026-01-06.)

This debate extract discusses an amendment to the Sentencing Bill, confirming the commitment to accountability and increased transparency in the approval processes for sentencing guidelines, which aligns with the proposal's objectives.

6. [Proposal for joint non-consent rejected](#) — Sentencing Bill - Committee (2nd Day) (Continued) — Amendment 80 (2025-12-01.)

This debate directly addresses Clause 19 of the Sentencing Bill, which proposes that definitive guidelines require individual approval from both the Lord Chancellor and Lady Chief Justice, aligning with the proposal.

7. [Lord Chancellor expressed discontent with guidelines](#) — Sentencing Council Guidelines - Commons Urgent Question (2025-03-19.)

This debate highlights the Sentencing Council's independence from Parliament and government and the Lord Chancellor's discontent with published guidance, demonstrating the existing tension the proposal seeks to address.

8. [Calls for abolition of Sentencing Council](#) — Sentencing Guidelines (Pre-sentence Reports) Bill (2025-04-22.)

This debate discusses the Lord Chancellor's view on parliamentary sovereignty in relation to sentencing policy and the Sentencing Council's response to her letter, directly addressing the democratic deficit concern.

9. [Justice Committee may review Sentencing Council's role](#) — Special Report: 7th Special Report - Prison Population 2022: Planning for the future: Government Response to the Committee's Sixteenth Report of 2017-19 — Justice Committee (2019-06-11, 7 years old)

This committee report suggests a review of sentencing legislation, including the role of the Sentencing Council, as part of a strategy for improving the sustainability of the prison population, indicating a past examination of the Council's role.

10. [Concerns about political veto and judicial independence](#) — Sentencing Bill - Second Reading (2025-11-12.)

This debate discusses the proposed 'political veto' in the hands of the Lord Chancellor over sentencing guidelines, directly addressing the implications of the proposal's core mechanism.

11. Constitutional concerns about Lord Chancellor's powers — Government Response: Letter from Jake Richards MP, Parliamentary Under-Secretary of State for Sentencing, Youth Justice and International to Lord Strathclyde, Chair of the Constitution Committee, regarding the Sentencing Bill — Yours sincerely — ¶6 (2026-01-28.)

This government response raises constitutional concerns about the Lord Chancellor's potential powers to intervene in the Sentencing Council's work, directly addressing a potential negative consequence of the proposal.

12. [Judicial independence at risk](#) — Sentencing Guidelines (Pre-sentence Reports) Bill — Clause 1 - Sentencing guidelines about pre-sentence reports (2025-04-30.)

This debate argues that the Secretary of State's approval or rewriting of guidelines is incompatible with the Sentencing Council's independence, directly contradicting the proposal's aim.

13. [Lord Chancellor committed to reviewing Sentencing Council's role](#) — Sentencing Council Guidelines - Question (2025-04-02.)

This debate confirms the Lord Chancellor's commitment to reviewing the role of the Sentencing Council, indicating an ongoing examination of the body's functions and accountability.

14. [Policy significance of sentencing guidelines](#) — Sentencing Guidelines (Pre-sentence Reports) Bill - Second Reading (2025-05-07. )

This debate highlights a disagreement between the Lord Chancellor and the Sentencing Council over the significance of a policy decision, underscoring the need for clearer approval mechanisms as proposed.

Key people and groups likely to support or oppose

1. [Baroness Falkner of Margravine — recorded acts bearing on “Sentencing Guidelines \(Pre-sentence Reports\) Bill”](#) — Position graph, method 3c.7bac2c10d652, computed 2026-09-04 (2025-06-04)

Matched to this proposal on the phrase “sentencing guidelines”. Most recent recorded act: 2025-06-04, against “Sentencing Guidelines (Pre-sentence Reports) Bill”. 1 recorded act in total, listed in full in the long report.

2. [Baroness Hollins — recorded acts bearing on “Sentencing Guidelines \(Pre-sentence Reports\) Bill”](#) — Position graph, method 3c.7bac2c10d652, computed 2026-09-04 (2025-06-04)

Matched to this proposal on the phrase “sentencing guidelines”. Most recent recorded act: 2025-06-04, for “Sentencing Guidelines (Pre-sentence Reports) Bill”. 1 recorded act in total, listed in full in the long report.

3. [Lord Brennan — recorded acts bearing on “Sentencing Guidelines \(Pre-sentence Reports\) Bill”](#) — Position graph, method 3c.7bac2c10d652, computed 2026-09-04 (2025-06-04)

Matched to this proposal on the phrase “sentencing guidelines”. Most recent recorded act: 2025-06-04, against “Sentencing Guidelines (Pre-sentence Reports) Bill”. 1 recorded act in total, listed in full in the long report.

4. [Lord Carlile of Berriew — recorded acts bearing on “Sentencing Guidelines \(Pre-sentence Reports\) Bill”](#) — Position graph, method 3c.7bac2c10d652, computed 2026-09-04 (2025-06-04)

Matched to this proposal on the phrase “sentencing guidelines”. Most recent recorded act: 2025-06-04, against “Sentencing Guidelines (Pre-sentence Reports) Bill”. 1 recorded act in total, listed in full in the long report.

5. [Lord Carter of Haslemere — recorded acts bearing on “Sentencing Guidelines \(Pre-sentence Reports\) Bill”](#) — Position graph, method 3c.7bac2c10d652, computed 2026-09-04 (2025-06-04)

Matched to this proposal on the phrase “sentencing guidelines”. Most recent recorded act: 2025-06-04, for “Sentencing Guidelines (Pre-sentence Reports) Bill”. 1 recorded act in total, listed in full in the long report.

6. What this section does not cover — our record of recorded divisions of the House of Commons begins 2016-03-09, and 2 signal types have no source data — Position graph coverage, generated 2026-09-04 (undated — no source record)

Our record of recorded divisions of the House of Commons begins 2016-03-09; 2 signal types (seats held on select and public bill committees; amendments a member put their name to) have no source data at all; and the stance estimates have never been scored against a verified answer key. The full statement is in the long report.

The numbers

1. [Sentencing Council's statutory independence](#) — Explanatory Notes to Coroners and Justice Act 2009 (undated)

This source confirms the establishment of the Sentencing Council by the Coroners and Justice Act 2009, replacing previous bodies, and outlines its functions and the duties of courts to follow its guidelines, providing foundational context for the proposal.

2. [Consultation process for guidelines](#) — Explanatory Notes to Coroners and Justice Act 2009 (*undated*, Ø)

This source describes the current advisory consultation process for sentencing guidelines, which the proposal aims to make binding, and confirms the Council's power to amend and issue definitive guidelines after consultation.

3. [Justice Select Committee's role is advisory](#) — Report: Sixth Report: Sentencing Guidelines and Parliament: building a bridge — Justice Committee — A democratic deficit? (2015-05-18, 11 years old Ø)

This source explicitly states that the Justice Select Committee's views on draft guidelines are 'not binding on the Sentencing Council', directly supporting the proposal's diagnosis of the current advisory nature of parliamentary scrutiny.

4. [Judicial independence as a constitutional principle](#) — SA, R (on the application of) v Judicial Conduct Investigation Office (2025-10-07)

This source reiterates that 'judicial independence is a fundamental constitutional principle which is enshrined by section 3(1) of the C', directly reinforcing the 'pivotal obstacle' of judicial independence that the proposal must navigate.

5. [Debate on democratic scrutiny and judicial independence](#) — Sentencing Bill - Committee (2nd Day) (Continued) — Amendment 80 (2025-12-01. Ø)

This source discusses the 'delicate balance between democratic accountability and judicial independence' in sentencing policy, directly addressing the core tension the proposal seeks to resolve by shifting policy determination to Ministers.

6. [Lord Chancellor's discontent with guidelines](#) — Sentencing Council Guidelines - Commons Urgent Question (2025-03-19. Ø)

This source explicitly states that the Sentencing Council is 'independent of Parliament and government' and 'decides on its own priorities and workplan', and that the Lord Chancellor expressed 'discontent with the guidance when it was published', directly supporting the proposal's diagnosis of a lack of direct ministerial control.

7. [Lord Chancellor's review of Sentencing Council](#) — Ministry of Justice — Sentencing Council for England and Wales (2025-06-24. Ø)

This source confirms that the Lord Chancellor is 'currently undertaking a review of the Sentencing Council's role and powers' and 'will introduce reforms in future legislation', directly supporting the proposal's aim for increased ministerial control.

8. [Proposed legislative changes for approval of guidelines](#) — Ministry of Justice — Sentencing: Parliamentary Scrutiny (2025-09-10. Ø)

This source directly supports the proposal's diagnosis by indicating that the Lord Chancellor has brought forward measures in a Sentencing Bill to introduce stronger democratic and judicial oversight, requiring statutory obligation for approval from both the Lord Chancellor and Lady Chief Justice.

9. [Sentencing Bill proposes Lord Chancellor's veto](#) — Sentencing Act 2026, s.20 (2026)

This source describes a proposed amendment to the Coroners and Justice Act 2009, specifically section 120, to require the Sentencing Council to 'seek the consent of the Lord Chief Justice and the Lord Chancellor to issue them as definitive guidelines', which is precisely what the proposal advocates.

10. [Concerns about political veto over Sentencing Council](#) — Sentencing Bill - Second Reading (2025-11-12. Ø)

This source directly discusses the proposed requirement for consent from both the Lord Chancellor and Lady Chief Justice, explicitly calling it a 'political veto' and questioning the Lady Chief Justice's willingness to exercise such a power, which is highly relevant to the feasibility and implications of the proposal.

11. [Sentencers are required to follow guidelines](#) — R v John Edward Butterworth & Anor (2022-10-12)

This source clarifies that sentencers are required by statute to follow 'relevant sentencing guidelines' and that 'a research paper, consultation or draft guidance is not a relevant guideline', reinforcing the legal weight of definitive guidelines and the importance of their approval process.

What's devolved

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

Questions that did **not** run on this draft: Whether this is Westminster's to change

Key sources

This module can be run when the strategic kernels have been properly reviewed.

M-12 — The Great Repeal: the programme as a single instrument

52 entries across 7 of 13 headings. ⚠️ 7 entries resolve to no heading and are listed at the end — a gap in the library, not sources to drop.

How hard will this be to achieve?

This module can be run when the strategic kernels have been properly reviewed.

Cost and duration

The module calculating the costs and benefits of proposed measures is under development. It will aim to contribute to a better balance between those who benefit from legislation and those who pay for it, both taxpayers and those who pay the price of bureaucratic inefficiency and the regulatory burden.

What the law says now

1. [Power to remove or reduce burdens](#) — Legislative and Regulatory Reform Act 2006, s.1 (2006)

This section confers a general power on a Minister of the Crown to make orders to remove or reduce burdens, which could potentially be interpreted to include legislative burdens, but is limited by other sections.

2. [Explicit protection of Human Rights Act 1998](#) — Legislative and Regulatory Reform Act 2006, s.8 (2006)

This section explicitly states that an order under Part 1 of the Legislative and Regulatory Reform Act 2006 cannot amend or repeal any provision of the Human Rights Act 1998, directly limiting any existing power to achieve the proposal's aim.

3. [Consequential amendments and repeals](#) — Explanatory Notes to Legislative and Regulatory Reform Act 2006 (undated)

This explanatory note clarifies that orders under section 1(7) of the Legislative and Regulatory Reform Act 2006 can amend or repeal any enactment, including Acts of the Scottish Parliament, but this general power is subject to the specific limitations in section 8.

4. [Parliamentary procedure for orders](#) — Legislative and Regulatory Reform Act 2006, s.12 (2006)

This section specifies that orders under this Part must be made by statutory instrument and outlines the consultation and parliamentary laying requirements, detailing the procedure for exercising the power.

5. [Super-affirmative resolution procedure](#) — Legislative and Regulatory Reform Act 2006, s.18 (2006)

This section details the 'super-affirmative resolution procedure' for orders, which is a parliamentary procedure that could be applied to significant changes if the power were available.

6. [Explanatory document requirements](#) — Legislative and Regulatory Reform Act 2006, s.14 (2006)

This section outlines the procedure for laying a draft order and explanatory document before Parliament, which is relevant to how any order under the Act would be exercised.

7. [Restriction on amending/repealing Scottish Parliament legislation](#) — Explanatory Notes to Legislative and Regulatory Reform Act 2006 (*undated*)

This explanatory note explicitly states that orders made under Part 1 of the Legislative and Regulatory Reform Act 2006 cannot amend or repeal the Human Rights Act 1998, directly limiting the scope of any existing power to achieve the proposal's aim.

8. [Restriction on amending/repealing Northern Ireland legislation](#) — Legislative and Regulatory Reform Act 2006, s.10 (2006)

This section limits the power of an order under Part 1 to amend or repeal Northern Ireland legislation, except by virtue of sections 1(8) or 2(7), which is relevant to the scope of any existing power.

9. [HRA definition of 'amend'](#) — Human Rights Act 1998, s.21 (1998)

This section provides definitions for the Human Rights Act 1998, including 'amend', which is crucial for understanding the scope of changes proposed to this Act.

10. [HRA and Supreme Court](#) — Constitutional Reform Act 2005, sch.9 para.66 (2005)

This shows an amendment to the Human Rights Act 1998 within the target date range, specifically altering how declarations of incompatibility are handled by replacing 'House of Lords' with 'Supreme Court', which is a direct constitutional change.

11. [Parliamentary sovereignty over legislation](#) Vol_1_(Jan_1909)_to_2004/S5LV0589P0.zip) — Lords: Government of Wales Bill (1998-04-11, 28 years old ☺)

This debate excerpt from 1998 directly discusses the principle of parliamentary sovereignty in relation to the Government of Wales Bill, acknowledging that Parliament can make and unmake laws, which is central to the proposal's legal strategy.

12. Terms of art the record confirms (*undated — no source record*)

What else refers to this law

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

How the courts have read it

1. [Prerogative powers cannot alter domestic constitutional law](#) — R (on the application of Miller and another) v Secretary of State for Exiting the European Union (2017-01-24, 9 years old ☺)

This is the Supreme Court ruling in Miller I, which affirmed that changes to domestic law affecting constitutional arrangements require primary legislation, directly underpinning the proposal's legal strategy.

2. [Miller I and II reinforce need for primary legislation](#) — R (on the application of Miller and another) v Secretary of State for Exiting the European Union (2017-01-24, 9 years old ☺)

This is the Supreme Court ruling in Miller I, which affirmed that changes to domestic law affecting constitutional arrangements require primary legislation, directly underpinning the proposal's legal strategy.

3. [Disapplication of HRA Section 3 by recent legislation](#) — Victims and Prisoners Act 2024, s.70 (2024)

This section of the Victims and Prisoners Act 2024 explicitly disapplies Section 3 of the Human Rights Act 1998 for fixed-term prisoners, demonstrating a recent legislative precedent for limiting the HRA's reach.

4. [Section 3 HRA requires compatible interpretation](#) — Human Rights Act 1998, s.3 (1998)

This is the core provision of the Human Rights Act 1998 that the proposal aims to repeal or amend, specifically the duty to interpret legislation compatibly with Convention rights.

What was tried before — and what happened

 Questions filed here that did **not** run on this draft: Whether this has been tried before

1. [Constitutional reforms 1997-2010](#) — Constitutional Reform — Question for Short Debate (2009-07-06)

This debate explicitly lists the significant constitutional reforms enacted between 1997 and 2010, including devolution, House of Lords modernization, Freedom of Information Act, and Human Rights Act, which are the target of the proposal.

2. [Purpose of Human Rights Act 1998](#) — Electoral Reform (2005-06-14)

This debate highlights the purpose of the Freedom of Information Act 2000 (transparency) and the Human Rights Act 1998 (holding executive power to account), which are key pieces of legislation the proposal aims to address.

3. [Purpose of Freedom of Information Act 2000](#) — Electoral Reform (2005-06-14)

This debate highlights the purpose of the Freedom of Information Act 2000 (transparency) and the Human Rights Act 1998 (holding executive power to account), which are key pieces of legislation the proposal aims to address.

4. [Constitutional importance of HRA and Devolution Acts](#) — Human Rights and Devolution Legislation: Interpretation of Statutes (2004-02-23)

This debate addresses whether the Human Rights Act 1998 and devolution acts have 'particular strength' due to their constitutional importance, which is directly relevant to the proposal's aim of overriding explicit statutory protections for such acts.

5. [Success of reforms](#) — PROPOSALS FOR A WRITTEN CONSTITUTION (2007-10-10)

This debate describes the constitutional reforms between 1997 and 2010 as 'substantive changes to our unwritten and ancient constitutional tapestry' and notes the difficulty of 'rolling back devolution or re-in', directly addressing the challenge the proposal aims to overcome.

6. [Lack of coherent process for constitutional change](#) — [Miss Anne Begg in the Chair] — Bill of Rights (UK) (2009-06-25)

This debate discusses the 'lack of coherence and shape' to the process of constitutional change and the need for a 'coherent process', directly addressing the problem of piecemeal reforms that the proposal seeks to solve with a single instrument.

Where this mechanism works elsewhere

Nothing under this heading. We looked for the same problem solved in another sector, industry or country, and found nothing. That is a gap in what we could retrieve, not a statement about what exists.

Questions that ran: What other sectors built for the same problem

Who has argued about this

1. [Constitutional reforms 1997-2010](#) — Constitutional Reform — Question for Short Debate (2009-07-06)

This debate identifies the period 1997-2010 as one of significant constitutional reforms, including devolution and the Human Rights Act, aligning with the proposer's target date range and scope.

2. [Human Rights Act 1998 protection](#) — Legislative and Regulatory Reform Act 2006, s.8 (2006)

This primary legislation explicitly protects the Human Rights Act 1998 from amendment or repeal by orders made under this Act, directly addressing the proposer's concern about statutory protections for key acts.

3. [HRA as constitutional backbone of devolution](#) — The Secretary of State was asked — Human Rights Framework: Reform (2020-01-14, 6 years old)

This debate raises concerns about the Human Rights Act being part of the 'constitutional backbone of devolution' and the need for agreement from devolved parliaments for any changes, highlighting a significant political obstacle to comprehensive repeal.

4. [Constitutional importance of HRA](#) — Twenty years of the Human Rights Act inquiry — HRA0003 (2018-10-18)

This written evidence discusses the 'difficulties in reality of significantly reforming the HRA', directly addressing the practical challenges of the proposer's goal to repeal/amend the HRA.

5. [HRA and Good Friday Agreement](#) — The Government's Independent Human Rights Act Review — HRA0044 (2021-05-12)

This written evidence from the Northern Ireland Human Rights Commission highlights the 'NI Context' and the duty on the UK government to incorporate the ECHR under the Belfast (Good Friday) Agreement, indicating a significant constitutional constraint on repealing the HRA.

6. Previous attempts to reform HRA — Report: Thirteenth Report - Human Rights Act Reform — Human Rights (Joint Committee) (2022-04-13.)

This committee report provides background to Human Rights Act reform, including previous proposals and the Independent Human Rights Act Review, indicating a history of examination and proposed changes to a key piece of legislation.

7. No compelling case for HRA reform — Report: Third Report - The Government's Independent Review of the Human Rights Act — Human Rights (Joint Committee) (2021-07-08)

This committee report details the Joint Committee on Human Rights' engagement with the Independent Human Rights Act Review, showing parliamentary scrutiny of the HRA's operation and potential reforms.

8. Opposition to HRA repeal without devolved consent — Report: Third Report - The Government's Independent Review of the Human Rights Act — ¶36 — Human Rights (Joint Committee) (2021-07-08, 5 years old)

This committee report states that the Government should not pursue reform of the HRA without the consent of the devolved parliaments, highlighting a significant political and constitutional obstacle to comprehensive repeal.

9. [Concerns about weakening human rights protections](#) — The Government's Independent Human Rights Act Review — HRA0065 (2021-05-13, 5 years old)

This written evidence expresses concern that the HRA review is part of a wider move to weaken human rights protections, indicating significant opposition to the kind of comprehensive repeal/amendment proposed.

10. Overwhelming support for retaining HRA — Report: Ninth Report - Legislative Scrutiny: Bill of Rights Bill — Human Rights (Joint Committee) (2023-01-25.)

This committee report notes 'overwhelming body of support for retaining the HRA' and a lack of support for a Bill of Rights, indicating significant opposition to the kind of comprehensive repeal/replacement envisioned by the proposer.

11. [HRA amendments in Constitutional Reform Act 2005](#) — Constitutional Reform Act 2005, sch.9 para.66 (2005)

This primary legislation shows an amendment to the Human Rights Act 1998, specifically regarding the Supreme Court's role in declarations of incompatibility, demonstrating that the HRA has been subject to legislative modification.

12. [Disapplication of HRA Section 3 in recent legislation](#) — Victims and Prisoners Act 2024, s.69 (2024)

This primary legislation demonstrates a recent legislative pathway for disapplying Section 3 of the Human Rights Act 1998 in specific contexts, indicating that parts of the HRA can be legislatively altered.

13. [Constitutional change process lacks coherence](#) — [Miss Anne Begg in the Chair] — Bill of Rights (UK) (2009-06-25)

This debate highlights a 'lack of coherence and shape' to the constitutional reform process and the need for a 'coherent process' for constitutional change, directly addressing the proposer's concern about piecemeal efforts.

14. [Constitutional Committee review of change process](#) — Report: 15th Report - The Process of Constitutional Change — Constitution Committee — HOUSE OF LORDS (2011-07-18)

This committee report details an inquiry into 'the constitutional reform process' by the House of Lords Constitution Committee, which directly examines the problem of how constitutional change is managed.

Key people and groups likely to support or oppose

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

The numbers

1. [HRA 1998 protected from amendment or repeal by orders under LRR Act 2006](#) — Legislative and Regulatory Reform Act 2006, s.8 (2006)

This section explicitly protects the Human Rights Act 1998 from amendment or repeal by orders under the Legislative and Regulatory Reform Act 2006, directly supporting the proposal's diagnosis of legal interdependencies and obstacles to piecemeal reform.

2. [Victims and Prisoners Act 2024 disapplies HRA Section 3 in specific contexts](#) — Victims and Prisoners Act 2024, s.69 (2024)

This recent legislation demonstrates a legislative pathway for limiting the reach of the Human Rights Act 1998, supporting the proposer's claim that a comprehensive Act could override existing protections and providing a precedent for specific disapplication.

3. [Victims and Prisoners Act 2024 disapplies HRA Section 3 for life prisoners](#) — Victims and Prisoners Act 2024, s.69 (2024)

This recent legislation demonstrates a legislative pathway for limiting the reach of the Human Rights Act 1998, supporting the proposer's claim that a comprehensive Act could override existing protections and providing a precedent for specific disapplication.

4. [Victims and Prisoners Act 2024 disapplies HRA Section 3 for fixed-term prisoners](#) — Victims and Prisoners Act 2024, s.70 (2024)

This recent legislation demonstrates a legislative pathway for limiting the reach of the Human Rights Act 1998, supporting the proposer's claim that a comprehensive Act could override existing protections and providing a precedent for specific disapplication.

What's devolved

Nothing under this heading. This wasn't asked of your draft, so there is nothing here — which is not the same as nothing existing.

Questions that did **not** run on this draft: Whether this is Westminster's to change

Key sources

This module can be run when the strategic kernels have been properly reviewed.